

Harvard Law School

Handbook of Academic Policies

2026-2027

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Preface

Harvard Law School expects every student to be familiar with the policies governing membership in the Harvard and HLS community as set forth in this Handbook of Academic Policies and with related updates and guidance as provided throughout the year, which are herein incorporated by reference to the Handbook.

If these policies raise any questions for students about accommodations, those questions can be directed to Harvard Law School's [Accessibility Services](#) team.

A. HLS Community Principles

The Law School's commitments to fairness, respect for the rule of law, and free inquiry require an environment of trust and mutual respect, free expression and inquiry, and a commitment to truth, excellence, and lifelong learning. Students, program participants, faculty, staff, and alumni accept these principles when they join the Harvard Law School community and thereby agree to respect the rights, dignity, and differences of others, pursue honesty and integrity in dealing with all members of the community in person and online, and accept personal responsibility in these efforts.

B. HLS Community Principle on Non-Attribution

To fulfill Harvard Law School's mission of training excellent lawyers, our classrooms must offer an environment in which all participants feel able to engage in free, open, respectful discussion of complex, sensitive, and consequential questions. Our classrooms are places in which students make arguments sometimes because they deeply believe in them, sometimes because they're exploring what they believe, and sometimes because they're trying to understand a contrary view or have been asked by the professor to take a position with which they may disagree. Everybody is learning, everybody has to think and respond within fast-moving discussions, and everybody will make mistakes as part of the law school learning process. In training to be the best lawyers they can be, students must be able to try arguments on for size, change their minds, and take risks.

The proliferation of social media affects this learning environment. Because of the potential permanence and widespread dissemination of communications through social media and other forms of communication designed to reach members of the public, if statements made in class are quoted or described with attribution in those media, students may be reluctant to approach any question, particularly controversial ones, with the openness and vulnerability they need to grow as lawyers and to learn from one another. Moreover, given the particular pedagogy of law classes, it may be hard, when quoting statements made in class, to accurately distinguish when speakers are expressing their own views or speaking in the role of advocate, to capture all of the qualifications or nuance that speakers may have provided, or to fairly convey the full context necessary to understand why speakers took a particular position on a complex legal question. In addition, the widespread dissemination

of such statements with attribution may risk subjecting the speaker to online harassment, bullying, or worse.

The [Harvard Law School Community Principles](#) generally address these types of concerns by requiring all of us “to respect the rights, dignity, and differences of others, pursue honesty and integrity in dealing with all members of the community in person and online, and accept personal responsibility in these efforts.” See **Preface A** above. That community includes students, staff, and faculty. However, because it is especially important for students to bring an attitude of openness and experimentation to their learning, and because our pedagogy often *requires* students to speak in class and take positions on topics not of their choosing, an additional Community Principle, modeled on the Chatham House Rule, is appropriate for student statements made in class. In particular, the following principle applies to classroom discussion:

When using social media or other forms of communication designed to reach members of the public, no one may repeat or describe a statement made by a student in class in a manner that would enable a person who was not present in the class to identify the speaker of the statement.

In addition to this non-attribution principle, it is important always to work to identify and foster the norms and conditions that will encourage free, open, and respectful classroom discourse that will build community, enable all in a broad and diverse community to learn from one another, and support excellence in teaching and learning.

Interpretive Comments:

- a. The phrase “statement made in class” includes a verbal statement made in any class session of a course, as well as a written statement made in class or classroom-related spaces (such as a Zoom chat or a Canvas discussion thread).
- b. Nothing in the foregoing prevents: (a) a faculty member or students in a course from otherwise communicating, in person or electronically, with one another in a manner that attributes statements to a student; or (b) face-to-face discussion or email, text, or other interpersonal exchanges about class discussion, provided that exchanges under these subsections (as with all exchanges) respect the generally applicable Harvard Law School Community Principles outlined above.
- c. Nothing in the foregoing prevents: (a) a student or faculty member from referring to a statement made in class with attribution in seeking assistance from HLS or University administrators or faculty or reporting to appropriate officials misconduct under law or University or HLS policy; or (b) a faculty member from otherwise performing ordinary responsibilities as an advisor or recommender.
- d. In order to further facilitate open classroom discussion, faculty members may adopt additional guidelines regarding recounting or reporting on statements made in

class. Any such guidelines should be stated clearly and prominently in writing at the outset of the course in a syllabus or statement of classroom policies.

C. Harvard University-Wide Statement on Rights and Responsibilities

The central functions of an academic community are learning, teaching, research, and scholarship. By accepting membership in the University, an individual joins a community ideally characterized by free expression, free inquiry, intellectual honesty, respect for the dignity of others, and openness to constructive change. The rights and responsibilities exercised within the community must be compatible with these qualities.

The rights of members of the University are not fundamentally different from those of other members of society. The University, however, has a special autonomy and reasoned dissent plays a particularly vital part in its existence. All members of the University have the right to press for action on matters of concern by any appropriate means. The University must affirm, assure, and protect the rights of its members to organize and join political associations, convene and conduct public meetings, publicly demonstrate and picket in orderly fashion, advocate, and publicize opinion by print, sign, and voice.

The University places special emphasis, as well, upon certain values which are essential to its nature as an academic community. Among these are freedom of speech and academic freedom, freedom from personal force and violence, and freedom of movement. Interference with any of these freedoms must be regarded as a serious violation of the personal rights upon which the community is based. Furthermore, although the administrative processes and activities of the University cannot be ends in themselves, such functions are vital to the orderly pursuit of the work of all members of the University. Therefore, interference with members of the University in performance of their normal duties and activities must be regarded as unacceptable obstruction of the essential processes of the University. Theft or willful destruction of the property of the University or its members must also be considered an unacceptable violation of the rights of individuals or of the community as a whole.

Moreover, it is the responsibility of all members of the academic community to maintain an atmosphere in which violations of rights are unlikely to occur and to develop processes by which these rights are fully assured. In particular, it is the responsibility of officers of administration and instruction to be alert to the needs of the University community; to give full and fair hearing to reasoned expressions of grievances; and to respond promptly and in good faith to such expressions and to widely expressed needs for change. In making decisions that concern the community as a whole or any part of the community, officers are expected to consult with those affected by the decisions. Failures to meet these responsibilities may be profoundly damaging to the life of the University. Therefore, the University community has the right to establish orderly procedures consistent with imperatives of academic freedom to assess the policies and assure the responsibility of those whose decisions affect the life of the University.

No violation of the rights of members of the University, nor any failure to meet responsibilities, should be interpreted as justifying any violation of the rights of members of the University. All members of the community—students and officers alike—should uphold the rights and responsibilities expressed in this Statement if the University is to be characterized by mutual respect and trust.

1. Interpretation

It is implicit in the language of the Statement on Rights and Responsibilities that intense personal harassment of such a character as to amount to grave disrespect for the dignity of others be regarded as an unacceptable violation of the personal rights on which the University is based.

It is implicit in the University-Wide Statement on Rights and Responsibilities that any unauthorized occupation of a University building, or any part of it, that interferes with the ability of members of the University to perform their normal activities constitutes unacceptable conduct in violation of the Statement and is subject to appropriate discipline.

This University-Wide Statement and its first interpretation were adopted on an interim basis by the Governing Boards on September 20, 1970, and were voted to remain in effect indefinitely in May 1977. The second interpretation was adopted by the Governing Boards in January-February 2002.

2. Additional Guidance

To implement and effectuate the University-Wide Statement of Rights and Responsibilities, the Law School's policies include [Protest and Dissent Guidelines \(Section XIII\(D\)\)](#). Note Harvard University has adopted [Fact-Finding Procedures](#) for cases involving possible violations of the University-Wide Statement on Rights and Responsibilities involving students from two or more Faculties or cases alleging that students from one Faculty have disrupted the performance of normal duties and activities within another Faculty. Students are expected to comply with and respect the rights guaranteed by the University-Wide Statement of Rights and Responsibilities and related guidance including but not limited to the [Statement of the President and Deans on University Rights and Responsibilities dated February 28, 2002](#); the [Statement of the Interim President and Deans of Harvard University on University Rights and Responsibilities dated January 19, 2024](#); the [Update on University Rights and Responsibilities](#) and [University Committee on Rights and Responsibilities: Fact-finding Procedures](#); and the [Update on University Committee on Rights and Responsibilities dated April 14, 2025](#).

The foregoing principles reflect and incorporate standards of conduct that include the following:

In general, students, whether or not they are on campus or are currently enrolled as a degree candidate, shall behave in a mature and responsible manner, which includes taking responsibility for their own well-being.

Misconduct that may subject a student to disciplinary sanctions includes: cheating, plagiarism, forgery or other forms of academic dishonesty; furnishing false information to University officials; and disruption or obstruction of teaching, research or other University activities, including by occupation of a University building. Any of the following behaviors are also potential grounds for disciplinary sanctions: physical violence or abuse (including without limitation sexual assault); verbal abuse, harassment, coercion or other conduct that threatens the health or safety of any person or persons; theft of or damage to Harvard or Harvard Community members' property; violation of published University rules or federal, state, or local law on University premises or at University sponsored activities; and misuse or abuse of library or computer facilities. Students must engage constructively, in good faith, and honestly with Law School and University administrators and faculty concerning school-related matters. Students may consult informally with advisors on such matters but are required to engage with administrators and faculty directly and on their own behalf. Other forms of misconduct not enumerated here that violate HLS Community Principles or the University-Wide Statement on Rights and Responsibilities (provided above) may also subject students to discipline.

I. Requirements for the J.D. Degree

A. Residence

1. Attendance at Harvard Law School is full-time, in-person for a period of three academic years, which consists of the fall, winter, and spring terms. Students are expected to maintain full-time enrollment in the first-year program and the minimum credit requirements stated in the Upper-Level J.D. Residency Requirements (**Section I(I)**). To be awarded the J.D. degree, a student must complete a minimum of 88 credits.
2. Students enrolled at the Law School may not be simultaneously enrolled, either full-time or part-time, in any other school or college either within Harvard University or at any other institution, unless they are enrolled in one of the Law School's joint degree programs, are completing a semester at a foreign institution in an approved study abroad program or are cross-registered in courses authorized by the Law School.
3. Except in extraordinary circumstances and as approved by the Law School's Administrative Board, students must complete the degree requirements for the J.D. within seven years of matriculation in law school. Additionally, students should note that some jurisdictions may prescribe a shorter period of time during which the J.D. must be completed.
4. In accordance with Harvard Law School policy, students may not be employed for more than 20 hours of work per week during the academic year while classes are in session.
5. The relevant registration, application, and submission deadlines for the current year are set forth in **Sections VI through IX**.

B. Statement of Learning Outcomes

Harvard Law School prepares students to be outstanding lawyers who will achieve success in all parts of the profession and become leaders who further the best ideals of law and justice across many fields. The Law School's programs and activities are designed to enable each student to achieve, at a minimum, the following competencies:

1. Knowledge and understanding of substantive and procedural law, and the domestic, international, and transnational institutions that make and apply law;
2. Aptitude for legal analysis and legal reasoning;

3. Appreciation of and commitment to the values and responsibilities of members of the legal profession;
4. Proficiency in the use of professional skills including: research as to law and fact, communication, presentation, and problem solving.

C. First-Year J.D. Course and Credit Requirements

The first-year J.D. degree requirements are:

1. The required first-year courses: Civil Procedure, Constitutional Law, Contracts, Criminal Law, Legislation and Regulation, Property, and Torts;
2. Completion of the January Experiential Term;
3. First-Year Legal Research and Writing, which includes the First-Year Ames Moot Court Program; and
4. A spring upper-level elective course of a minimum of two and a maximum of four law school classroom credits.

The courses noted in this section constitute full-time enrollment during the first year of study. Clinic participation and cross-registration are not permitted during the 1L year.

D. Upper-Level J.D. Course and Credit Requirements

Table 1 - Upper-Level Credit Requirements

Total Minimum Credits	Minimum Classroom Credits	Maximum Clinical Credits	Maximum Writing Credits	Maximum Cross-Registration Credits
52	36	16	12	12

After satisfactory completion of the first-year Law School requirements, all J.D. students must earn no fewer than 52 additional credits in upper-level work, including:

1. Required Law School Classroom Work

Students must complete at least 36 credits in law school classroom work (includes law school courses, seminars and reading groups, but not writing, clinical, or cross-registration credits). Law school classroom courses taken during the upper-level years in fulfillment of the Professional Responsibility Requirement, the International and Comparative Law Requirement, and the Negotiation/Leadership Requirement count toward this minimum. See [Section I\(G\)](#), [Section I\(H\)](#), and [Section I\(I\)](#).

2. Required Additional Credits

Students may earn the remaining required 16 credits by completing written, clinical, or additional law school classroom work and by completing courses taken through cross-registration. Written work, clinical, and cross-registration credits do not count toward the law school classroom credit required minimum.

The following rules apply to these additional credits:

- a) **Clinical Work:** Up to 16 credits may be earned through clinical work. Students may enroll in only one clinic per term. Questions about clinical credits should be addressed to the [Office of Clinical and Pro Bono Programs](#). See also **Section III(B)(2)**.
- b) **Written Work:** Up to 12 credits may be earned through written work (including work satisfying the J.D. Written Work Requirement) (see **Section I(L)** and **Section III(A)**). Credits earned through writing for additional credit in a course, seminar, or workshop are assigned to the same term as the course, seminar, or workshop, or in the case of a three-credit winter course, to the adjacent spring term. The credits assigned to a piece of written work may not be adjusted after the grade for that work has been submitted.
- c) **Cross-Registration, Joint, and Coordinated Degrees:** Up to 12 credits may be earned in courses taken through cross-registration or, in most cases, at another School as part of a joint or coordinated degree program. See **Section III(C)** and **Section III(E)**. See requirements for individual [joint degree programs](#) for details.
- d) Ordinarily, a student may not exceed the maximum limits on credits for clinical work, written work, and cross-registration. In exceptional cases, when a student is on track to meet the upper-level credit requirements as set out in this Handbook (including the minimum of 36 law school classroom credits), the student may be permitted to exceed the credit limits for clinical work (with the permission of the [Office of Clinical and Pro Bono Programs](#)), written work, or cross-registration (with permission of the [Associate Dean for Academic Programs](#)), provided that, in so doing, the student exceeds the 52 upper-level credit minimum by the same number of credits. In addition, any clinical or written work credits taken in excess of the maximum credit limits will not count toward GPA calculations (see **Section I(T)(8)(c)**), but they will be included to determine a student's eligibility for Latin honors (see **Section I(T)(2)**).

3. Transfer Student J.D. Program - Special Considerations

- a) Law courses taken before matriculation at Harvard Law School will be considered part of the transfer student's first year of J.D. studies and may not be used to meet any Harvard Law School upper-level credit requirements and will not be included in

Latin honors calculations. Transfer students' eligibility for Latin honors will be based on credits taken in their upper-level years.

- b) Transfer students must satisfy the Law School's first-year requirements (with the exception of the 1L January Experiential Term) and can do so through demonstrating completion of comparable courses at their prior institution or completion of qualifying courses after matriculation at Harvard Law School. For the list of qualifying courses, please consult the [Office of the Registrar](#). In addition, transfer students must complete the Professional Responsibility Requirement, the International and Comparative Law Requirement, the Negotiation/Leadership Requirement, and the Analytical Paper and Professional Writing Requirements.
- c) Harvard Law School courses taken by a transfer student—including first-year law school courses and qualifying courses taken after matriculation to bring the transfer student into compliance with Harvard Law School's first-year requirements—may be used toward the 52 upper-level credit minimum and will count in overall performance in the 2L or 3L year according to the rules set forth in this Handbook (i.e., Credit/Fail and cross-registration courses are not included in Latin honors calculations or in determining eligibility for Latin honors (see **Section I(T)**). Transfer students who need to complete a first-year Harvard Law School required course(s) must complete the course(s) during their first year of matriculation into the law school.
- d) All transfer students, regardless of the number of credits completed in their 1L year, must complete a minimum of 83 total credits to earn the J.D.
- e) Transfer students may seek pro bono credit for work completed at their prior law school or during the summer prior to coming to Harvard Law School. For more information about the [Pro Bono requirement](#), please see the [Pro Bono Requirement webpage](#) or contact the [Office of Clinical and Pro Bono Programs](#).

4. Minimum Credit Requirement for VA Benefit-Eligible Students

The VA relies on HLS minimum term residency policies as well as course meeting dates to calculate full-time status (see **Section I(A)** and **Section II(A)(1)**.) Students eligible for housing benefits through the Department of Veterans Affairs (VA) must meet these minimum residency credits throughout all weeks of the term to be eligible to receive 100% of those benefits. Please note that students enrolled in classes that don't meet for the full term (termed "non-standard terms" by the VA) may see their housing allowance benefit prorated if the total credit load of their other full-term courses does not equal minimum residency. Tuition-related benefits are not affected by this requirement. The VA will pay the full tuition-related benefits for which a student is eligible regardless of whether the student is enrolled in minimum residency.

E. Definition of the Law School Credit Hour

The American Bar Association standards for accrediting law schools use a formula for calculating the amount of work that constitutes one credit hour. In accordance with ABA Standard 310(b), "a 'credit hour' is an amount of work that reasonably approximates: (1) not less than one hour of classroom or direct faculty instruction and two hours of out-of-class student work per week for fifteen weeks, or the equivalent amount of work over a different amount of time; or (2) at least an equivalent amount of work as required in subparagraph (1) of this definition for other academic activities as established by the institution, including simulation, field placement, clinical, co-curricular, and other academic work leading to the award of credit hours."

Harvard Law School meets the requirements of Standard 310 as follows:

- 1) For classroom and simulation courses, courses must meet 60 minutes per week over 12 weeks for each credit awarded.
- 2) For clinical courses during the fall and spring semesters, students must work four 60-minute hours each week over 12 weeks for each credit earned. For more information about clinical credit hours see **Section III(B)**.

Faculty are required to evaluate their syllabi to ensure that assigned reading and writing exercises required in preparation for class are a reasonable approximation of the out-of-class student work standard of two hours per week per credit hour.

F. Experiential Learning Requirement

Students must earn no fewer than six credits qualified as "experiential learning" courses. The [Harvard Law School Course Catalog](#) identifies which courses and clinical offerings fulfill the experiential learning requirement. In accordance with ABA standards, students may not use a course to satisfy more than one of the experiential learning requirement, the professional responsibility requirement, and the analytical paper component of the written work requirement (or, for J.D. students who matriculated prior to Fall 2023, either Option 1 or Option 2 of their written work requirement). Individual state bars may have separate experiential learning (or equivalent) requirements for admission; students are advised to check those requirements for any state in which they may seek to practice.

G. Professional Responsibility Requirement

1. All students must complete a minimum of two law school classroom credits to satisfy the Professional Responsibility Requirement. A listing of qualified courses can be found in the [Harvard Law School Course Catalog](#).

2. The classroom components of certain clinical courses, as identified in the course descriptions, may satisfy this requirement. A list of clinical courses that satisfy this requirement can be found on the [Office of the Registrar's website](#).
3. Ordinarily, students are not allowed to enroll in two non-clinical professional responsibility courses that satisfy the requirement. Students who have enrolled in a clinical course that satisfies the Harvard Law School Professional Responsibility Requirement may enroll in one additional Legal Profession course if desired. Questions about this rule should be directed to the [Associate Dean for Academic Programs](#).
4. In accordance with ABA standards, students may not use a course to satisfy more than one of the experiential learning requirement, the professional responsibility requirement, and the analytical paper component of the written work requirement (or, for J.D. students who matriculated prior to Fall 2023, either Option 1 or Option 2 of their written work requirement).

H. International and Comparative Law Requirement

J.D. students must complete one course of at least three classroom credits that satisfies the International and Comparative Law Requirement. A listing of qualified courses can be found in the [Harvard Law School Course Catalog](#). Successful completion of an HLS-approved study abroad program (see **Section III(F)(1)**) will fulfill the International and Comparative Requirement.

I. Negotiation/Leadership Requirement

Beginning with students matriculating into the J.D. program in Fall 2023, J.D. students must complete a course or clinic, or a combination of offerings as specified in the course catalog, of at least two credits that satisfies the Negotiation/Leadership Requirement. Offerings satisfying this requirement are designated in the [Harvard Law School Course Catalog](#), some of which may be taken in the 1L January Experiential Term or 1L Spring Term.

J. Upper-Level J.D. Residency Requirements

1. The upper-level residency requirements are:

Table 2 - Upper-Level J.D. Residency Requirements

Residency Requirements	Minimum Total Credits	Maximum Total Credits
Each Year	24	35
Each Fall and Spring Term	10	16
Each Winter Term	2	3

2. In addition to fulfilling the upper-level course and credit requirements in **Section I(D)**, upper-level students must register for and receive a grade or an "Extension" (EXT) notation (see **Section I(Q)**) in:
 - a) Not fewer than 24 nor more than 35 credits each year in each of the 2L and 3L years, regardless of the number of credits needed to complete the required 52 upper-level credits;
 - b) Not fewer than 10 nor more than 16 credits in each fall and spring term, no fewer than eight of which each semester must be for law school work. No fewer than four of the eight law school credits must be for law school classroom credit or clinical work that qualifies for experiential learning credit.
 - c) Not fewer than two nor more than three credits in each of two upper-level winter terms, all of which must be for law school classroom or clinical work or for written work under the Winter Term Writing Program (see **Section III(A)(2)**). Full-time residency is required during each of the two required upper-level winter terms. Cross-registration into other schools during the winter term may be allowed in limited circumstances. Students considering winter term cross-registration should contact the [Office of the Registrar](#).
 - d) Individual state bars may have additional law school residency requirements; students are advised to check those requirements for any state in which they may seek to practice.
3. **Waivers:** Any student wishing to seek a waiver from these upper-level J.D. residency policies should contact the [Office of the Registrar](#). The rules and practices with respect to waivers are established and administered under the supervision of the Administrative Board.

K. Joint and Coordinated Degree Credit and Residency Requirements

Students enrolled in one of the Law School's joint or coordinated degree programs may meet credit and residency requirements in part through courses taken at the other school. For more information, see **Section III(E)** and the [relevant program description](#). For questions about the joint, concurrent, and coordinated degree program opportunities for J.D. students, contact HLS [Academic Programs](#). For questions about degree requirements at the other school, students should contact the appropriate administrator at the relevant school.

L. J.D. Written Work Requirement

All students are expected to pursue serious written work. The Written Work Requirement for J.D. students matriculating into HLS prior to Fall 2023 is set forth in Section 1 below. The Written Work Requirement for J.D. students matriculating into HLS in Fall 2023 and thereafter is set forth in Section 2 below.

1. Students Matriculating Prior to Fall 2023

a) Option 1

- i. **Description:** Option 1 requires a substantial research paper of publishable or professional quality, to be written in close consultation with a Law School faculty member or instructor with a Law School teaching appointment, through independent written work (for two or three credits), or for additional credit in a course, seminar, or workshop (for one, two, or three credits). (Note: credits earned through writing completed for additional credit in a course, seminar, or workshop are assigned to the same term as the course, seminar, or workshop, or in the case of a three-credit winter course, to the adjacent spring term.)

The substantial work involved in these papers typically produces a final product of 30-60 pages for a two-credit effort. Students may also pursue a larger project for a maximum of three credits and aim for 100-200 pages. These papers can take the form of academic scholarship, policy analysis, or professional legal analysis and must be a substantial undertaking at least comparable to the time demanded by a semester-long course or seminar. When pursuing an empirical project, appropriate length, scope, breadth, etc., should be determined in consultation with the faculty supervisor.

Work done as a research assistant or teaching fellow with a Law School faculty member may, in some circumstances, be used to satisfy Option 1. See **Section [III\(A\)\(1\)\(c\)](#)**.

Work that cannot be used to satisfy Option 1 includes, but is not limited to, continuation of previous work, required coursework (except for writing completed for additional credit in a course, seminar, or workshop), or paid work.

- ii. **Registration for Option 1:**

Deadlines (see also **Section [VII](#)**): Students must register for Option 1 of the J.D. Written Work Requirement in advance of engaging in the work by submitting the required [registration form](#) to the faculty supervisor for approval, and then submitting the form to the Office of the Registrar by the

second Friday in October for fall term (2Ls and 3Ls), by the second Friday in November for the winter term, and by the second Friday in February for spring term (all J.D. students). Forms are available in hard copy at the Office of the Registrar, WCC 4007 and [online](#).

b) Option 2

- i. **Description:** Option 2 requires two pieces of writing, which could include any of the following, provided that at least one of the pieces is written under the supervision of a Law School faculty member or instructor with a teaching appointment.
 - a. **Lawyer's work product:** including substantial original writing in a clinic (with approval of the clinic director), upper-level moot court briefs, or the equivalent, as certified by the supervisor of the relevant program, but not written work from a summer job or paid work;
 - b. **Law school course and seminar papers:** substantial writing as part of a clinical course or seminar, including the standard series of reaction papers, amounting to no fewer than 15 pages;
 - c. **Law journal writing:** including draft code and legislation, notes, book reviews, descriptions of developments in the law, and the like (totaling no fewer than ten publishable pages);
 - d. **Nontraditional writing produced under faculty supervision:** including interactive web-based material, surveys of students or practitioners with analysis, case study materials appropriate for classroom use, or other law-related persuasive or descriptive writing as approved by a Law School faculty member or instructor with a Law School teaching appointment.
- ii. **Registration for Option 2:** (see also **Section VII**): Students must register for Option 2 of the J.D. Written Work Requirement by submitting the [registration form](#) with required signatures to the Office of the Registrar by February 1 of the third year, or the following business day if February 1 falls on a weekend. The form is available in hard copy at the Office of the Registrar and [online](#). A student with concerns about whether a particular piece of writing satisfies Option 2, or with questions about registering, should contact the [Office of the Registrar](#). For clinical writing, questions should be directed to the [Office of Clinical and Pro Bono Programs](#).

2. Students Matriculating Fall 2023 and Thereafter

J.D. students matriculating into HLS in the Fall 2023 and thereafter must meet the written work requirement by completing an analytical paper and professional writing. In order to satisfy the requirement, drafts of both the analytical paper and professional writing must receive supervisor and peer review prior to final submission. Supervisor reviews are typically conducted by an HLS faculty member or instructor holding a Law School teaching appointment; peer review is typically exchanged between HLS students – students must give as well as receive review – and must be delivered in writing.

- a) **Analytical paper requirement.** In their second or third year, each J.D. student is required to write a research paper of at least 20-25 pages under the supervision of an HLS faculty member or instructor holding a Law School teaching appointment. The paper must receive both instructor and peer review of a draft prior to final submission. This requirement may be satisfied through papers written on an independent basis with Law School faculty or instructor supervision, or through qualifying papers written for a course, seminar, or workshop.
 - i. **Paper Length and Credits.** The parameters for written work credit for analytical papers under this requirement and optional written work ([Section III\(A\)\(1\)](#)) are as follows. Instructors may determine that a shorter paper in any of the categories below merits full credit due to the nature of the work involved, such as papers involving extensive data collection and/or analysis.
 - **One credit for 20-25 pages**
 - **Two credits for 50 or more pages**
 - **A maximum of three credits for 75 or more pages**
 - ii. **Peer Review.** For peer review, students are expected both to give written feedback to another student on a substantially complete draft and to receive feedback on their own drafts. Feedback for this purpose should include substantive comments as well as suggestions for editing. While there may well be follow-on discussion between students in class, neither verbal discussion alone nor workshopping (structured verbal discussion in or out of class) satisfies the requirement.
- b) **Professional writing requirement.** The professional writing requirement is a piece of written work that would typically be created in the course of legal practice by an attorney. The requirement must be satisfied with written work(s) of at least 5 pages, created as part of a clinic or a course that satisfies the experiential learning requirement, upon approval from the supervising faculty member. A course that requires written work supervised by an HLS faculty member may satisfy the requirement upon advanced approval by the faculty member and the [Associate](#)

[Dean for Academic Programs](#). For a professional writing work to meet the requirement a draft will need to receive written feedback by the instructor and a peer.

For questions about the professional writing requirement, please contact the Office of Clinical and Pro Bono Program's [Senior Director](#).

Faculty members may consider the following factors in evaluating whether the professional writing produced in clinics, externships, and/or experiential learning courses satisfies the professional writing requirement:

- Amount of time spent on the written work product(s)
- Length of written work product(s)
- Original contribution of student to written work product(s)
- Degree of legal analysis, complexity of issues addressed
- Quality of written work product(s), including clarity, persuasiveness, efficacy for desired goal
- Extent of peer and supervisor feedback on written work product(s)
- Audience for the written work product(s), i.e., client, partner, advocacy target

Individual contributions to a team written work product may satisfy the professional writing requirement when evaluated in the context of the above listed factors.

Examples of written work that do not satisfy the requirement include, but are not limited to, templates, forms, routine emails and texts, personal reflection papers, journal entries, and writing that does not incorporate original legal analysis or peer or supervisor feedback.

For externships, instructors may rely on supervisor review and confirmation that the work product sufficiently meets the evaluation criteria to constitute professional writing. Work product created as part of the independent clinical program will not satisfy the professional writing requirement.

Further information regarding satisfaction of the two components of the written work requirement is available on the [J.D. Written Work Requirement FAQ webpage](#).

3. Experiential Learning, Professional Responsibility, and Written Work

In accordance with ABA standards, students may not use a course to satisfy more than one of the experiential learning requirement, the professional responsibility requirement, and the analytical paper component of the written work requirement (or, for J.D. students who matriculated prior to Fall 2023, either Option 1 or Option 2 of their written work requirement).

4. Supervision

Students may ask any Law School faculty member or instructor with a Law School teaching appointment to supervise written work. Faculty on certain types of leave may not be available in a given term.

5. Supervision by Visiting Faculty

Writing credits under the supervision of visiting faculty must be registered for, and ordinarily completed, during the term(s) of the visitor's appointment. Note that many visitors have Law School appointments for only one term. Students with questions about visiting faculty supervision outside of the faculty member's term of appointment should contact the [Office of the Registrar](#).

6. Prohibition Against Compensation

A student may not receive academic credit for written work for which they also receive compensation, with the exception of summer internships for which J.D. students may seek approval from the [Associate Dean for Academic Programs](#) to receive academic credit.

7. Multiple Use of Papers

Occasionally students seek to submit one paper for two or more courses or seminars. In such cases, the second paper must be of sufficiently greater scope or depth to warrant such multiple credit. In order to assure compliance with this requirement, any student planning to submit the same or similar written work in more than one academic offering must first get the approval of the [Associate Dean for Academic Programs](#) by submitting a memo that documents:

- The courses and instructor(s) for the original and subsequent paper.
- A brief description of the new project/paper anticipated, and must set forth the way in which the paper will meet the added requirement described herein.
- The text (if any) and approximate pages from the prior papers that will be re-used verbatim or mostly verbatim in the new work.

Please also attach the original paper or written work. The instructor(s) involved should discuss appropriate ways to make sure that the submitted work meets this greater burden. When the written works are completed for two different instructors, this memo must be signed by the instructors for both courses. If a student is contemplating using written work developed outside of the HLS Academic Program, please first consult with the [Associate Dean for Academic Programs](#) (J.D. students) or the [Assistant Dean for Graduate Program and International Legal Studies](#) (LL.M. students).

Once the [Associate Dean for Academic Programs](#) approves the project, the memo must then be submitted to the [Office of the Registrar](#) before the student is accorded the requested credits. This rule applies to submission of work in any offering whether at the Law School or elsewhere. A student who submits the same, or substantially the same, work in more than one course without such prior permission, will be subject to disciplinary action.

8. Human Subjects Research

Harvard Law School projects involving human subjects must be reviewed by the Harvard University Area Institutional Review Board (HUA IRB). The HUA IRB is situated in the Office of the Vice Provost for Research (OVPR) and serves as the ethics board for research studies conducted by Harvard affiliates at the Law School and beyond.

Students considering projects that may fall within IRB purview should first review the University's policies on use of human subjects in research and instructions for how to submit to the IRB. This includes the [IRB Lifecycle Guide](#), which provides introductory information about all stages of the IRB review process, including guidance on how the IRB defines "research" and "human subjects." A more comprehensive explanation of these policies can be found in the HUA Investigator Manual, which also includes guidance for research protocol preparation and detailed information on how to obtain informed consent from subjects. The most current version of the manual can be found in the [IRB's library of documents](#) in the online submission system [ESTR](#).

Students seeking to conduct research involving human subjects (e.g., through using methods including but not limited to interviews or surveys) should contact the IRB to confirm if their work will contribute to generalizable knowledge as per the IRB definition and requires IRB oversight. The HUA IRB assigns [dedicated reviewers to departments and schools](#) who can assist with this decision. These reviewers can be contacted directly and offer office hours as well. For general questions, students may also email cuhs@harvard.edu or call (617) 496-2847.

Importantly, human subjects research projects cannot receive retroactive approval; IRB approval must be obtained before research is initiated. Note that students should allow sufficient time for IRB review and provide their IRB reviewer with details of their proposed timeline. While the IRB tries to help students meet their preferred timelines, late-breaking requests for review may not be accommodated.

In addition, students whose research involves the collection or storage of human subject information must establish data security procedures that reflect the sensitivity of the data and in accordance with the Harvard Research Data Security Policy. Students should consult their faculty supervisors and the Information Technology Services (ITS) Department (at security@law.harvard.edu) for additional information.

M. Pro Bono Requirement

As a condition for graduation, Harvard Law School requires all J.D. students to contribute at least 50 hours of uncompensated, pro bono legal work. Individual state bars may have separate pro bono requirements for admission; students are advised to check those requirements for any state in which they may seek to practice.

Work qualifying for the pro bono service requirement must be legal and supervised by a licensed attorney and must be performed on behalf of (1) people who cannot afford, in whole or in part, to pay for legal services; (2) the government; (3) a non-profit organization as defined under IRS sections 501(c)(3) or 501(c)(4); (4) a law firm working on a pro bono basis; or (5) a foreign equivalent of any of the above. The work must involve the application or interpretation of law, the formulation of legal policy, the drafting of legislation or regulations and/or work done in anticipation of litigation and should not be clerical. Political campaign-related work may be credited toward the Harvard Law School pro bono service requirement under the conditions indicated in the School's Pro Bono and Written Work Credit for Political Activities (**Section I(N)**) policies. The pro bono work may be, but need not be, performed in a setting in which Harvard Law School clinical credit is given or, in some instances, through the Law School's volunteer student practice organizations. Summer public interest work funded through the Summer Public Interest Funding Program (SPIF) will ordinarily count toward the requirement if the work meets the [pro bono requirements](#), is legal, and is supervised by a licensed attorney.

Pro bono service may be performed in an approved supervised setting anytime between the start of the 1L year and spring break of the 3L year, including the summers between law school years. Transfer students may seek pro bono credit for work completed at their prior law school or during the summer prior to coming to Harvard Law School.

For more information about the Pro Bono requirement, please see the [Pro Bono Requirement webpage](#) or contact the [Office of Clinical and Pro Bono Programs](#) which administers the requirement.

N. Pro Bono and Written Work Credit for Political Activities

Harvard Law School is committed to the free and open expression of ideas, and Harvard Law School's institutional commitment to free expression applies with equal force in the context of electoral politics. Harvard Law School encourages members of the community—

faculty and staff as well as students—to participate, in their personal capacities, in politics at all levels.

However, federal law provides that Harvard may not “participate in, or intervene in (including the publishing or distributing of statements), any political campaign on behalf of (or in opposition to) any candidate for public office.” This prohibition on Harvard’s direct and indirect institutional participation in partisan politics is expressed in Sections 501(c)(3) of the Internal Revenue Code, as a condition that Harvard must satisfy in order to preserve and retain its status as a tax-exempt organization. In addition, the Federal Election Campaign Act (“FECA”) prohibits corporations from making direct and indirect “contributions” in connection with a campaign or candidate. Contributions include services and anything of value.

1. Pro Bono Credit

A student’s time spent volunteering for a political campaign may be credited toward the Harvard Law School pro bono service requirement under the following conditions:

- a) Service on political campaigns should continue to be one of a broad array of service-related pro bono activities (including work for nonprofit organizations, charities, NGOs, government entities) from which students may freely choose.
- b) Faculty and staff will take care not to steer students to a campaign as a means of satisfying the pro bono requirement.
- c) Harvard Law School should administer the award of credit in an evenhanded, politically neutral manner.
- d) Students, faculty and staff should not use University resources in undertaking the political activity.
- e) For details regarding the School's requirements for pro bono legal work, see **Section I(M)**.

2. Written Work Credit

Awarding academic credit is typically more likely to involve the use of Harvard resources, including faculty involvement and assistance. Therefore, additional restrictions and conditions are placed on awarding academic credit for written work related to campaign activity. A student may receive and faculty may supervise written work credit related to political campaign activity only under the following conditions:

- a) A writing project arises out of campaign-related activities, provided the work is not directed by, prepared for, or to be submitted to a political campaign or any individual working with a campaign.

- b) All written work submitted for academic credit must comply with the ordinary terms and conditions Harvard Law School imposes for granting writing credits, as stated in this Handbook.
- c) Faculty and staff will not steer students to a campaign as a means of obtaining writing credits.
- d) Harvard Law School should administer the award of credit for written work in an evenhanded, politically neutral manner.

Whether Harvard Law School would be viewed as participating indirectly or directly in a campaign will depend on the facts giving rise to the particular request. For more information, see the Harvard University [Office of the General Counsel's website](#).

O. Class Attendance and Participation; Overlapping Class Times

Class work is essential to the educational program at the Law School. Regular, in-person attendance at classes and clinics, participation in class and clinic work, and compliance with rules and norms for classrooms and clinics, are expected of all students. In the case of substantial delinquency in attendance, unsatisfactory performance of clinic responsibilities, or failure to comply with classroom or clinic rules and norms, the Law School may, after written notice, involuntarily withdraw a student from the course or clinic in question.

Students who believe they need to miss classes for an extended period of time must speak with the [Dean of Students](#) who can assist with such situations and can help students comply with the Law School's attendance policy and related academic policies. In most cases, a student's absence from all of their classes for more than two weeks will be cause for a leave of absence and administrative withdrawal from all courses. The permissible period of absence for short courses and winter term courses will be less than two weeks.

Students will not receive credit for courses (including courses taken through cross-registration), clinics, seminars, or reading groups with meeting times that overlap in whole or in part. Students must also allow for sufficient travel time between classes. Students may not make arrangements with faculty members to arrive late or leave early from a class.

Students anticipating missing class may be eligible to receive audio recordings for certain types of absences pursuant to the Law School's Class Recording Policy which is available in **Section [XIII\(F\)](#)**.

Absences Due to Religious Beliefs

In accordance with Massachusetts law, any student who is unable, because of their religious beliefs, to attend classes or to participate in any examination, study or work requirement on a particular day shall be excused from any such examination or study or work requirement, and shall be provided with an opportunity to make up such examination, study or work requirement which they may have missed because of such absence on any particular day; provided, however, that such makeup examination or work shall not create an unreasonable burden upon the Law School. No fees of any kind shall be charged by the Law School for making such opportunity available to the student, and no adverse or prejudicial effects shall result to any student because they avail themselves of this opportunity. (See [Massachusetts General Laws, Chapter 151C, Section 2B.](#))

P. Grades for J.D. Students

1. Honors, Pass, Low Pass, or Fail Grades

All Law School courses, seminars, clinics and written work—with the exception of courses offered Credit/Fail—will be graded Honors, Pass, Low Pass, or Fail (“H, P, LP, or F”).

2. Dean’s Scholar Prizes

Dean’s Scholar Prizes (represented on the transcript as an H*) may be awarded in recognition of outstanding work in classes and clinics with seven or more Law School J.D. and LL.M. students. Dean’s Scholar Prizes may not be awarded in courses or clinics graded on a Credit/Fail basis, or for any writing credits and independent clinics.

3. Credit/Fail Grades

- a) Faculty may not award Credit/Fail grades without prior consultation with the [Dean for Academic and Faculty Affairs](#).
- b) All reading groups and independent clinics will be graded on a Credit/Fail basis.
- c) Students completing work at foreign institutions as part of the Law School’s study abroad programs, in approved concurrent or joint degree programs, and in approved exchange and visit out programs receive commensurate academic credit toward their J.D. degree. Grades awarded by other institutions are not reflected on a student’s HLS transcript.
- d) See Section [ICT](#) regarding credit/fail grades and eligibility for Latin honors.

Q. Extensions

1. Extensions are available for required coursework (excluding exams) or papers only with the approval of the instructor, or the [Dean of Students](#) in consultation with the instructor in cases of personal or medical emergency. See **Section VIII(B)**. The due date is established in coordination with the student and the instructor and the [Dean of Students and Community Engagement, Equity, and Belonging Office](#) when appropriate. In order to track the progress of student papers in a course or written work for which an extension has been given, the Law School uses an “Extension” (EXT) transcript notation. Students who have an approved extension will receive an EXT notation on the transcript until the work is completed and graded. EXT notations must be resolved by no later than the last day of classes of the semester (fall or spring) that follows the originally scheduled completion of the course or written work or earlier deadline as set by the instructor. If a student fails to complete the work by that date or to receive a further extension, the Registrar’s Office generally will withdraw the student from the course or written work and enter a WD on the transcript. However, if failure to complete credits for a course or written work will result in a student dropping below the semester or year required credit minimum, the student must complete the work or receive an F grade.
2. First and second-year J.D. students should note that course, seminar, or writing credits with EXT notations may not be used to meet any credit requirements in the following year(s).
3. Credits in courses with an EXT notation at the end of the academic year will not be included in assessing a student’s eligibility for the grade-based [Sears Prizes and Morgan and Helen Chu Prizes](#). Students with EXTs may not be eligible for clinical student court practice certification. (See **Section I(C)**, **Section I(D)**, and **Section I(Q)**).

R. Grade Changes

After an instructor has submitted a grade to the Registrar, the instructor may change the grade only if the grade is incorrect as a result of an arithmetical, administrative, or other mechanical error. The instructor will determine whether or not the grade is a result of such an error. The [Dean for Academic and Faculty Affairs](#) must approve any grade changes pursuant to this policy.

An instructor’s grade determination is not subject to review on the merits by the Dean, Deputy Deans, the [Dean of Students](#), the [Registrar](#), or other administrators. An instructor may not change a grade based on a reevaluation of a student’s work, except by requesting and obtaining approval for such change from the faculty.

After degrees are voted and approved by the faculty, grades for graduating students cannot be changed by an individual faculty for any reason.

Under the circumstances specified in the [Standing Policies of the Administrative Board Concerning Exam Administration](#) a student may be entitled to grading relief for a grade affected adversely by an administrative irregularity (for example, a failure of exam software). The procedures for seeking such relief are set out in those Policies. Grade changes may also be made by the School's administration as the result of a disciplinary proceeding against a student.

Questions about grading policies and their application in particular instances can be directed to the [Registrar's Office](#) or the [Dean of Students and Community Engagement, Equity, and Belonging Office](#).

S. Completion of Course Evaluations and Grade Release

Course evaluations provide valuable feedback about the curriculum to faculty, administrators, and students. To encourage submission of evaluations, students who complete and submit all of their course evaluations in a given term will receive grades for that term one or more weeks prior to students who do not submit all course evaluations. This policy does not apply to graduating students in their final term.

T. Graduation with Honors

1. An eligible student who completes the requirements for the J.D. degree with distinction will receive the degree with one of the following Latin honors: *cum laude*, *magna cum laude*, or *summa cum laude*.
2. To be eligible for Latin honors, a student must complete 2/3rds of credits taken while enrolled at HLS in courses, clinics, and writing graded in accordance with the Law School's standard grading scheme of Dean's Scholar Prize, Honors, Pass, Low Pass, and Fail. Credits earned in Law School courses or clinics graded credit/fail or earned through cross-registration, study abroad, or joint degree or other courses taken in another school will not count toward the required 2/3rd minimum credits required for eligibility for Latin honors.
3. Latin honors at graduation will be based on the average of the three annual grade point averages (GPA). GPA will be calculated for each year of study and then averaged across the three years to determine Latin honors.
4. (a) The annual GPA will be calculated by assigning the following values to grades: Honors: 4; Pass: 3; Low Pass: 2; Fail: 0. Dean's Scholar Prize awards will carry an additional point.

(b) For all students, in calculating annual GPAs, each grade, including the Dean's Scholar Prize, is weighted in accordance with the number of credits earned in the course.

5. The *summa cum laude* will be determined by the requirement of a 4.75 GPA. The honor is exact and does not involve "rounding off"; i.e., a GPA of 4.749 does not result in a degree *summa cum laude*. If, in a given year, no student earns a GPA of 4.75 or higher, *summa cum laude* will be awarded to the eligible student (or students in the case of a tie) with the highest overall GPA.
6. The *magna cum laude* will be awarded to the next ten percent of the entire class eligible for Latin honors.
7. The *cum laude* will be awarded to the next 30 percent of the entire class eligible for Latin honors.
8. All eligible students who are tied at the margin of a percentage required for Latin honors will be deemed to have achieved the required percentage for the appropriate Latin honors. Students who graduate in November, February or March will be granted Latin honors to the extent that students with the same GPAs received Latin honors the previous May.
9. The following are not included in eligibility for or calculations of Latin honors for any student:
 - a) Credit/Fail courses, including study abroad courses.
 - b) Cross-registration courses.
 - c) Clinical work or written work done after a student has completed the maximum credits as noted in **Section I(D)(2)**.
 - d) Courses taken outside of Harvard Law School through a Law School joint or coordinated degree program.
 - e) Courses taken through the Berkeley Exchange Program or the Program for Third-Year Visits.
 - f) Grades earned in law school prior to matriculation to Harvard Law School.
 - g) "Withdrew after Deadline" (WD) notations.

U. Grade-Based Prizes

1. Harvard Law School has established academic prizes, including the Sears Prize and the Morgan and Helen Chu Prizes, that are awarded based on a student's annual grade point average in the 1L, 2L, 3L, and LLM years.
2. To be eligible for grade-based academic prizes, a student must complete 3/4 of credits taken during the academic year recognized by the prize in courses, clinics, and writing graded in accordance with the Law School's standard grading scheme of Dean's Scholar Prize, Honors, Pass, Low Pass, and Fail. Credits earned in Law School courses or clinics graded credit/fail or earned through cross-registration, study abroad, or joint degree or other courses taken in another school will not count toward the required ¾ minimum credits required for eligibility for grade-based academic prizes.
3. Students who have completed three years enrolled at HLS who have completed 2/3 of their overall credits in accordance with the Law School's standard grading scheme of Dean's Scholar Prize, Honors, Pass, Low Pass, and Fail will be eligible for the Fay Diploma. Credits earned in Law School courses or clinics graded credit/fail or earned through cross-registration, study abroad, or joint degree or other courses taken in another school will not count toward the required 2/3 minimum credits required for eligibility for the Fay Diploma.

V. Satisfactory Academic Progress

1. Minimum Grades for J.D. Students

a) The minimum grade required for completion of the J.D. credit requirements is a grade of Credit in the first-year January Experiential Term course and a grade of Low Pass in all other required courses and for the total number of credits required for the J.D. degree (see [Section 1\(C\)](#), [Section 1\(D\)](#), and [Section 1\(M\)](#)), with the exception of coursework taken outside of the Law School for which the minimum grade is a grade of C or its equivalent.

b) Papers written to satisfy the J.D. Written Work Requirement must receive a grade of Low Pass or better with the exception of papers written for courses graded Credit/Fail which must receive a grade of Credit.

2. Minimum Annual Progress for J.D. Students

a) First Year

- i) Satisfactory completion of the first-year program—consisting of the required 1L courses (see [Section 1\(C\)\(1-3\)](#)) and the required upper-level elective

credits (see **Section I(C)(4)**) —requires a grade of at least a Low Pass in every course, with the exception of the first-year January Experiential Term course in which students must receive a grade of Credit.

- ii) Subject to **Section I(U)(2)(f)** below and **Section I(V)**, a student receiving a grade of Fail in any required course in the first year, in order to maintain minimum annual progress, must make up the failed credits in that course during their second year by enrolling in and passing a different instance of the course or by earning a passing grade on an examination in a different instance of the course.
- iii) Subject to **Section I(U)(2)(f)** below and **Section I(V)**, a student receiving a grade of Fail in the spring upper-level elective course must make up the failed credits in that course during the second year by enrolling in and passing a different instance of the course, earning a passing grade on an examination in a different instance of the same course, or by taking a different course in order to maintain their minimum annual progress.
- iv) Credits for retaking a course, passing a different exam in a different instance of the same course, or taking a different elective course, in order to complete first-year work are not counted for purposes of meeting the minimum credit requirements for the second year.

b) Second Year

The following minimum requirements must be met:

- i) Grades of Low Pass or better in the minimum number of required credits for the second year of study (see **Section I(C)**, **Section I(D)**, and **Section I(I)**. Credits for retaking a course or taking a different course in order to make up failed upper-level credits are counted for this purpose.
- ii) Subject to **Section I(V)**, a student receiving a grade of Fail in a second-year course must make up the failed credits by enrolling in and passing a different instance of the course, earning a passing grade on an examination in a different instance of the same course, or taking a different course, and has the option of not making up the failed credits if the credits are not needed for the semester or annual minimums.
- iii) Special dispensation to continue in the Law School after the second year of residence without having met these requirements may be granted by the Administrative Board under such terms as it deems appropriate.

c) Third Year

If the minimum grade requirements for the J.D. degree have not been met after completing three years of residency (see **Section I(U)(1)**) the following may be used to meet the degree requirements:

- i) Additional courses may be taken to meet necessary degree requirements. Degree requirements must be completed within seven years of matriculation. See **Section I(A)(3)**.
- ii) Subject to **Section I(V)**, if a failing grade is the reason for failure to meet the degree requirements, a student may meet degree requirements by enrolling in and passing a different instance of the course, earning a passing grade on an examination in a different instance of the same course, or taking a different course, or in another manner approved by the Administrative Board.

d) International and Comparative Law Requirement

Subject to **Section I(V)**, a student receiving a grade of Fail in a course taken to satisfy the International and Comparative Law Course Requirement must make up the failed credits by enrolling in and passing a different instance of the course, earning a passing grade on an examination in a different instance of the same course, or taking a different qualifying international and comparative law course.

e) Legal Profession (Professional Responsibility Requirement)

Subject to **Section I(V)**, a student receiving a grade of Fail in the required Legal Profession course must make up the failed credits in that course by enrolling in and passing a different instance of the course, earning a passing grade on an examination in a different examination instance of the same course, or taking a different Legal Profession course in order to meet the School's Professional Responsibility Requirement.

f) Negotiation/Leadership Requirement

Subject to **Section I(V)**, a student receiving a grade of Fail in a course or clinic taken to satisfy the Negotiation/Leadership Requirement must make up the failed credits by enrolling in and passing a different instance of the course or clinic, earning a passing grade in a different instance of the same course or clinic, or taking a different qualifying Negotiation/Leadership course or clinic.

g) Minimum GPA/Two or More Failing Grades

Any student receiving a grade point average of lower than a Low Pass average for any semester, or receiving two or more grades of Fail during any academic year, will

be referred to the Administrative Board. The Administrative Board may decide, in such a case, that the student has failed to meet academic requirements and/or is unable to advance to the next year and may place the student on involuntary leave for unfulfilled academic requirements (see **Section XI(C)(7)**). Students must maintain Satisfactory Academic Progress in order to remain eligible for federal student aid consideration. See [HLS Policy for Financial Aid Recipients](#).

W. Retaking Courses, Taking a Different Examination in the Same Course, and Substitute Work

1. The [Registrar](#), [Dean for Academic and Faculty Affairs](#), [Dean of Students](#) and relevant faculty members will consult to determine whether taking an examination in a different instance of the same course is the appropriate method for a student to make up failed credits. The Registrar, Dean for Academic and Faculty Affairs, Dean of Students and the relevant faculty members may consult a Deputy Dean or the Chair of the Administrative Board in determining options and appropriate method.
2. If it is determined that a student should retake a course or take an examination in a different instance of a course, the student will be required to do so at the next scheduled time the course or examination in question is being offered.
3. The grade for retaking a course or for taking an examination in a different instance of the same course, or for taking a different course to make up the failed credits, if higher than the original grade, takes the place of the earlier grade for determining completion of J.D. degree requirements and minimum annual progress. It does not take the place of the earlier grade for purposes of determining Latin honors (for which the original grade will be used). Both the original grade and the grade for retaking the course, for taking an examination in a different instance of the same course, or for taking a different course to make up the failed credits will be recorded on the transcript.
4. With the exception noted in **Section I(U)(2)(a)(iv)**, courses retaken and new courses taken to make up failed credits are included in calculations regarding compliance with minimum and maximum registration requirements.
5. **Special Dispensation:** Exceptions from the rules regarding retaking courses, taking a different examination in the same course, taking a different course and substitute work may be granted only by the Administrative Board upon a showing of good cause.

II. Requirements for Graduate Degrees

The following section provides information on the requirements for the LL.M. and S.J.D. degrees at Harvard Law School. Note that the information in this section relates specifically to requirements for Harvard Law School degree completion. It does not relate to qualification for any bar examination or other professional licensing.

A. Master of Laws (LL.M.)

1. LL.M. Residence and Credit Requirements

To qualify for the LL.M. Degree, candidates must fulfill the following requirements:

- a) Attendance at Harvard Law School is full-time, in-person for a period of one academic year, which consists of the fall, winter and spring terms.
 - i. Students are expected to maintain the minimum credit requirements stated in [Section II\(4\)\(d\)\(i\)](#). To be awarded the LL.M. degree, a student must complete a minimum of 23 credits.
 - ii. LL.M. students enrolled at the Law School may not be simultaneously enrolled, either full-time or part-time, in any other school or college either within Harvard University or at any other institution, unless they are cross-registered in courses authorized by the Law School.
 - iii. In accordance with Harvard Law School policy, students may not be employed for more than 20 hours of work per week during the academic year while classes are in session.
 - iv. LL.M. students must complete degree requirements for the LL.M. within 36 months of first matriculating at the Law School. A leave of absence will not extend the period for completing degree requirements.
- b) A course of study consisting of a minimum of 23 credits and a maximum of 28 credits (including the one credit assigned for completion of the portion of the Legal Research, Writing and Analysis course that takes place during LL.M. Orientation):
 - i. LL.M. degree candidates must register for between nine and 13 credits in the fall term, between eight and 12 credits in the spring term, and at least two credits in the winter term. In some cases, different minimums may apply for visa purposes.
 - ii. LL.M. degree candidates may register for no more than 13 credits in the fall term, no more than 12 credits in the spring term, and no more than three

credits (from a single offering) in the winter term. These term-specific credit maximums include the credit(s) for required written work (see **Section II(A)(6)** below) and the fall-term credit maximum includes the one credit assigned for completion of the Legal Research, Writing and Analysis course that takes place during LL.M. Orientation.

- iii. For LL.M. candidates who do not hold a J.D. degree from a law school in the United States (including Puerto Rico), at least one core course, of at least three credits, in U.S. law from the following list of designated “primary” courses in U.S. law: Antitrust Law & Economics – U.S.; Civil Procedure; Constitutional Law: First Amendment; Constitutional Law: Separation of Powers, Federalism, and the Fourteenth Amendment; Contracts; Corporations; Criminal Law; Evidence (only those sections bearing three or more credits); Family Law; Legislation and Regulation; Property; Separation of Powers; Taxation; or Torts. The Committee on Graduate Studies will consider petitions to substitute another substantive course in U.S. law. Petitions will be considered from students who have significant grounding in U.S. law or in a substantially similar common law equivalent (as determined by the Committee on Graduate Studies).

c) The LL.M. Written Work Requirement (see **Section II(A)(6)** below).

Any questions about academic requirements should be directed to the [Graduate Program Office](#).

2. Recommended Courses

The Committee on Graduate Studies strongly recommends that each LL.M. candidate also take at least one course focusing on legal history, legal theory, policy analysis or legal process. In addition, students who hold a J.D. degree from a school in the United States (including Puerto Rico), and who are hoping to embark on a law teaching career, are strongly encouraged to take at least one course that is primarily focused on legal theory or jurisprudence. Students are invited to consult with the [Assistant Dean for the Graduate Program and International Legal Studies](#) for further discussion of possible course selections in this area.

3. Class Attendance and Participation; Overlapping Class Times

Class work is essential to the educational program at the Law School. Regular, in-person attendance at classes and clinics, participation in class and clinic work, and compliance with rules and norms for classrooms and clinics, are expected of all students. In the case of substantial delinquency in attendance, unsatisfactory performance of clinic responsibilities, or failure to comply with classroom or clinic rules and norms, the Law School may, after written notice, involuntarily withdraw a student from the class or clinic in question.

Students who believe they need to miss classes for an extended period of time must speak with the [Dean of Students](#) or the [Assistant Dean for the Graduate Program and International Legal Studies](#), who can assist with such situations and can help students comply with the Law School's attendance policy and related academic policies. In most cases, a student's absence from all of their classes for more than two weeks will be cause for a leave of absence and administrative withdrawal from all courses. The permissible period of absence for short courses and winter term courses will be less than two weeks.

Students will not receive credit for courses (including courses taken through cross-registration), clinics, seminars, or reading groups with meeting times that overlap in whole or in part. Students must also allow for sufficient travel time between classes. Students may not make arrangements with faculty members to arrive late or leave early from a class.

Students anticipating missing class may be eligible to receive audio recordings for certain types of absences pursuant to the Law School's Class Recording Policy which is available in [Section XIII\(F\)](#).

Absences Due to Religious Beliefs

In accordance with Massachusetts law, any student who is unable, because of their religious beliefs, to attend classes or to participate in any examination, study or work requirement on a particular day shall be excused from any such examination or study or work requirement, and shall be provided with an opportunity to make up such examination, study or work requirement which they may have missed because of such absence on any particular day; provided, however, that such makeup examination or work shall not create an unreasonable burden upon the Law School. No fees of any kind shall be charged by the Law School for making such opportunity available to the student, and no adverse or prejudicial effects shall result to any student because they avail themselves of this opportunity. (See [Massachusetts General Laws, Chapter 151C, Section 2B](#).)

4. Grades for LL.M. Students

a) Honors, Pass, Low Pass, or Fail Grades

All Law School courses, seminars, clinics and written work—with the exception of courses offered Credit/Fail—will be graded Honors, Pass, Low Pass, or Fail ("H, P, LP, or F").

b) Dean's Scholar Prizes

Dean's Scholar Prizes (represented on the transcript as an H*) may be awarded to LL.M. students in recognition of outstanding work in upper-level classes and clinics with seven or more Law School J.D. and LL.M. students. Dean's Scholar Prizes may not be awarded in courses or clinics graded on a Credit/Fail basis, or for any writing credits and independent clinics.

c) Credit/Fail Grades

Faculty may not award Credit/Fail grades without prior consultation with the [Dean for Academic and Faculty Affairs](#).

All reading groups and independent clinics will be graded on a Credit/Fail basis.

d) Grade-Based Prizes

Harvard Law School has established academic prizes, such as the Morgan and Helen Chu Prize, that are awarded based on a student's annual grade point average in the 1L, 2L, 3L, and LLM years. To be eligible for grade-based academic prizes, a student must complete 3/4 of credits taken during the academic year recognized by the prize in courses, clinics, and writing graded in accordance with the Law School's standard grading scheme of Dean's Scholar Prize, Honors, Pass, Low Pass, and Fail. Credits earned in Law School courses or clinics graded credit/fail or earned through cross-registration or other courses taken in another school will not count toward the required 3/4 minimum credits required for eligibility for grade-based academic prizes.

e) Minimum Grades; Degree Completion

- i. In order to be eligible for the LL.M. degree, LL.M. candidates must complete a total of at least 23 credits (including course work and written work and including the one credit assigned for completion of the portion of the Legal Research, Writing, and Analysis course that takes place during LL.M. Orientation), graded Low Pass (LP) or higher; of those 23 credits, no fewer than three must be graded Pass (P) or higher.
- ii. LL.M. candidates must earn a minimum grade of Low Pass on the paper submitted to satisfy the LL.M. Written Work Requirement, assuming they have met the minimum grade requirements stated in **Section [II\(A\)\(4\)\(d\)\(i\)](#)** above.
- iii. Students failing to earn minimum grades necessary to meet degree requirements may be allowed, by decision of the Graduate Committee, to undertake substitute work, take a different examination in the same course, or retake courses within the next academic year following the end of the LL.M. year. All additional work must be completed no later than 12 months after the end of the year in which the student matriculated in the LL.M. program. Outside of the foregoing circumstances, however, all work must be completed within a single academic year consistent with the fact that the LL.M. is a single academic year degree program.
- iv. Students who have taken a leave of absence must complete the LL.M. degree requirements within 36 months of matriculating at the Law School in order

to be eligible for the LL.M. degree. Further information on Leaves and Withdrawals is found in **Section XI**.

f) Extensions

Extensions are available for required coursework (excluding exams) or papers only with the approval of the instructor, or the Dean of Students in consultation with the instructor in cases of personal or medical emergency (see **Section VIII(B)**). The due date is established in coordination with the student and the instructor, and the [Dean of Students and Community Engagement, Equity, and Belonging Office](#) when appropriate. In order to track the progress of student papers in a course or written work for which an extension has been given, the Law School uses an “Extension” (EXT) transcript notation. Students who have an approved extension on non-exam related work will receive an EXT notation on the transcript until the work is completed and graded. EXT notations must be resolved by no later than the last day of classes of the semester (fall or spring) that follows the originally scheduled completion of the course or written work or earlier deadline as set by the instructor. If a student fails to complete the work by that date or to receive a further extension, the [Registrar’s Office](#) generally will withdraw them from the course or written work and enter a WD on the transcript. However, if failure to complete credits for a course or written work will result in a student dropping below the semester or year required credit minimum, the student must complete the work or receive an F grade.

Credits in courses with an EXT notation at the end of the academic year will not be included in assessing a student’s eligibility for the grade-based [Morgan and Helen Chu Prize](#). Students with EXTs may not be eligible for clinical student court practice certification.

g) Grade Changes

After an instructor has submitted a grade to the Registrar, the instructor may change the grade only if the grade is incorrect as a result of an arithmetical, administrative, or other mechanical error. The instructor will determine whether the grade is a result of such an error. The Dean for Academic and Faculty Affairs must approve any grade changes pursuant to this policy.

An instructor’s grade determination is not subject to review on the merits by the Dean, Deputy Deans, the [Dean of Students](#), the [Registrar](#), or other administrators. An instructor may not change a grade based on a reevaluation of a student’s work, except by requesting and obtaining approval for such change from the faculty.

After degrees are voted and approved by the faculty, grades for graduating students cannot be changed by an individual faculty for any reason.

Under the circumstances specified in the [Standing Policies of the Administrative Board Concerning Exam Administration](#), a student may be entitled to grading relief for a grade affected adversely by an administrative irregularity (for example, a failure of exam software). The procedures for seeking such relief are set out in those Policies. Grade changes may also be made by the School's administration as the result of a disciplinary proceeding against a student.

Questions about grading policies and their application in particular instances can be directed to the Office of the Registrar or the Dean of Student's Office.

5. Completion of Course Evaluations and Grade Release

Course evaluations provide valuable feedback about the curriculum to faculty, administrators, and students. To encourage submission of evaluations, students who complete and submit all of their course evaluations in a given term will receive grades for that term one or more weeks prior to students who do not submit all course evaluations. This policy does not apply to graduating students in their final term.

6. LL.M. Written Work Requirement

All LL.M. candidates must satisfy the Written Work Requirement for the LL.M. degree. To fulfill this requirement, LL.M. students must complete a paper that involves independent reflection, formulation of a sustained argument, and, in many cases, in-depth research. The paper must be an individual effort: group papers or works of joint authorship do not qualify. The paper may be written in conjunction with a Law School course or seminar that already requires a paper that would satisfy the LL.M. Written Work Requirement—commonly referred to as writing “in conjunction” with a course or seminar—or as an independent paper supervised by a member of the Law School faculty (including instructors with Law School teaching appointments). Where a student seeks to write a paper “in conjunction” with a course or seminar, it must be clear that (i) the course or seminar already requires a paper that would satisfy the LL.M. Written Work Requirement, (ii) the proposed paper is not in lieu of an exam or other assignment(s) for the course (unless such option is specified in the syllabus and is available to all enrollees in the course), and (iii) the paper is an individual assignment and not part of a group project. (Note: credits earned through writing in conjunction with a course, seminar, or workshop are assigned to the same term as the course, seminar, or workshop, or in the case of a three-credit winter course, to the adjacent spring term.) Where there is no course or seminar in the field in which a student wants to work, candidates generally will be able to find a faculty member who will be available to guide research in the particular field.

LL.M. students who hold J.D. degrees from a law school in the U.S. (including Puerto Rico) must write a 50-page paper (see description below). LL.M. students whose primary law degrees are from schools other than those in the United States (including Puerto Rico) may select either of the two options described below.

The parameters for paper length and credits earned are as follows:

- **25-page paper:** the paper must be at least 25 pages long (including footnotes but not including endnotes, appendices, table of contents, abstracts, or acknowledgments) and is worth one credit if written independently, no credit (beyond the associated course credit) if written in conjunction with a course that requires a paper
- **50-page paper:** the paper must be at least 50 pages long (including footnotes but not including endnotes, appendices, table of contents, abstracts, or acknowledgments) and is worth two credits if written independently, one credit if written in conjunction with a course that requires a paper

The requirement cannot be satisfied with a series of shorter papers or journal entries, works of joint authorship, moot court briefs, or clinical work product. As the foregoing list of exclusions is not exhaustive, students should confirm with the Graduate Program that the proposed format meets the LL.M. Written Work Requirement. Further guidance on the Written Work Requirement is available from the Graduate Program Office.

Registration deadlines. All LL.M. students must formally register for the Written Work Requirement. This registration is done through submission of a form that is signed by the faculty supervisor. The process is more fully described below in **Section II(A)(7)(f)**. Students writing the 50-Page Paper, or the 25-Page Paper in the fall term, must register for the paper at the Graduate Program Office by October 30, 2026, as set forth in **Section VII(C)**. Students writing the 25-Page Paper in the spring term must register for the paper by February 8, 2027. LL.M. students who fail to register for the LL.M. Written Work Requirement by February 8, 2027, as set forth in **Section VII(C)**, may be removed from the May 2027 degree list.

7. Additional Rules Relating to the LL.M. Written Work Requirement

The mandatory schedule for registering for, completing, and submitting the LL.M. Written Work Requirement is set forth in **Section VII(C)** and **Section VIII(C)**. The following rules and guidelines also apply to the LL.M. Written Work Requirement:

- a) **Supervision:** Students may ask any Law School faculty member or instructor with a Law School teaching appointment to supervise written work. Faculty on certain types of leave may not be available in a given term.
- b) **Supervision by Visiting Faculty:** Writing credits under the supervision of visiting faculty ordinarily must be registered for and completed during the term(s) of the visitor's appointment. Note that many visitors have Law School appointments for only one term. Students who are contemplating supervision by visiting faculty for projects that might fall outside of the faculty member's term of appointment should contact the Graduate Program staff for guidance on this point.

- c) **Prohibition against Compensation:** A student may not receive academic credit for written work for which they also receive compensation.
- d) **Multiple Use of Papers:** Occasionally students seek to submit one paper for two or more courses or seminars. In such cases, the second paper must be of sufficiently greater scope or depth to warrant such multiple credit. In order to assure compliance with this requirement, any student planning to submit the same or similar written work in more than one academic offering must first get the approval of the [Associate Dean for Academic Programs](#) by submitting a memo that documents:
- The courses and instructor(s) for the original and subsequent paper.
 - A brief description of the new project/paper anticipated, and must set forth the way in which the paper will meet the added requirement described herein.
 - The text (if any) and approximate pages from the prior papers that will be re-used verbatim or mostly verbatim in the new work.

Please also attach the original paper or written work. The instructor(s) involved should discuss appropriate ways to make sure that the submitted work meets this greater burden. When the written works are completed for two different instructors, this memo must be signed by the instructors for both courses. If a student is contemplating using written work developed outside of the HLS Academic Program, please first consult with the Associate Dean for Academic Programs (J.D. students) or the Assistant Dean for Graduate Program and International Legal Studies (LL.M. students).

Once the [Associate Dean for Academic Programs](#) approves the project, the memo must then be submitted to the Office of the Registrar before the student is accorded the requested credits. This rule applies to submission of work in any offering whether at the Law School or elsewhere. A student who submits the same, or substantially the same, work in more than one course without such prior permission, will be subject to disciplinary action.

- e) **Human Subjects Research:** Harvard Law School projects involving human subjects must be reviewed by the Harvard University Area Institutional Review Board (HUA IRB). The HUA IRB is situated in the Office of the Vice Provost for Research (OVPR) and serves as the ethics board for research studies conducted by Harvard affiliates at the Law School and beyond.

Students considering projects that may fall within IRB purview should first review the University's policies on use of human subjects in research and instructions for how to submit to the IRB. This includes the [IRB Lifecycle Guide](#), which provides introductory information about all stages of the IRB review

process, including guidance on how the IRB defines “research” and “human subjects.” A more comprehensive explanation of these policies can be found in the HUA Investigator Manual, which also includes guidance for research protocol preparation and detailed information on how to obtain informed consent from subjects. The most current version of the manual can be found in the [IRB’s library of documents](#) in the online submission system [ESTR](#).

Students seeking to conduct research involving human subjects (e.g., through using methods including but not limited to interviews or surveys) should contact the IRB to confirm if their work will contribute to generalizable knowledge as per the IRB definition and requires IRB oversight. The HUA IRB assigns [dedicated reviewers to departments and schools](#) who can assist with this decision. These reviewers can be contacted directly and offer office hours as well. For general questions, students may also email cuhs@harvard.edu or call (617) 496-2847.

Importantly, human subjects research projects cannot receive retroactive approval; IRB approval must be obtained before research is initiated. Note that students should allow sufficient time for IRB review and provide their IRB reviewer with details of their proposed timeline. While the IRB tries to help students meet their preferred timelines, late-breaking requests for review may not be accommodated.

In addition, students whose research involves the collection or storage of human subject information must establish data security procedures that reflect the sensitivity of the data and in accordance with the Harvard Research Data Security Policy. Students should consult their faculty supervisors and the Information Technology Services (ITS) Department (at security@law.harvard.edu) for additional information.

- f) **Registration for Written Work:** A student must register for the LL.M. Written Work Requirement in advance by submitting a writing proposal to the proposed faculty advisor for approval and, once reviewed and approved, submitting the LL.M. Written Work Requirement Registration form—including copies of the proposal and written faculty approval—to the Graduate Program Office by no later than the published dates set forth in **Section VII(C)**. Details about the proposal—which should reflect the substance of and proposed methodology in approaching the paper topic—will be provided by the Graduate Program. Faculty members may require additional preliminary information, such as a discussion of the subject matter, an outline, or a longer description. A student should submit the writing proposal to the faculty member, as well as any other material requested, well in advance of the published dates set forth in **Section VII(C)** since faculty members may require additional preliminary work before accepting a proposal.

- g) **Submission of Paper to the Library:** Once the paper for the LL.M. Written Work Requirement has been completed and submitted to the faculty supervisor, a copy of the final paper—in the form submitted to the supervisor for grading-- must be submitted electronically to the Graduate Program for electronic deposit with the Law School Library. At this time, a Library Authorization form must also be signed.
- h) **Credit Adjustments:**
- i. An LL.M. student writing the 25-Page Paper may seek to extend the work to a 50-Page paper provided that (1) the student has the faculty supervisor's advance approval for the change, (2) the faculty supervisor confirms that the final paper significantly exceeds the original parameters in form (at least 25 additional pages of text) and in substance, (3) the additional credit would not cause the student to exceed the maximum credit parameter for the term or the year, (4) approval is confirmed by the Graduate Program and noted to the Office of the Registrar, and (5) all such steps are completed by no later than April 9, 2027 and before a grade is submitted by the faculty supervisor. The foregoing is the only circumstance where an additional credit may be considered and granted.
 - ii. An LL.M. student who has registered for the 50-Page Paper and whose writing plans change may reduce the project to a 25-Page paper provided that (1) the student has the faculty supervisor's advance approval for the change, (2) the final paper fulfills the narrower scope of a 25-Page paper in form (no fewer than 25 pages) and in substance, (3) the credit reduction would not cause the student to fall below the minimum credit requirement for the term and the year, (4) the student has not taken part in the Winter Term Writing Program, (5) approval is confirmed by the Graduate Program and noted to the Office of the Registrar, and (6) all such steps are completed by no later than April 9, 2027 and before a grade is submitted by the faculty supervisor.
- i) **Additional writing opportunities** for LL.M. students include Optional Written Work and the Winter Term Writing Program (see **Section III(A)**). An LL.M. student may seek no more than one credit for involvement in a moot court brief and must submit a narrative describing that student's individual contributions—in terms of form and substance—to the final brief. In order to qualify for academic credit, the writing must be at least 25 pages of the student's individual written work. LL.M. students interested in registering for moot court writing credit should complete the required registration form, along with the narrative description, and submit it for review to the Graduate Program Office. LL.M. additional writing opportunities are subject to applicable rules related to political activities outlined in **Section I(N)**.

B. Doctor of Juridical Science (S.J.D.)

To qualify for the S.J.D. degree, candidates must fulfill the following requirements, which are discussed at length in the [Graduate Program Handbook](#) and incorporated by reference herein.

1. Study Plan

Each S.J.D. candidate must submit an approved study plan, including arrangements for course work and reading lists, in the first year of candidacy. Candidates must submit drafts of their study plans to their principal supervisors and orals committee members early in September of the first year of the program and should discuss with them the desirability of pursuing specific courses, selected readings, interdisciplinary study, skills enhancement (e.g., languages, mathematics, statistics), and other academic projects in their specific fields of study. On the basis of these discussions, each S.J.D. candidate must submit a draft study plan to the [Associate Director of Graduate Writing and Academics](#) by no later than October 15, and final draft of the plan approved by all supervisors must be submitted to the Graduate Program office, for review and approval by the Committee on Graduate Studies, by January 31 in the first year of study. Upon review, the Committee on Graduate Studies may request adjustments to the study plan. These adjustments should be made on the timeline set forth by the Committee on Graduate Studies. Once a plan has been finalized and filed with the Graduate Program, a candidate must consult with the Graduate Program before making any changes to a field and/or supervisor (and resubmit the plan thereafter).

2. First Year in Residence

Candidates must complete the first year of study in residence at the Law School, under the supervision of a faculty member and an orals committee selected by the candidate and approved by the Committee on Graduate Studies. The first year of study is spent reading for fields under the supervision of the candidate's principal supervisor and the orals committee, meeting regularly with each field supervisor, and completing, ordinarily, at least eight credits of course work (typically on an audit basis).

- a) **S.J.D. candidates in the first year** must complete eight credit hours of course work (normally on an audit basis) at the Law School or, if appropriate, at other departments of the University (in which case the credits are calculated in accordance with the Law School's equivalency guidelines). Arrangements for fulfilling the course work requirement must be set forth in the Study Plan. Any S.J.D. candidate who does not hold a primary degree in law from a U.S. law school:
 - i) must complete at least one course in U.S. law during the first year of S.J.D. studies if not completed during the LL.M. year.

- ii) is strongly encouraged to complete at least one course in legal history, legal process, or legal thought during the first year of S.J.D. studies if not completed during the LL.M. year.

The content of courses pursued in connection with the fields of study will typically be examined in the context of the oral (general) examination.

- b) **Attendance Policy:** S.J.D. candidates taking classes on a for-credit basis must adhere to the class attendance policy set forth above and are subject to the protections of the Massachusetts law set forth therein.
- c) **Grades:** All Harvard Law School courses, seminars, clinics and written work—with the exception of courses offered Credit/Fail—will be graded Honors, Pass, Low Pass, or Fail (“H, P, LP or F”). S.J.D. students must receive a minimum grade of P in any course taken for credit. Grades of LP or F are not passing grades for the S.J.D. degree.

3. Oral Examination

Candidates must undertake field meetings and successfully complete an oral (general) examination in each of the fields of study outlined in the study plan. Candidates must sit for the S.J.D. oral (general) examination in their fields of study during the first or second year of study, and in any event by no later than March 31 of the second year. The examination must be completed before starting work on the dissertation. Each student and their principal supervisor will agree on a target month (no later than the deadline set out earlier in this paragraph) for completion of the oral (general) examination at the time the student develops their study plan.

4. Prospectus

By December 15 of the third year of study, candidates must complete and submit to the Graduate Program a written prospectus, of between 2,000 and 3,500 words of text (with no more than an additional 1,000 words in footnotes). The prospectus should be developed in conjunction with the principal supervisor and other members of the orals committee and must have the written approval of the principal supervisor before submission to the Graduate Program. Please refer to the [Graduate Program Handbook](#) for details about the content of the prospectus.

5. Presentations at the S.J.D. Colloquium

Twice during the program, S.J.D. candidates are required to present their dissertation work at the S.J.D. Colloquium. The first presentation at the S.J.D. Colloquium will be scheduled after the prospectus is submitted and must be completed by April 30 of the third year (though candidates wishing to complete the program in four years should plan to complete this requirement well before this deadline). The second presentation must be completed at least six months prior to the expected graduation date and may take place up to 12 months prior to the intended graduation date (preferably well before the dissertation is finalized).

for submission so that the student can still benefit from feedback given at the Colloquium). Attendance at the S.J.D. Colloquium is mandatory for all in-residence S.J.D. students.

6. Submission and Acceptance of the Doctoral Dissertation

Important: Please refer to the [Graduate Program Handbook](#) for detailed information regarding deadlines and degree dates.

S.J.D. candidates should generally expect to complete and submit their dissertation within three years of passing the oral examination. Dissertations based on substantial fieldwork or archival research, however, may take longer to complete.

A candidate's dissertation should make a substantial contribution to the existing scholarship in its chosen area. It will do so most commonly (a) by formulating a research problem that probes some aspect of the conceptual framework for thinking about an issue and investigating the problem systematically from this angle to construct an original argument, or (b) by developing a new approach to addressing a recognized and significant problem and showing how understanding of its dimensions is advanced by this methodology. The claim the dissertation advances should be clear, and the supporting arguments should be well structured and appropriately referenced. A dissertation that merely surveys, catalogs, or compiles relevant literature, legislation, case material or the ideas of others will not satisfy the standard.

Prohibited Submissions: Commissioned studies, committee reports, writings of joint authorship, and academic work, papers, or dissertations written in or submitted as part of another degree program or academic requirement at another academic institution will not be accepted in fulfillment of the dissertation requirement. Academic work, papers, or dissertations written in or submitted as part of another degree program or academic requirement at Harvard will not be accepted in fulfillment of the dissertation requirement without permission from the Graduate Committee (and the corresponding department or program, as applicable).

Form of Dissertation: Depending on the nature of the project, the dissertation may be in the form of (a) a monograph; or (b) a series of at least three related essays connected with a comprehensive synthesizing essay separate from the introduction that draws on and establishes a general thesis supported by the other essays, and provides sufficient depth and context such that it could stand on its own. Projects that are historically, sociologically, or philosophically oriented are generally best served by a monographic form, but in other cases a series of related essays may be acceptable with the approval of the Graduate Committee.

Permission and Requirements for Multiple Essay Submissions: To request permission to submit a dissertation in the form of at least three related essays in addition to a comprehensive synthesizing essay, candidates must submit a petition for the Graduate Committee's review. The petition should be incorporated in, or submitted together with,

the prospectus. If a candidate with a project originally envisioned as a monograph later decides to petition for approval of a multiple-essay submission, the candidate may submit a “late petition” at that time, but in no event less than one year before the candidate’s intended graduation date. Petitions submitted within a year prior to graduation will not be accepted.

Note: Inclusion of essays submitted for publication prior to the supervisor’s approval of the prospectus is strongly discouraged.

Petition for Multiple-Essay Dissertation: Whether submitted with the prospectus or thereafter, a petition for a multiple-essay dissertation must:

- set forth the substance of the dissertation project as a whole
- explain why, in light of the nature and focus of the dissertation project and the norm for dissertations in the relevant discipline, a multiple-essay format is more appropriate than a monograph
- acknowledge the requirement to include a comprehensive synthesizing essay, separate from the introduction, that draws on and establishes a general thesis supported by the other essays
- set forth the general thesis of the synthesizing essay
- specify the details of publication and provide applicable citations for any of the essays that have been published or submitted for publication (as noted above, inclusion of essays submitted for publication prior to the supervisor’s approval of the prospectus is strongly discouraged)
- be accompanied by a statement from the candidate’s principal supervisor (a) supporting the multiple-essay format in light of the norm for dissertations in the relevant discipline; and (b) if applicable, providing a justification for inclusion of any essay submitted for publication prior to the supervisor’s approval of the prospectus, which is strongly discouraged

A Late Petition must also set forth in detail the substance of the synthetic essay (or the candidate may submit a draft of the synthesizing essay).

Note: While such requests – when presented in a timely manner and in compliance with the above specifications – are generally granted, candidates should not assume that requests for multiple-essay submissions are automatically granted.

7. Oral Defense of the Dissertation

Following completion of the dissertation, and in accordance with information on degree deadlines described in the [Graduate Program Handbook](#), each candidate must pass an oral

defense examination on the dissertation as a whole. The examination is to be given by a dissertation defense committee, as specified in the [Graduate Program Handbook](#). A report on the defense must be completed and signed by each member of the defense committee and submitted to the Graduate Program by the relevant due date, also as specified in the [Graduate Program Handbook](#).

8. Submission of Dissertation to the Library

Once the dissertation defense committee gives final approval to the dissertation and corrections, if any, are made, an electronic copy of the final dissertation must be submitted to the Graduate Program for electronic deposit with the Law School Library. At this time, a Library Authorization form must also be signed.

As noted above, detailed specifications for each of the preceding S.J.D. degree requirements and other relevant information, including the content of the prospectus and dissertation completion deadlines, are provided in the [Graduate Program Handbook](#).

9. Compliance with Requirements

S.J.D. candidates who fail to meet or consult periodically with their principal supervisors, fail to timely complete milestones or degree requirements or to timely obtain required program extensions, fail to pay all fees each year, or who otherwise violate residency or other requirements will be withdrawn from the S.J.D. program. Exceptions may be made in limited cases for students with special circumstances.

Candidates who have not completed the requirements for the degree within 72 months from the end of the first year of S.J.D. candidacy may apply for readmission to register for purposes of defending the dissertation and receiving the degree within 24 months of the effective date of withdrawal, provided that their dissertation has been satisfactorily completed by that time and that the candidate's principal supervisor is willing and able to supervise the final work.

III. Additional Academic Opportunities (J.D. and Graduate Programs)

A. Additional Written Work Opportunities

1. Independent Written Work (J.D. Students) and Optional Written Work (LL.M. Students)

In addition to the Written Work Requirement for each degree, upper-level and graduate students have the option of doing additional written work for credit. With the agreement of the instructor, a student may complete written work for additional credit in a course,

seminar, or workshop, or on an independent basis with Law School faculty or instructor supervision. These are excellent opportunities for pursuing topics in depth, for exploring issues beyond the formal curriculum, for developing publishable scholarship, and for tailoring the law school experience to the student's personal interests.

- a) **Credits:** J.D. student independent written work may receive one or more writing credits and is expected to be of the same scope as a paper written to fulfill Option 1 (for students matriculating at HLS prior to Fall 2023) or the Analytical Paper (for students matriculating at HLS Fall 2023 and thereafter) of the J.D. Written Work Requirement that receives the same number of credits (see **Section I(L)(1)**). LL.M. student optional written work may receive one or two writing credits and is expected to meet the standards for LL.M. Required Written work in form (at least 25 pages of the student's individual written work, for one credit) and in substance (see **Section II(A)(6)**). The number of credits granted for a particular piece of writing must be arranged in advance between the student and the faculty supervisor. The credits assigned to a piece of written work may not be adjusted after the grade for that work has been submitted.
- b) **Registration for Independent Written Work (J.D. Students) and Optional Written Work (LL.M. Students):** J.D. students must register for Independent Written Work by submitting the required [registration form](#) to the faculty supervisor for approval and then to the [Office of the Registrar](#) by the second Friday in October for fall term, by the second Friday in November for winter term, and by the second Friday in February for spring term. Forms are available in hard copy in the [Office of the Registrar](#) and on the [Written Work Registration Forms webpage](#). LL.M. students who pursue Optional Written Work must register for such work by submitting the required registration form to the faculty supervisor for approval and then to the [Graduate Program Office](#) by October 30, 2026 for fall term and by February 8, 2027 for spring term. Forms are available in hard copy in the [Graduate Program Office](#) and on the [Written Work Registration Forms webpage](#). (See also **Section VII** and **Section VIII**).
- c) **Research Assistant or Teaching Fellow Work for credit (J.D. students only):** Law School faculty members and instructors with a Law School teaching appointment have the discretion to give a J.D. student written work credit for writing done as a research assistant or teaching fellow, subject to the following conditions (see also **Section I(L)(1)** and **Section II(A)(6)**):
 - i) In order to qualify for academic credit, the work must engage students in academic work with sufficient intellectual content and be equivalent in scope to work that would qualify for optional independent written work credit. Research assistant and teaching fellow work that does **not** qualify for academic credit includes cite-checking and compilations or summaries of data without analysis.

- ii) In no case may a J.D. student receive academic credit for research assistant or teaching fellow work that is also compensated.
- iii) To register for Research Assistant or Teaching Fellow Work for credit, a J.D. student should complete the required [registration form](#) and submit it to the Office of the Registrar.
- d) **J.D. students** should consult the [Office of the Registrar](#) with questions about independent written work or Research Assistant or Teaching Fellow work for credit.
- e) **LL.M. students must** consult with the [Assistant Dean for the Graduate Program and International Legal Studies](#) before undertaking optional written work for credit.

2. Winter Term Writing Program

Participants in the Winter Term Writing Program (WWP) devote the winter term exclusively to the intensive research and/or writing of a qualifying paper under the supervision of a Law School faculty member or an instructor with a Harvard Law School teaching appointment. For J.D. students, participation in the WWP requires registration for Option 1 (for students matriculating prior to Fall 2023) or the Analytical Paper (for students matriculating Fall 2023 and thereafter) of the J.D. Written Work Requirement, or Independent Written Work of at least two and no more than three credits. For LL.M. students, participation in the WWP requires a 50-Page paper—written independently of a course or seminar—with the credits assigned to the Winter Term. Participation in the program is in lieu of taking a Law School course for the winter term, and to meet the minimum residency requirement, the research/writing done during the term must be toward the completion of a single writing project with a minimum of two credits.

a) J.D. Students

J.D. participation in the WWP, with the credits registered into the Winter Term, will satisfy Option 1 or the Analytical Paper of the Written Work Requirement if the paper meets the Analytical Paper requirement set forth in **Section I(L)(2)(a)** and if the requirement has not been previously satisfied.

b) J.D. Students – Special Considerations

- i) Option 2 of the J.D. Written Work Requirement does not qualify for the WWP.
- ii) Written work for which J.D. students registered in a previous academic year is not eligible for the WWP in the current year.
- iii) Credits for WWP projects are registered into the Winter Term only.
- iv) Students should note that taking the WWP instead of a winter course eliminates the winter term as a source of law school classroom credits.

Third-year students considering the WWP in lieu of a winter course should first check their upper-level credits on their degree audit against Harvard Law School degree requirements to confirm that they will meet the required upper-level 36 law school classroom credit minimum set forth in **Section I(D)**.

c) LL.M. Students

Students who have registered for a single written work project worth at least two credits, such as the LL.M. 50-Page Paper written independently of a course, are eligible to apply for the WWP. LL.M. students who are accepted to the WWP must spend the winter term in Cambridge, working exclusively on the relevant paper, and attend the mandatory meetings conducted by the Graduate Program.

d) Application and Registration Process

The WWP registration forms for J.D. students and application forms for LL.M. students are available [online](#) and in hard copy at the [Office of the Registrar](#) and in the [Graduate Program Office](#) respectively. See **Section VII** for more information about registration and **Section VIII** for submission deadlines for papers written as part of the Winter Term Writing Program.

B. Clinical and Experiential Legal Education

1. Overview

Harvard Law School offers several carefully designed options for students to engage in legal practice, all of which train students to be competent, effective and ethical lawyers while providing the supervision necessary for effective pedagogy and compliance with relevant statutes and rules governing the practice of law.

a) Students can engage in legal work in the following ways:

- i) Working within an established Harvard Law School clinic or externship. See the [Office of Clinical and Pro Bono Programs](#). Clinics offer students the opportunity to use the analytical, negotiation, and problem-solving skills they have learned in the classroom to assist clients and/or to develop policy while receiving academic credit under the supervision of experienced attorneys in a wide variety of settings. Students can enroll for clinical credit in one of the “in-house” clinics that are permanently staffed by Law School attorneys, who are experienced in teaching and supervising students. Students can also enroll for clinical credit in one of the “externship” clinics, where students are placed at outside agencies or organizations, subject to visa regulations where applicable. With the permission of a specific clinic and the Office of Clinical and Pro Bono Programs, students may continue work on a clinic in

subsequent semesters and earn Advanced Clinical credits. Participation in most clinics will satisfy the Pro Bono Requirement. For more information about the Pro Bono Requirement, see **Section I(M)**.

- ii) Working within an approved Harvard Law School student practice organization (“SPO”). Student Practice organizations are student-run with supervising attorneys to assist and guide students. See [Student Practice Organizations](#).
 - iii) Working within an approved independent clinical placement. See Independent Clinical Program (**Section III(B)(5)**).
 - iv) Working on an individual basis for Harvard Law School pro bono credit under the direct supervision of a licensed attorney at a law firm or legal organization or a Harvard Law School faculty member who is licensed to practice in the relevant jurisdiction. See [For Attorneys and Supervisors](#).
- b) In addition to the methods stated above, students can:
- i) Earn writing credit for detailed legal research and policy analysis under the supervision of a faculty member. Independent written work projects take a wide range of forms, from law review articles to drafting proposed statutes to writing policy papers to advising public officials or private entities. Those projects may also include various sorts of public policy analysis, historical research, and empirical work so long as they include the completion of an appropriate written work product (see **Section I(L)**). Written work for academic credit may not constitute the practice of law. Questions should be directed to the [Office of Clinical and Pro Bono Programs](#).
 - ii) Students may also gain practice experience under the supervision of outside attorneys by volunteering individually on a non-credit basis for those attorneys, but shall not in any way hold themselves out as doing so as part of a Harvard Law School student group or under the Harvard Law School name. In these circumstances, it is the responsibility of the student and the supervising attorney to ensure compliance with all work eligibility requirements and professional obligations

2. Requirements for Clinical Credits

- a) Any student seeking to receive academic clinical credit for legal practice work or a legal externship must do so in coordination with the Office of Clinical and Pro Bono Programs.

- b) Clinical work must be legal work and involve direct legal advocacy or representation, application or interpretation of law, formulation of legal policy, or drafting of legislation or regulations. Clinical work should not be clerical.
- c) All clinical work must be supervised by an attorney licensed in the relevant jurisdiction.
- d) Clinic students are required to adhere to rules of ethics and professional responsibility as set by individual clinics and follow technology policies set by clinics in conjunction with ITS.
- e) All clinics must have a classroom component with the exception of Independent Clinical projects and Advanced Clinical credits. Independent Clinics and Advanced Clinics do not satisfy the J.D. experiential learning requirement (see **Section I(F)**).
- f) Work on political campaigns is not eligible for clinical credit, but may count toward the pro bono requirement if it meets certain criteria (see **Section I(M)**, **Section I(N)**, and **Section III(B)(5)** below).
- g) Students must have successfully completed their first year of law school to enroll in a clinic.
- h) Independent clinical work is graded Credit/Fail and capped at two clinical credits for the winter term, and three clinical credits for the fall or spring terms.
- i) A student may not receive academic credit for any clinical work for which they also receive compensation.
- j) Credits awarded for in-house and externship clinics will count toward the experiential learning requirement. Credits awarded for clinical courses that are limited to students enrolled in the corresponding clinic may also be counted toward the experiential learning requirement. Independent clinics, advanced clinics, and seminars with only some students enrolled in the corresponding clinic do not count towards the experiential learning requirement. See **Section I(F)**.
- k) Credits awarded for clinical courses that satisfy the experiential learning requirement (see **Section I(F)**), the professional responsibility requirement (see **Section I(G)**), and the written work requirement (see **Section I(L)**) may be counted toward one but not more than one of these requirements.

Please refer to the website of the [Office of Clinical and Pro Bono Programs](#) for more detailed information about receiving clinical credits.

3. Enrollment and Credits

Table 3: Clinical Credits

Term	Clinical Credits	Hours per Week	Hours per Term
Fall or Spring	2	8	96
	3	12	144
	4	16	192
	5	20	240
Winter*	2	Full-Time	96

*Winter term clinical work concludes on the last day of final winter exams and excludes the MLK holiday, unless the clinical placement is open on the holiday. Full-time hours are determined by the placement organization.

- a) Upper-level students may enroll in only one clinic per term. Students may earn a maximum of five clinical credits for their work in a clinic during the Fall or Spring term and a maximum of two clinical credits for their work in a clinic during the Winter Term. Students may enroll in a maximum of 16 clinical credits in total during their 2L and 3L years. See **Section 1(D)(2)(d)**.
- b) Students seeking to enroll in the same clinic for a subsequent semester of advanced clinical work may do so with the permission of the clinic and the Office of Clinical and Pro Bono Programs.
- c) Students earn classroom credits for the classroom component of their clinics and clinical credits for the practice component. Students with questions about these policies should contact the [Office of Clinical and Pro Bono Programs](#). (LL.M. students also should consult with the Graduate Program Office for additional clinical credit policies.)

4. International J.D. Students in Clinics

International J.D. students should consult with the [Office of Clinical and Pro Bono Programs](#) for information on which clinical opportunities are available to them.

International J.D. students on F-1 visas are eligible to participate in all in-house clinics. Externship clinics require [Curricular Practical Training](#) (CPT). Students are required to work with the [Office of Clinical and Pro Bono Programs](#) and the [Harvard International Office](#) to secure CPT authorization. F-1 students are not eligible to participate in domestic

independent clinical projects or advanced clinicals with externship placements, because these opportunities are not eligible for CPT authorization.

Please contact the [Office of Clinical and Pro Bono Programs](#) with any questions about this process.

5. Independent Clinical Program

Students interested in a special area of the law not offered through existing clinics may propose a new clinical placement through the Independent Clinical Program, which requires pre-approval by the Office of Clinical and Pro Bono Programs, supervision by a licensed attorney, and sponsorship by a Harvard Law School faculty member.

Independent clinicals are for clinical credit only and must be uncompensated. They do not count towards the HLS experiential learning requirement, and writing done in an independent clinical will not count towards the HLS professional writing requirement. Independent clinicals cannot be taken contemporaneously with another clinic (including advanced clinicals). Please refer to the [Independent Clinical Program website](#) for more information, including details on the overlap policy, remote work policy, and relevant application deadlines.

6. Limits and Restrictions on Student Practice

a) Standards of professional behavior for law students.

As current (for some LL.M. students) and future practicing lawyers, law students have standards of professional behavior and responsibilities. Please be advised that every state, including the Commonwealth of Massachusetts, has statutes and rules that prohibit the “unauthorized practice of law.” (See, e.g., [Mass. Gen. Laws ch. 221 §41](#); [Mass. Rules of Professional Conduct, Rule 5.5](#))

The practice of law is broadly defined and can include providing advice, in addition to direct representation. Just as one must get a license to practice medicine, one must be admitted to the bar in a particular state to be able to practice law. Law students are permitted to do legal work for clients as long as the student is working as an individual supervised by an attorney admitted to practice law in the relevant jurisdiction and that attorney takes responsibility for the legal work. Engaging in the unauthorized practice of law may result in criminal penalties, including fines and imprisonment. See *Mass. Conveyancers Ass’n, Inc. v. Colonial Title & Escrow, Inc.*, 2001 WL 669280 (Mass. Super. Ct. June 5, 2001) (whether a particular activity constitutes the practice of law is fact specific); *In re Shoe Mfrs. Protective Ass’n*, 295 Mass. 369, 372 (Mass. 1936).

Harvard Law School students are required to comply with rules regarding the practice of law and the Law School’s policies regarding engagement in the practice

of law while enrolled at the Law School. These rules ensure proper supervision and compliance with applicable legal requirements. Violation of the rules on the unauthorized practice of law may result in disciplinary proceedings before the Administrative Board and may interfere with eligibility for admission to the bar.

- b) Harvard Law School student organizations that are not approved SPOs shall not under any circumstances engage in the practice of law in any form. Disregard for this policy will subject the student organization to dissolution procedures.
 - i) Only approved SPOs and clinics (where an in-house attorney supervisor is provided through a clinic or a stand-alone SPO) may seek out or accept projects that constitute legal practice or otherwise practice law using the Harvard name.
 - ii) Student organizations may present conferences, panels, and other events and bring in speakers. Members of such organizations may talk generally with others about their practice experiences as long as they comply with professional rules governing client confidences.
 - iii) Creating a new SPO or clinic requires an investment of resources to hire supervising attorney(s), provide space, and ensure data security and client confidentiality. Students are encouraged to work within existing clinics and SPOs. Funding to start an SPO or a new clinic comes from the Law School budget and not through the student funding board or the [Dean of Students and Community Engagement, Equity, and Belonging Office](#). Such requests are weighed against on-going requests to support existing clinics and SPOs. Please contact the [Office of Clinical and Pro Bono Programs](#) for more information.

C. Cross-Registration

1. Cross-Registration from Harvard Law School

- a) **Overview:** Cross-registration for Harvard Law School students extends to all Harvard schools with the exception of the Division of Continuing Education (Harvard Extension School). Law School students also may cross-register at M.I.T. and the Fletcher School at Tufts University. Students are responsible for knowing the cross-registration policies and procedures of the Law School and of the school offering the course. Cross-registration must be completed by published deadlines at the beginning of the semester in which the course is offered and by the dates posted in the [Law School Cross-Registration Calendar](#). A cross-registration petition may not be filed later in the year and operate retroactively. Students interested in cross-registering should submit petitions through my.harvard.edu. Individual school courses and cross-registration policies and dates are available under the Cross Registration and Enrollment Dates tab of the [Harvard University Course Catalog](#).

- b) **Requirements:** A student must be a currently registered, full-time student of Harvard Law School in order to cross-register. Any upper-level J.D. and LL.M. student may cross-register for courses according to these terms:
- i) For eligibility to cross-register, upper-level J.D. students must enroll in at least eight Harvard Law School credits of law school work, of which no fewer than four per semester must be law school classroom credits and/or clinical credits that qualify for experiential learning. See **Section I(D)**. When cross-registering, students are required to meet the Law School fall and spring semester residency minimum of ten credits, which will include the cross-registration credits converted to Harvard Law School credits.
 - ii) LL.M. students may apply to cross-register for graduate-level courses related to a program of law study at any of the schools specified in the Overview section above. Cross-registration petitions for LL.M. students are routed first for [Graduate Program](#) approval; approvals are granted directly in the cross-registration system, after which the petition may advance for final approval by the host school. No law school credit is awarded for language, field, or studio courses, or for courses not reasonably related to a program of law study.
 - iii) Only those S.J.D. students who are in the first year of the S.J.D. program and who are eligible to take courses for credit are able to cross-register for credit. Where both conditions have been met, S.J.D. students should consult with their faculty supervisors before starting the cross-registration process.
- c) **Process and Approval:** It is important to note that host school faculty approval does not guarantee enrollment in the course. If the faculty member approves, the student's request will be forwarded to the host school's Registrar's Office. The host school's Registrar's Office will enroll the student if appropriate given the school's policies for cross-registration. Students who plan to cross-register for a course should maintain a full schedule of Law School course credits until courses requested through cross-registration are confirmed. Following confirmation, cross-registering students will be permitted to drop a course at HLS without penalty, provided that the student does so immediately following host school confirmation.
- d) **Credits:** Harvard Law School allows up to 12 credits of cross-registration toward the J.D. degree and up to six credits of eligible cross-registration toward the LL.M. degree. J.D. students may enroll in up to six credits of cross-registration per semester. The number of credits for a course will be assigned by the Law School Registrar's Office in accordance with ABA standards. For J.D. students, studio and field courses are generally limited to two credits and credits awarded for language courses are limited to three credits (thus, in both situations, credits awarded may not reflect true in-class hours). "Intensive" language courses (in which a full-year's worth of instruction takes place in one semester) may receive up to four credits.

LL.M. students do not receive degree credit for language courses, studio courses, field courses, or courses not reasonably related to a program of law study.

- e) **Course Scheduling, Content, and Grades:** The content of a cross-registered course may not duplicate or overlap course work taken previously or contemporaneously. The meeting time of the cross-registered course may not overlap with, or abut, the meeting time of courses on the student's Law School schedule, and students must allow for sufficient travel time between schools. Students may not make arrangements with faculty members to arrive late or leave early from a class.

Grades awarded by the school offering the cross-registered course are the grades of record for the Law School transcript. Credits earned in cross-registered courses generally count toward Harvard Law School degree requirements; however, the grades do not count in determining eligibility for grade-based prizes for J.D.s and LL.M. students or in Latin honors calculations for J.D. students. See **Section I(T)** and **Section II(4)(d)**.

Most schools do not allow graduate or cross-registered students to take courses pass/fail. Students may not negotiate pass/fail grading separately with faculty, and any offer of pass/fail grading from the course instructor will be verified by the Law School Registrar's Office. Any questions regarding the grading policies of a school should be directed to the respective Registrar's Office.

- f) **Academic Work, Examinations:** The Harvard schools generally operate on the same academic calendar. However, schools continue to offer individualized course and exam schedules that affect daily class times, add/drop deadlines, exams, and credits. All academic work for a cross-registered course must be completed in the term in which the course is taken. Students should review the course and exam schedule of each school into which they plan to cross-register. Students are responsible for taking the examination(s) in a cross-registered course when scheduled by the school offering the course. Requests to defer examinations in any course, including cross-registered courses, will not be granted except as specified in the Law School's Deferred Examination Policy. See **Section IV(B)**. In addition, the examination policies and procedures of the school offering the course must be observed.

Note: Degree candidates should plan carefully to complete all academic work and exams in cross-registered courses on schedule to avoid delay in receipt of final grades that may jeopardize clearance for Harvard Law School graduation.

- g) **Cross-Registration Deadlines:** Harvard Law School students should follow the deadlines listed on the [Law School Cross-Registration Calendar](#). Note that students are responsible for notifying the Harvard Law School Registrar's office of any dropped cross-registration courses by the appropriate deadline. Failure to do so may result in a "Withdrew after Deadline (WD)" notation on a student's transcript.

More detailed information about cross-registration for Law School students is available on the [HLS Cross-Registration webpage](#) or from the [Office of the Registrar](#).

2. Cross-Registration into Harvard Law School

Cross-registration into the Law School is open to all Harvard University students, with the exception of students from the Division of Continuing Education (Harvard Extension School), and to graduate students of M.I.T. and the Fletcher School at Tufts University. Students cross-registering into Harvard Law School from other schools should consult with their home school Registrar's Office in advance of submitting a petition to take a Law School course. For the duration of the course taken through cross-registration, a student must be registered at their home school and remain in good standing at both the home school and at the Law School. Students interested in cross-registering into the Law School should submit petitions through my.harvard.edu.

Cross-registrants into the Law School are allowed to take up to six credits or two courses at the Law School in an academic year, audits included. Most Law School courses expect students to have a basic understanding of legal vocabulary and the legal system. Students must get permission from the instructor to cross-register and should discuss their qualifications for a course/seminar in detail and in advance with the instructor. Even with permission, cross-registrants are not guaranteed enrollment in a class until the Law School Registrar's Office has given its approval, which will be in part dependent on available seats.

Cross-registration must be completed at the beginning of the semester in which the course is offered and by the dates posted in the [Law School Cross-Registration Calendar](#). A petition may not be filed later in the year and operate retroactively. There is no cross-registration into the first-year basic courses in Civil Procedure, Constitutional Law, Contracts, Criminal Law, Legislation and Regulation, Property, and Torts, or into the 1L January Experiential Term courses, First-Year Legal Research and Writing, or courses satisfying the Law School's professional responsibility requirement. All cross-registration placements are determined by the Law School Registrar's Office. Students may not make arrangements outside the Registrar's Office with a Harvard Law School instructor to cross-register for or audit a course or regarding grades or credit for academic work.

All academic work must be completed in the term in which cross-registration is taken and by Law School deadlines. All examinations must be taken as specified in the Harvard Law School examination schedule. No adjustments will be made, and Harvard Law School does not give make-up examinations. All Law School courses and written work will be graded

Honors, Pass, Low Pass, or Fail ("H, P, LP, or F") (or Credit/Fail in approved courses) for all students, including cross-registrants. Dean's Scholar Prizes may be awarded in recognition of outstanding work in classes with seven or more Harvard Law School J.D. and LL.M. students. Except in courses so designated, Credit/Fail grading is not an option and may not be arranged separately with the instructor.

D. Auditing a Harvard Law School Course

Only Harvard University affiliates are permitted to audit Harvard Law School classes. HU affiliates interested in auditing a Harvard Law School course (excluding first-year required courses) must submit an audit request form to the [Office of the Registrar](#). The form requires the signature of the instructor of the course. The form will be held in the Registrar's Office until the end of the drop/add period. If it is determined that space is available in the course (there is no HLS waitlist or the waitlist has been cleared and cross-registrants have been admitted) qualifying auditors will be notified that they may attend the course and will be added to the course Canvas page. At the conclusion of the term, auditors will be removed from the course Canvas page; this does not apply for S.J.D. auditors, who will remain. At the discretion of the faculty member, potential qualifying auditors may continue to sit in the course (provided a physical seat is available) until an official decision is made by the Registrar. Any audit request which is denied will be communicated back to the faculty member. The audited course will not appear on the transcript. Auditors will not be provided a transcript or any other record of having audited a course. Approved auditors may not move to enrolled status after the third week of the term.

If multiple qualifying students and/or other qualifying HU affiliates request to audit the same course and there is not space to seat them all, the audit requests will be processed by first reviewing requests from Law School students, second from other Law School affiliates, and third from elsewhere within the University.

E. Joint, Coordinated, and Concurrent Degree Opportunities for J.D. Students

1. Joint Degree Programs

The Law School offers the following formal Joint Degree Programs with other Harvard Schools:

- a) J.D./M.B.A. with the Harvard Business School
- b) J.D./M.P.H. with the Harvard School of Public Health
- c) J.D./M.P.P. and J.D./M.P.A. in International Development with the Harvard Kennedy School

- d) J.D./M.U.P. with the Harvard Graduate School of Design

The Law School also offers a Joint Degree Program with the University of Cambridge, U.K. leading to a Harvard J.D. and Cambridge LL.M. For more information about this program and other international opportunities, see **Section III(F)**.

2. Coordinated J.D./Ph.D. Program

The Law School, in conjunction with the Harvard Griffin Graduate School of Arts and Sciences (Harvard Griffin GSAS), offers a coordinated degree program leading to the J.D. and the Ph.D. degrees. Law students enrolled in this program are subject to the relevant rules and policies established by the Law School and by Harvard Griffin GSAS. Such rules and policies are available on the [Coordinated J.D./Ph.D. Program webpage](#) and from the [Office of the Registrar](#). Students should direct questions about the Law School's J.D./Ph.D. program to HLS [Academic Programs](#). Questions relating to Ph.D. admissions and other policies of Harvard Griffin GSAS should be addressed directly to the relevant Harvard Griffin GSAS administrator or Ph.D. department faculty member.

3. Other Degree Opportunities

- a) Students may propose a concurrent degree with another Harvard School or another institution, and may take leave from the Law School to pursue studies at the other school. However, credits earned at the other school may not count toward the Law School's J.D. upper-level credit requirements. Students may not be simultaneously enrolled in the Law School and another degree-granting institution as part of a concurrent degree program except through cross-registration from Harvard Law School to other Harvard Schools or the Fletcher School at Tufts University.
- b) All students must comply with the Harvard Law School academic requirements and residency requirements as defined in **Section I(M)**. Credits earned in courses at other schools taken in a joint degree program generally count toward Harvard Law School degree requirements; however, the grades do not count in determining eligibility for grade-based prizes or in Latin honors calculations for J.D. students. (See **Section I(T)**.)

Further information about joint, coordinated, and concurrent degree opportunities at the Law School is available from HLS [Academic Programs](#).

4. Rules and Policies

Law students enrolled in these degree programs are subject to all relevant rules and policies established by the Law School and by the other degree-granting school. Summaries of such rules and policies, including academic or residency requirements available [Joint Degrees and Special Programs webpage](#) and from the [Office of the Registrar](#). For questions about the joint J.D. and master's degree programs, and the J.D./Ph.D. coordinated program,

contact HLS [Academic Programs](#). Questions relating to admissions, degree requirements, and other policies of the second degree-granting school should be addressed directly to the relevant administrator or faculty member at that school.

F. J.D. Studies at Other Schools

1. Study Abroad for J.D. Students

Harvard Law School offers three types of opportunities for J.D. students to earn credit for course work at a foreign law school:

- a) A [semester abroad](#) at one of the institutions with which Harvard Law School has signed formal exchange agreements. These agreements provide a designated number of places for Harvard Law School J.D. students. The list of participating schools currently includes law programs at: University of Sydney (Australia); Fundação Getulio Vargas (Rio de Janeiro and São Paulo, Brazil); University of Chile (Santiago, Chile); Renmin University (Beijing, China); Sciences Po (Paris, France); University of Tokyo (Japan); Seoul National University (Korea); University of Geneva (Switzerland), and the Geneva Graduate Institute (Switzerland).
- b) An independent semester abroad at an institution selected by the student and approved by the School's Study Abroad Committee.
- c) A [joint J.D./LL.M. program](#) in which students who are not enrolled in another joint degree program are able to earn both a Harvard J.D. and an LL.M. from the University of Cambridge in the United Kingdom in three-and-one-half years.
- d) For further details and information about eligibility, application deadlines, and program requirements about these study abroad programs, contact the [Assistant Dean for the Graduate Program and International Legal Studies](#). Upon completion of the study abroad program, students must provide official final transcripts to the [Assistant Dean for the Graduate Program and International Legal Studies](#) for the purpose of translating credits earned during the program accordingly. NOTE: Students participating in a study abroad program may not be eligible for graduation until the official final transcript is received and approved credits are converted accordingly and recorded on the student's Harvard Law School record. Approved credits earned in courses taken through study abroad generally count toward Harvard Law School degree requirements; however, the grades do not count in determining eligibility for grade-based prizes or in Latin honors calculations for J.D. students.

2. Berkeley Exchange Program for J.D. Students

A limited number of J.D. students are permitted to participate in an exchange program at the University of California, Berkeley School of Law during their third year for credit

toward the Harvard J.D. degree. Applications are due on the date specified in the Deadlines for Applying to Special Programs in **Section IX**. Interested students should consult [HLS Academic Programs](#). Credits earned in courses taken through the Berkeley Exchange Program generally count toward Harvard Law School degree requirements; however, the grades do not count in determining eligibility for grade-based prizes or in Latin honors calculations for J.D. students.

3. Visits at Other Law Schools

In a limited number of cases, J.D. students may be permitted to spend a semester or a year at another approved law school with like programs for serious personal hardship. “Serious personal hardship” is generally limited to unforeseen emergencies relating to personal or family circumstances. Living apart from a spouse or significant other does not, in and of itself, constitute a circumstance of this kind. Applications must be submitted by the date specified in the Deadlines for Applying to Special Programs in **Section IX**. Interested students should consult the [Dean of Students and Community Engagement, Equity, and Belonging Office](#). Credits earned in courses taken at other law schools generally count toward Harvard Law School degree requirements; however, the grades do not count in determining eligibility for grade-based prizes or in Latin honors calculations for J.D. students.

4. Coordinating Approved Studies at Other Schools

Students who are approved to visit at other law schools must coordinate with the Office of the Registrar to provide proof of acceptance into the host school they will be attending, a copy of their proposed course schedule, and, upon completing course registration, a copy of their final course schedule. In addition, students are required to provide a final transcript from the host school. For study abroad programs, students should coordinate with the [Assistant Dean for the Graduate Program and International Legal Studies](#).

IV. Examinations

A. General Examination Policy

Law School examinations are administered using the School's exam software unless: (1) the format of the exam makes it impossible to use the software or (2) an exception for an individual student has been approved by [Accessibility Services](#), as part of a disability-related accommodation. The Law School's Administrative Board implements the School's rules regarding exams and, from time to time, promulgates standing policies for how it will handle exam matters. Students should familiarize themselves with the [Standing Policies of the Administrative Board Concerning Exam Administration](#), which are subject to change. All students are responsible for reviewing these policies and following the examination rules and regulations posted with the examination schedules and for reviewing all emails sent by the Registrars' Office regarding exams and exam instructions.

For upper-level exams, please note some may be scheduled on back-to-back days. Students are expected to reference the exam schedule when selecting classes. For cross-listed courses, the exam administration policies of the School administering the exam apply.

Law School examinations are anonymous, and self-identification of any kind is not permitted. Students should not put their name, class year, program, school, or any personal comments that might identify them anywhere on their exam materials. Self-identification may result in disallowance of the exam, a failing grade for the course, and/or referral to the Administrative Board for possible disciplinary action. To preserve student anonymity, individual faculty members do not have the authority to make exceptions to rules related to exam arrangements and must not be consulted, through email or otherwise, about needed alternative exam arrangements before, during or after an exam, until after grades for the course are released. Students who violate this prohibition on faculty contact may be subject to disciplinary procedures in accordance with the [Standing Policies of the Administrative Board Concerning Exam Administration](#).

All examinations must be taken and, when completed, submitted on the dates and at the times designated on the [official exam schedule](#) published by the Office of the Registrar. Exceptions to this schedule are made only in extraordinary circumstances as detailed in **Section IV(B)** and only with the prior approval of the [Dean of Students](#) or the [Registrar](#) as appropriate. Students who arrive late to a scheduled in-class exam after the official start time of the exam will be considered late and treated as such according to the [Standing Policies of the Administrative Board Concerning Exam Administration](#). Sanctions for late exams may include notations on the student's transcript and adjustments to the exam grade and/or final course grade in addition to the disciplinary sanctions provided for by the procedures of the Administrative Board (see **Section XII**). Students who fail to appear for, or complete, their exams may be placed on involuntary leave in accordance with **Section XI(C)**.

Students should not delete any exam files until after final grades are posted.

B. Deferred Examination Policy

All students are responsible for familiarizing themselves with the deferred examination policy. Below are the guidelines for deferred examinations as established by the Administrative Board.

1. Deferred examination requests will **NOT** be granted for the following reasons:
 - a) Employment reasons
 - b) Bar review courses
 - c) Conflicts with a class at another school.

- d) Exams that are scheduled within a short time period, except as explained below in **Section [IV\(B\)\(2\)](#)**.
- e) Medical problems that do not seriously interfere with immediate pre-exam preparation or the student's ability to take the exam on the scheduled exam day.
- f) Airline flights and travel schedules, vacation, and social plans; students are expected to plan their travel/vacation/social plans accordingly.

Note: The Administrative Board does not approve deferment for research opportunities, clinical experiences (other than as described in **Section [IV\(B\)\(2\)\(a\)\(iv\)](#)** below), school-sponsored trips or classes.

2. Deferred examination requests may be granted in limited circumstances as explained below:

- a) To request deferment under the following circumstances (**Sections [IV\(B\)\(2\)\(a\)\(i-v\)](#)** below), students should submit a letter or email to the [Office of the Registrar](#) at least two weeks prior to the exam, giving the reason, name of exam, and exam date appearing on the exam schedule. Students should not communicate with faculty prior to the exam period regarding need for an exam deferral as this will jeopardize anonymity and is a violation of the School's exam policies.
 - i) Where a student has two Harvard Law School examinations scheduled on the same day, one exam will be deferred by one business day.
 - ii) Where a student has three Harvard Law School examinations scheduled during the exam period on three consecutive days, the exam scheduled on the third day will be deferred by one business day.
 - iii) Religious observance conflict. A student who cannot take an exam at the time scheduled for religious reasons will be allowed to take it at a different time as arranged by the Office of the Registrar.
 - iv) Unavoidable conflicts with court hearings or other administrative proceedings connected to the Clinical Programs. The student must exhaust all means of avoiding the conflict by attempting to reschedule the hearing or attempting to arrange coverage of the hearing by another qualified student or attorney.
 - v) Conflicts with an exam in a cross-registered course (e.g., Harvard Kennedy School, Harvard Business School); on a showing that the other school will not move the exam, the Law School exam will be deferred.
- b) To request deferment under the following circumstances (**Sections [IV\(B\)\(2\)\(b\)\(i-v\)](#)** below), students should contact the [Dean of Students](#):

- i) **Illness of Student:** Documentation of illness must be provided for review by the [Dean of Students and Community Engagement, Equity, and Belonging Office](#) or [Accessibility Services](#). Documentation can be provided by the student's personal doctor or by visiting Harvard University Health Services (HUHS). In cases of medical deferment, the student will be required to take the exam as soon as the student is medically able to according to the doctor's assessment, and in accordance with HLS's exam administration schedule.
- ii) **Death or serious illness of a person in the immediate family or other person with whom the student has a similarly close relationship, which requires the student's attention away from the Law School during the exam period.**
- iii) **Personal emergency that interferes with an exam or immediate pre-exam preparation.**
- iv) **Delivery of child that interferes with an exam or immediate pre-exam preparation (applies to either parent).**
- v) **Unavoidable military commitment.**

3. Procedure for requesting a deferred examination

- a) Requests to defer exams under 2(b) as outlined above must be made to the [Dean of Students and Community Engagement, Equity, and Belonging Office](#) as soon as the student is aware of a potential scheduling problem, no later than two weeks prior to the first scheduled exam, except in emergencies that arise closer to the date of the exam.
- b) In order to protect the security of the exam, individual exams are never moved to an earlier date; rescheduling is made to the earliest time possible after the exam was scheduled to take place. Exams will not be deferred beyond the exam period except under extraordinary circumstances as deemed appropriate by the [Dean of Students and Community Engagement, Equity, and Belonging Office](#) in consultation with other departments as appropriate.
- c) Exams are deferred only as long as necessary to minimize the conflict or alleviate the reason for deferment. Exams will not be deferred for a longer period, even if this creates an inconvenience for the student based on other plans. Under no circumstances will exams be deferred for a period longer than ten business days beyond the close of the exam period for the term, or beyond the grading deadline for graduating students. For exams administered during the term, exams may be deferred for ten business days from the date the exam is scheduled. Certain exams are not published in the Law School's exam archive

and require high security; these exams will be given only at Harvard Law School under proctored conditions.

- d) Deferments based on medical reasons must always be processed through the [Dean of Students and Community Engagement, Equity, and Belonging Office](#) or [Accessibility Services](#), as described above. An exam will be deferred only if HUHS or a personal doctor certifies it necessary for medical reasons. In cases where matters may be facilitated by direct discussion between HUHS and the [Dean of Students and Community Engagement, Equity, and Belonging Office](#) or [Accessibility Services](#) the student should sign a release in the HUHS giving their permission for such discussion to take place, and the student should be informed in advance of the content of such communication. A release is required whether for verbal or written communication in these instances. All exam deferral requests are considered on a case-by-case basis taking into account a clinician's recommendation, and HLS exam policies.

4. Disability or Medically-related Accommodations

Special arrangements to take exams with disability-related accommodations, may be made in the case of disability or serious medical circumstances, with advance consultation with [Accessibility Services](#). Information about registering for disability-related accommodations can be found on the [Accessibility Services Resources webpage](#).

C. Retaking an Examination

See [Sections I\(V\)](#) and [II\(A\)\(4\)\(d\)\(iii\)](#).

V. Academic Honesty

Students are expected to abide by the highest standards of honesty and originality in their academic work, and related communications and representations. See also the [Statement of the Administrative Board Concerning Sanctions for Academic Honesty](#).

A. Violation of Examination Rules; Dishonesty in Examinations

No student is permitted to use any books, notes, papers, or electronic devices during an in-class examination except with the express permission of the instructor. Sharing of study materials, exchange of information, collaboration or communication of any kind during an in-class examination is not permitted and unless otherwise stated clearly in the examination instructions, is not permitted during a take-home examination. The Law School's Administrative Board implements the School's rules regarding exams and, from time to time, it may issue policies about how it will do so (See [Section IV\(A\)](#)). For violation

of the examination rules or dishonesty in an examination, a student is subject to disciplinary action.

B. Preparation of Papers and Other Work—Plagiarism and Collaboration

All work submitted by a student for any academic or nonacademic exercise is expected to be the student's own work. In the preparation of their work, students should always take great care to distinguish their own ideas and knowledge from information that comes from other sources. The term "sources" includes not only published or computer-accessed primary and secondary material but also information and opinions gained directly from other people.

Responsibility for learning the proper forms of citation lies with the individual student. Quotations must be properly placed within quotation marks and must be fully cited. In addition, all paraphrased material must be completely acknowledged.

Whenever ideas or facts are derived from a student's reading and research, the sources must be indicated. To understand the requirement of and process for acknowledging all sources, students should familiarize themselves with the information in the [Harvard Guide to Using Sources](#).

The amount of collaboration with others that is permitted in the completion of work can vary, depending upon the policy set by the instructor or the supervisor of a particular exercise. Outside the context of a standard study group, students should assume that collaboration in the completion of written work is prohibited, unless explicitly permitted, and students should acknowledge any collaboration and its extent in all submitted work.

Students who are in any doubt about the preparation of their work should consult the appropriate instructor, supervisor, or administrator before it is prepared or submitted. Students who submit work without clear attribution of all sources, even if inadvertently, are subject to disciplinary action.

C. Use of AI in Academic Work and Exams

In general, in completing coursework and exams, one may rely on and engage with artificial intelligence applications (including ChatGPT and other generative artificial intelligence tools, including ones embedded in other software and services, such as Microsoft Office's Co-Pilot) in the same way in which one may rely on and engage with: (a) other persons and (b) non-artificial intelligence technologies. Thus, if a student uses an artificial intelligence application in a manner or to an extent that would constitute plagiarism if the student were engaging with another human or technology, such use is prohibited. By contrast, if a student uses an artificial intelligence application in a manner or to an extent that would

constitute appropriate research conduct if the student were consulting with another person or using a non-AI application, such use is permitted.

For example:

- **While preparing for an exam**, a student would be permitted to email another person about the subject matter of the exam and/or ask that person to explain a relevant concept. Similarly, while studying for an exam, a student would be permitted to submit a prompt to an artificial intelligence application about topics or concepts relevant to the exam. In contrast, a student would not be permitted to ask either another person or an artificial intelligence application to pre-write text for the student and then incorporate that text into their exam.
- **During the administration of an exam**, a student would not be permitted to email another person about the subject matter of the exam and/or ask another person to explain a relevant concept. Similarly, during the administration of an exam, a student is not permitted to submit a prompt to an artificial intelligence application about the subject matter of the exam and concepts relevant thereto.
- **When writing a paper**, unless the instructor has authorized some form of co-authorship, a student would not be permitted to email another person and ask that person to write part of the paper for the student (regardless of whether the student copies what the person wrote verbatim, paraphrases it, or uses only part of it). Similarly, a student is not permitted to incorporate the output from an artificial intelligence application into the student's paper, except insofar as the instructor has authorized the output to be cited as a source with attribution.
- **When writing a paper**, a student would be permitted to have an email exchange with another person about the student's ideas, as long as the final work product that the student submits constitutes the student's own work, representing the student's own effort and original ideas. Similarly, when writing a paper, a student would be permitted to submit a prompt to an artificial intelligence application while considering an idea, as long as the final work product that the student submits constitutes the student's own work. In both instances, any text or ideas copied from any source should be properly quoted and cited, and any output from an artificial intelligence application should only be used as a source with the instructor's authorization.
- **When writing a paper**, a student would be permitted to ask another person to read a draft of the paper and make suggestions about the student's spelling, grammar, or word choice, provided the other person did not redraft portions of the text. Similarly, when writing a paper, a student may rely upon artificial intelligence tools (and, for that matter, for non-AI tools such as BriefCatch or the "Editor" or spelling and grammar correction functions in Microsoft Word) to perform the same types of functions.

An instructor may provide, for their course, rules different from those stated in this policy, as long as the rules are (1) described in writing and (2) communicated to all students in the course (for instance, stated in the course syllabus). If not expressly permitted in writing by the instructor, any use of AI in a manner or to an extent contrary to the above policy will be considered academic dishonesty and may subject the student to disciplinary action.

As with more traditional sources, students should assume that collaboration in the completion of written work is prohibited unless explicitly permitted. Students who are in any doubt about the preparation of their work should consult the appropriate instructor, supervisor, or administrator before it is prepared or submitted.

D. Multiple Use of Papers

See [Section I\(L\)\(7\)](#) and [Section II\(A\)\(7\)\(d\)](#).

VI. Registration Schedule and Course Change Deadlines

A. Registration Overview

Students are responsible for knowing and meeting all Law School check-in, registration, and course change deadlines as set forth throughout [Section VI](#).

B. Check-in

1. Check-in Process and Administrative Clearance

All students are required to check in online using [HELIOS](#) at the start of the academic year in order to provide updated Emergency, Local and Permanent directory information. Failure to submit updated information or complete mandatory training such as Title IX training for entering students by the applicable deadline may result in a web hold on all registration functions including add/drop and waitlist processing.

Note that in addition to online check-in through [HELIOS](#), all LL.M. and first-year S.J.D. students are required to complete certain mandatory administrative clearance procedures in person before they can register as Harvard Law School degree candidates. The Graduate Program provides further information about this process to LL.M. and first-year S.J.D. students prior to their arrival. All continuing S.J.D. students who have received a financial aid award package must also obtain financial clearance from the Graduate Program prior to the start of the academic year.

2. Check-in Dates and Administrative Clearance Dates

- a) All J.D. students [HELIOS](#) check-in: Begins on August 5, 2026 and must be completed by August 18, 2026.
- b) New LL.M. students [HELIOS](#) check-in: Begins on August 12, 2026 and must be completed by August 18, 2026. Administrative Clearance for LL.M students: Begins on August 12, 2026 and must be completed by August 18, 2026.
- c) New S.J.D. students in-person administrative clearance: Begins on August 4, 2026; must be completed by September 1, 2026.
- d) Continuing S.J.D. students [HELIOS](#) check-in: Begins on August 12, 2026 and must be completed by September 1, 2026; continuing S.J.D. students are notified by email regarding the nature and timing of their administrative clearance requirements.

Students will not be allowed to check in late or to conduct Administrative Clearance late unless they first obtain permission from the [Dean of Students](#), for J.D. students, or the [Graduate Program](#), for LL.M. and S.J.D. students.

3. Certification

Students will be required to submit certain certifications as part of the online check-in process.

C. Course and Clinic Registration Periods

- 1. **First-year J.D.:** Students are assigned, according to their section, to the required 1L courses. First-year J.D. students register during the fall term for the required 1L January Experiential Term and for a spring upper-level elective.
- 2. **Second- and third-year J.D.:** Students register for fall term electives, all multi-section offerings, and all clinics in the prior spring, and usually register for winter and spring electives during the fall.
- 3. **LL.M.:** Students register for all courses during the summer, preceding the start of the academic year.
- 4. Any student who does not register during the appointed registration periods must wait until the beginning of the relevant add/drop period to add, drop, and wait-list courses and clinics.

Specific course and clinic registration periods are established each year by the Registrar.

D. Course Add/Drop Deadlines

Table 4: Course Add/Drop Deadlines

Term	Add/Drop Deadline
Fall, Fall/Winter and Year-long	September 14, 2027
Winter and Winter/Spring	January 4, 2027
Spring	January 29, 2027

Certain courses have earlier add/drop deadlines than those listed above. Students should consult the course descriptions in the [Harvard Law School course catalog](#) for information about earlier deadlines.

E. Course Withdrawal Deadlines

1. A student withdrawing from a course, seminar, or reading group after the last day of the course add/drop period for the term will be considered to have withdrawn after the deadline, and the course, seminar, or reading group will be listed on their transcript with a “Withdrew after Deadline” (WD) notation. Withdrawing from a course or written work will not be permitted if it results in a student dropping below the semester or year required credit minimums, unless the student can enroll in other credits to meet those requirements. Students who do not withdraw before the last day of the relevant course (or before receipt of an exam in a class with a last-class-take-home) will need to complete the course for a grade.
2. Exceptions to the withdrawal policy are available only for a compelling reason such as illness or unforeseen circumstances. Students should contact the [Office of the Registrar](#) to request an exception to this policy.
3. See also **Section I(O)** and **Section II(A)(3)** regarding class attendance and involuntary withdrawals.

F. Clinic Add/Drop Deadlines

Table 5: Clinic Add/Drop Deadlines

Term	Add/Drop Deadline
Fall, Fall-Winter, Fall-Spring Externship Clinics	August 7, 2026
Fall, Fall-Winter, Fall-Spring In-House Clinics	August 21, 2026
Winter, Winter-Spring Clinics	October 23, 2026
Spring Externship Clinics	December 4, 2026
Spring In-House Clinics	December 11, 2026

1. Clinic add/drop deadlines are earlier than most course add/drop deadlines. In addition, some clinics have even earlier add/drop deadlines than those listed above. Students should consult the clinic descriptions in the [Harvard Law School course catalog](#) for specific add/drop deadlines.
2. The Office of Clinical and Pro Bono Programs (OCP) oversees add/drop deadlines for clinics. Clinics go to great lengths to prepare projects and coordinate with potential clients. Clinics depend on enrolled students to take on this work, and therefore require that students finalize their participation earlier than is required for non-clinical courses.
3. All clinics must be taken in conjunction with a relevant course. The three ways in which students enroll in the classroom component of a clinic are:
 - a) Course and clinic enrollment are bundled together. The class and the clinic are added and dropped together, and share the same add/drop deadline. e.g., Transactional Law Clinics and the Transactional Law Clinical Workshop.
 - b) Course and clinic enrollment are separate. Students must enroll in the course on their own through HELIOS; the course is not automatically linked with the clinical placement. Adding or dropping the clinic does not affect course enrollment. A student who is unable to enroll in the course by the clinic add/drop deadline forfeits their clinic enrollment. E.g., either Sports Law: Advanced Contract Drafting or Sports and the Law: Examining the Legal History and Evolution of America's Three "Major League" Sports: MLB, NFL and NBA and the Sports Law Clinic.
 - c) Course and clinic enrollment are separate, but the course has reserved seats for clinic students. Students who receive a seat in the course due to their

clinic enrollment and drop the clinic must also drop the course. E.g., Capital Punishment Clinic and Capital Punishment in America.

- d) Students must work with OCP to finalize their clinic and/or clinical course enrollments. Students who are unresponsive to OCP emails or other communications related to registration and enrollment requirements may, after written warning, have their clinical enrollment terminated.

G. Clinic Withdrawal Deadlines

1. A student withdrawing from a clinic after the last day of the clinic add/drop period for the term will be considered to have withdrawn after the deadline, and the clinic will be listed on their transcript with a “Withdrew after Deadline” (WD) notation. Drop deadlines for clinics that span multiple semesters or multiple years occur during the first semester of clinic participation (e.g. a Fall-Winter clinic has a Fall drop deadline for both the Fall term and Winter term).
2. Exceptions to the withdrawal policy are available only in exceptional circumstances. Students must contact the [Office of Clinical and Pro Bono Programs](#) to request an exception to this policy. Students who are unable to participate in a clinic due to an issue that arises during the conflict check process will not be penalized for dropping after the deadline.
3. See also **Section I(O)** and **Section II(A)(3)** regarding class and clinic attendance and participation and involuntary withdrawals.

H. Course and Clinic Waitlists

Once the maximum enrollment for a course or clinic has been reached, enrollment is closed and a waitlist is formed. Admittance into a waitlisted course or clinic during waitlist processing is strictly in order of the waitlist. Students who are offered a place in a course or clinic from the waitlist will be notified by email and must formally accept within the specified time frame to be officially admitted into the course or clinic. Note: clinic waitlist processing closes earlier than non-clinic waitlist processing.

For more information about enrollment in courses, please contact the [Office of the Registrar](#). For more information about enrollment in clinics, please contact the [Office of Clinical and Pro Bono Programs](#).

VII. Written Work Registration Deadlines

For additional information about written work, see **[Section I\(L\)](#)**, **[Section II\(A\)\(6\)](#)**, and **[Section III\(A\)](#)**.

A. Summary of Written Work Registration Deadlines

Table 6: Written Work Registration Deadlines

Type of Writing	Registration/Application Deadline
J.D. Independent Written Work	Fall term: second Friday in October (2Ls and 3Ls) Spring term: second Friday in February (all J.D. students)
LL.M. Written Work Requirement	Fall term: October 30, 2026 (all 50-page papers and fall-term 25-page papers)
LL.M. Optional Written Work	Spring Term: February 8, 2027 (spring-term 25-page papers)
Winter Term Writing Registration for J.D. Students	Second Friday in November (2Ls and 3Ls)
Winter Term Writing Application for LL.M. Students	November 12, 2026 (LL.M.s)
Writing Groups (for upper-level J.D. and LL.M. students)	Fall- and Fall-Spring Groups: September 18, 2026 Spring-Only Groups: January 8, 2027

Absent express permission, no academic work, including examinations, papers in lieu of exams, optional written work, seminar papers, exercises or journals, papers written in satisfaction of the [J.D. Written Work Requirement](#) or the [LL.M. Written Work Requirement](#) or revisions thereto, may be submitted for degree credit after the final deadlines specified above. Such permission will be granted only with the permission of the instructor and in consultation with the [Registrar](#) and [Dean of Students](#) in cases where:

1. The delay in submission of the work was caused by a serious personal or medical emergency;
2. The delay will not prejudice the evaluation of the work by the instructor; and
3. The delay will not prejudice the preparation of the final degree list, including awards, by the [Office of the Registrar](#).

(See **Section XIII(N)** regarding graduation and payment of outstanding student account charges.)

B. Registration for the J.D. Written Work Requirement

1. Students Matriculating Prior to Fall 2023

a) Option 1

The J.D. [Written Work Registration Form](#) with the faculty supervisor's signature must be submitted to the Office of the Registrar by the following dates:

- **Fall Term:** second Friday in October (upper-level J.D. students)
- **Winter Term:** second Friday in November (upper-level J.D. students)
- **Spring Term:** second Friday in February (all J.D. students)

Students should present their proposals to the faculty supervisor for approval well in advance of these deadlines as faculty members may require additional preliminary work before accepting a proposal.

b) Option 2

The Option 2 [Written Work Registration Form](#) with the appropriate signatures must be submitted by students to the [Office of the Registrar](#) by the first Friday in February of their final year.

Verification signatures are needed as follows for Option 2 registration:

- i) Law school course or seminar papers: No verification signature needed.
- ii) Clinical Writing: The following verification signatures are needed for clinical work:
 - In-house clinics: Harvard Law School Clinical Faculty Director
 - Externship Placements: Harvard Law School Faculty/Lecturer on Law Clinic Director and Direct Clinical Supervisor
- iii) Moot Court Briefs:
 - Ames - Board of Student Advisors
 - Other - Faculty Supervisor of the Moot Court Competition Team
- iv) Law Journal Writing: Journal Editor-in-Chief
- v) Non-traditional Legal Writing: Faculty Supervisor

2. Students Matriculating Fall 2023 and Thereafter

a) Analytical Paper

Students complete the analytical paper either through a course, seminar, workshop, faculty-led writing group, or independent written work. Students who complete analytical papers through faculty-led writing groups, courses, or seminars where an analytical paper is required of every enrolled student are typically not expected to submit any additional documentation to validate the requirement. Students who

complete analytical papers in other contexts – courses, seminars, or workshops where an analytical paper is optional or through independent writing – must complete an [analytical paper documentation form](#), with instructor signature, that they submit to the Registrar.

b) Professional Writing Requirement

Students complete registration and validation of the Professional Writing Requirement via enrollment in, and successful completion of (a grade of LP or above), a course or clinic designated as satisfying the requirement. No further paperwork is required.

C. Registration for the LL.M. Written Work Requirement

(Note: Students must seek approval well in advance of the dates below, as faculty members may require additional preliminary work before accepting a proposal.)

1. LL.M. student deadline for submitting faculty-approved registration proposal and form to the Graduate Program Office for 50-Page Papers and fall term 25-Page Papers: October 30, 2026.
2. Deadline for submitting faculty-approved registration proposal and form to the Graduate Program Office for spring term 25-Page Papers: February 8, 2027.
3. Final deadline for all LL.M. written work registration: February 8, 2027. LL.M. students who fail to register for the LL.M. Written Work Requirement by February 8, 2027 may be removed from the May 2027 degree list.
4. Deadline for changes to Required Written Work registration (per the conditions in [Section II\(A\)\(7\)\(f\)](#)): April 9, 2027.

D. Mandatory Registration for the Written Work Requirement

J.D. degree candidates who fail to register for or communicate to the Registrar their plan for completing the J.D. Written Work Requirement may be removed from the May 2027 degree list. LL.M. degree candidates who fail to register for the LL.M. Written Work Requirement by February 8, 2027 may be removed from the May 2027 degree list.

E. Registration for Independent Written Work (J.D. Students) and Optional Written Work (LL.M. Students)

To register for independent written work (J.D. students), including Research Assistant Work for Credit (J.D. students only, see [Section III\(A\)\(1\)\(c\)](#)), and optional written work (LL.M. students), students must submit the [Written Work Registration Forms](#), signed by the Law School faculty supervisor by the deadlines listed below. J.D. students should file the completed form with the Office of the Registrar, and LL.M. students should file the completed form with the required proposal with the Graduate Program Office. The deadlines for 2026-27 are:

- **Fall term:** second Friday in October (J.D. students). October 30, 2026 (LL.M. students, Optional Written Work only – see [Section VII\(C\)](#) for deadlines for required written work).
- **Winter term:** second Friday in November (J.D. students only).
- **Spring Term:** second Friday in February (J.D. students). February 8, 2027 (LL.M. students, Optional Written Work only – see [Section VII\(C\)](#) for deadlines for required written work).

F. Application and Registration for the Winter Term Writing Program

To register for the Winter Term Writing Program (WWP), J.D. students should indicate on the registration form that they are registering for WWP and wish to have the credits for the paper registered into the Winter Term.

1. Registration deadline for J.D. students: second Friday in November.

2. Application deadlines for LL.M. students:

- Applications available from Graduate Program Office: October 26, 2026
- Application deadline: November 12, 2026
- Applicants notified of results: early December 2026

G. Additional Credit for J.D. Written Work

J.D. students who have approval for additional credit for a paper for which they have already registered should notify the Office of the Registrar by:

- Fall term: second Friday in October (2Ls and 3Ls)

- Winter and Spring term: second Friday in April

H. Registration for Written Work for Upper-Level J.D. and LL.M. Writing Groups

Writing Groups have earlier deadlines for submitting written work registration forms. For further information regarding Writing Group registration, please refer to the [Upper-Level J.D. and LL.M. Writing Groups webpage](#) and see [Section VII\(A\)](#).

All [Written Work Registration Forms](#) are available in hard copy in the [Office of the Registrar](#).

VIII. Deadlines for Submission of Law School Work

A. Submission Deadlines for Academic Work

Table 7: Summary of Submission Deadlines for Academic Work

Type of Work	Submission Deadline
Academic Work in Courses, Seminars, and Reading Groups	Last day of exams in the relevant term or earlier date as set by instructor
Option 1 of the J.D. Written Work Requirement	April 23, 2027 (last day of classes)
Analytical Papers of the J.D. Written Work Requirement (only if completed independently, i.e., outside the context of seminar, course, or writing group)	
LL.M. Written Work Requirement	
Independent Written Work (J.D. Students) and Optional Written Work (LL.M. Students)	
Winter Term Writing	
Option 2 of the J.D. Written Work Requirement	Varies depending on type of writing (no later than April 23, 2027)
Final Deadlines for Degree Candidates (see Section VIII(B) , Section VIII(C) , and Section VIII(D)).	November degrees: September 30, 2026 February degrees: December 18, 2026 March degrees: January 22, 2027 May Degrees: May 14, 2027

Note: These deadlines apply for all students both degree and non-degree unless the faculty member sets an earlier date.

B. Submission Deadlines for Academic Work in Courses, Seminars, and Reading Groups

All academic work (other than exams) required by the instructor, including papers for a course or seminar, papers done in lieu of an exam, and clinical writing must be submitted by the last day of the examination period of the term in which the relevant offering is given or by the deadline required by the instructor, whichever comes first. In the rare case of an extenuating circumstance, as approved by the [Dean of Students](#), [Office of the Registrar](#), and/or [Accessibility Services](#), as appropriate, an extension of up to ten business days beyond the regularly scheduled exam period may be granted for the completion of deferred exams.

Extensions are available for such required non-exam coursework or papers only with the approval of the faculty member or the [Dean of Students](#) in consultation with the faculty member, and only in accordance with the guidelines set out in the section entitled “Extensions” in **Section I(Q)** (for J.D. students) and **Section II(A)(4)(e)** (for LL.M. students).

Students who have an approved extension on non-exam related work will receive an EXT notation on the transcript until the work is completed and graded. EXT notations must be resolved by no later than the last day of classes of the semester (fall or spring) that follows the originally scheduled completion of the course or written work or earlier deadline as set by the faculty member. If a student fails to complete the work by that date or to receive a further extension, the Registrar’s Office generally will withdraw them from the course or written work and enter a WD on the transcript. However, if failure to complete credits for a course or written work will result in a student dropping below the semester or year required credit minimum, the student must complete the work or receive an F grade.

C. Submission Deadlines for Written Work for J.D. and LL.M. Students

1. Deadline for All Students

Absent earlier deadlines set by the student's faculty supervisor, all submissions for Option 1 or the Analytical Paper of the J.D. Written Work Requirement, the LL.M. Written Work Requirement, Independent Written Work, and the Winter Term Writing Program are due on April 23, 2027.

2. Extensions for May Degree Candidates (J.D. and LL.M.)

Individual instructors, upon advising the Registrar (for J.D. Students) or the Graduate Committee (for LL.M. students) in writing that they believe that a satisfactory project can be completed and that there will be sufficient opportunity to evaluate the paper, may grant

extensions after April 23, 2027 up until the final deadline of May 14, 2027 (see [Section VIII](#)).

3. Extensions for 1Ls and 2Ls

- a) Students may request an extension of one term beyond the term in which the non-exam paper is due. With an extension, the work will be due on the last day of classes of the following term.
- b) Students with an approved extension will receive an EXT on the transcript for the writing credits and, if applicable, any course or seminar credits with the paper, until the work is completed and graded (see [Section I\(Q\)](#)). In the absence of an EXT notation or a course/paper grade, a WD will be entered on a student's transcript. However, if failure to complete credits for a course or written work will result in a student dropping below the semester or year required credit minimum, the student must complete the work or receive an F grade.

D. Submission Deadlines for Option 2 of the J.D. Written Work Requirement

See [Sections VIII\(B\)](#) and [VIII\(C\)](#) for submission deadlines for course or seminar papers, clinical writing, and optional written work. For all other types of Option 2 writing including moot court briefs and law journal pieces the submission deadlines will vary depending on the needs of the organization, but must be submitted by the last day of classes of the relevant academic year.

IX. Deadlines for Applying to Special Programs

A. Joint, Coordinated, and Concurrent Degree and Study Abroad Deadlines

Students interested in applying for [joint, coordinated, or concurrent degrees](#) or [semester abroad](#) should consult the individual program materials for applicable deadlines.

B. Berkeley Exchange Program

Application deadline: the second Friday in February of the student's 2L year. The acceptance deadline for HLS students to commit to the Berkeley Exchange Program is June 15.

C. Program for Visits at Other Law Schools

Application deadline: the second Friday in February of the year prior to the proposed visit, except in extraordinary circumstances. The acceptance deadline for HLS students to commit to the approved program is June 15.

X. Effect of Health Issues on Residency and Enrollment

A. Responsibilities of Health and Counseling Services and HLS

Responsibilities of Health and Counseling Services

Medical care and medical decision-making

Medical care and medical decision-making are the province of clinicians. Thus, in consultation with patients, clinicians recommend hospitalization, arrange procedures, prescribe medications, conduct psychological evaluations, and recommend and implement ongoing treatment. Harvard University Health Services preserves the rights to privacy and confidentiality of students under its care, communicating with others about students only with those students' knowledge and consent, except as noted below.

Exceptional circumstances

In certain circumstances it may not be possible or advisable for professional staff at Harvard University Health Services to obtain a student's consent to a disclosure of health or health-related information. Circumstances worthy of note include the following:

- 1. Danger to Any Person**

One exception to obtaining a student's consent is the rare instance in which a student's medical condition or behavioral disturbance poses a danger to the student or threat to others or to the community. Harvard University Health Services professional staff may then disclose any relevant information to any appropriate person, including School officials, for the purpose of protecting the student, others, or the community from harm. Generally, even in this situation, every effort is made to notify the student of the need to disclose and the reason for such disclosure.

2. Treatment at Hospitals or Medical Facilities

Harvard University Health Services will notify the School when it is aware of student hospitalizations or transfers to emergency departments. Such notification is provided to the [Dean of Students Office](#) and is documented at Harvard University Health Services. If the School has reason to believe that a student may be in a medical facility, the School may contact Harvard University Health Services regarding a student's whereabouts. The Harvard University Health Services clinician ordinarily will disclose only that the student is safely in care. When, in a Harvard University Health Services clinician's medical judgment, a student is in a life-threatening condition, or is psychologically unstable, or has sustained an illness or injury that likely will result in a hospital admission or require care after discharge, that clinician will notify the [Dean of Students Office](#), or a School administrator. Only information regarding the fact of the admission/discharge, location of the student, general medical condition, and prospects for return to enrollment or residence is shared; information regarding diagnosis or treatment is not shared. Students who are hospitalized or are receiving emergency care are expected to update Harvard University Health Services; when the hospitalization or emergency room visit raises serious questions about the student's health or well-being, the student ordinarily will be assessed regarding suitability to return to enrollment or residence (See "Clearance for Return").

When Harvard University Health Services is aware that a student who has been hospitalized or received emergency treatment decides to leave a medical facility against medical advice, a Harvard University Health Services clinician may apprise the School of this decision, if in the clinician's judgment the student's decision may pose a significant risk of physical or emotional danger to the student or to members of the community. Depending upon the circumstances, the clinician may inform a School official of the student's location, decision to leave a facility against medical advice, risk of further injury or relapse, or possible threat to the student's own safety or to that of others.

Consultation to HLS

In addition to providing student health and counseling services, Harvard University Health Services also acts occasionally as a consultant to the School, advising the School about individual students' needs, ordinarily with students' full knowledge and consent. Situations that routinely call for close coordination and consultation between Harvard University Health Services and the School involve: accommodations for students experiencing difficulties; leaves of absence and returns from leaves of absence; clearance to return to residence and enrollment; and agreements to engage in treatment. When considering the situation of a student who has an illness or is exhibiting behavior that affects functioning, the School may need professional evaluation of the condition to determine appropriate next steps. In response to a request from the School, Harvard University Health Services

clinicians may evaluate a student's condition and make recommendations to the School. In making such recommendations, Harvard University Health Services clinicians ordinarily will not disclose information they know independently about a student's medical or mental health condition without the student's consent and, in all cases, will not disclose information about the student that is not relevant to the recommendations.

Responsibilities of HLS

The School, in communication with the affected student as appropriate, determines: (a) whether an injured or ill student, or a student exhibiting disruptive behavior, may continue to be in residence and/or enrolled; and (b) whether a student may continue in or return to residence and enrollment after a short or longer-term absence due to accident, illness, or behavioral disturbance. In situations where a student's medical illness or behavioral disturbance raises concerns about the practicality and appropriateness of the student's residence and enrollment, the School values the expert advice of Harvard University Health Services in reaching its decision.

B. Clearance for Return to Residence and/or Continued Enrollment and Participation in Harvard-Related Programs or Activities

After a hospitalization or emergency room visit by one of its students that raises serious concerns about the student's health or well-being, or in other circumstances that raise serious questions about the student's health or well-being and reasonably call into question their ability to function as a student in the HLS environment, HLS ordinarily will not permit that student to return to residence and enrollment or participation in any Harvard-related programs or activities before making its own assessment of the suitability of the student's return. (See [*Procedure for Notice and Consultation*](#)). To better inform that assessment, students are expected to notify both HLS and Harvard University Health Services of any hospitalization or emergency department visit. Harvard University Health Services can be notified by phone 24 hours a day, seven days a week, at 617-495-5711.

Reason for Policy

An important consideration in HLS's decision as to whether a student may continue in or return to residence and enrollment is the impact of the student's presence on the community. A student who is injured, ill, or exhibiting disturbing or disruptive behavior may require ongoing care. Serious alcohol- or drug-related problems, in particular, have the potential to disrupt residential life and/or life in the academic community significantly and impair a student's ability to function academically and socially. Harvard Law School regards as unreasonable the expectation that roommates, suitemates, friends, or Harvard Law School staff will take on health care responsibilities for other students.

Any student may, of course, refuse to allow consultation between the student's clinician(s) and Harvard Law School, but such a refusal will not prevent Harvard Law School from making a decision regarding a student's return to residence or continued enrollment.

Procedure for Notice and Consultation

HLS will consult with clinicians at Harvard University Health Services and/or, if the student has been treated elsewhere, clinicians at other facilities or in private practice, ordinarily with the student's permission. Depending on all of the relevant circumstances, such consultation may be initiated either by HLS or by clinicians at Harvard University Health Services. Notice by Harvard University Health Services that a student has been hospitalized or treated in an emergency department of an area hospital may prompt HLS to begin a process of consultation through which it will decide whether and under what circumstances the student may continue in or return to residence or enrollment.

HLS also may independently decide that, based on its observations or other information it has about a student, it should initiate the process of consultation with Harvard University Health Services clinicians, which may include ascertaining whether that student has been hospitalized or treated by an emergency department.

Consultation will be focused on the concerns raised by the student's condition or behavior and requirements for continued care, in order to facilitate Harvard Law School's decision about the student's capacity to continue in or return to residence and enrollment.

XI. Leaves and Withdrawals

A leave of absence is a period of non-enrollment at Harvard Law School. Students on leave are not considered to be working toward their Law School degree. Students who do not return from leave and are not granted an extension of leave will be considered to have withdrawn from the Law School. See **Section XI(F)**.

Students considering a leave should consult the rules regarding admission to the bar for the jurisdiction in which they plan to practice regarding the affect the leave(s) of absence will have on their eligibility to take the bar exam.

A. Voluntary Leave of Absence

Students who wish to interrupt their studies at any time before graduation may request a leave of absence. Requests for a leave of absence may be granted by the [Dean of Students](#) in consultation with other officers of the University, as appropriate. With respect to a voluntary leave of absence for medical reasons, the [Dean of Students](#) ordinarily will consult with Harvard University Health Services (which may consider information from the student's current and/or former health care providers, if made available by the student).

B. Requesting a Leave

1. To request a voluntary leave of absence, J.D. and LL.M. students must complete the [Leave of Absence Request form](#) which is available online and in hard copy in the [Dean of Students and Community Engagement, Equity, and Belonging Office](#), the [Student Financial Services Office](#), and the [Office of the Registrar](#).
2. To request a voluntary medical leave of absence, J.D. and LL.M. students must contact the [Dean of Students](#) in order to discuss the requested leave. When requesting medical leave, students must provide a letter from a treating licensed clinician supporting the request.
3. To request a leave to attend a non-Harvard school as part of a Law School coordinated, joint, or concurrent degree program, students must complete the [Leave of Absence Request form](#) and should contact HLS [Academic Programs](#), to discuss their academic plans.
4. All students requesting a leave of absence should contact Student Financial Services to understand the implications of their proposed leave on their Financial Aid.
5. International students must speak with the [Harvard International Office](#) about the effect their proposed leave may have on their immigration status, visa status, and practical training eligibility before the leave of absence will be approved.

C. Involuntary Leaves of Absence

Under certain circumstances, a student may be placed on an involuntary leave of absence. An involuntary leave of absence is not a disciplinary sanction. However, an incident that gives rise to a leave of absence, whether voluntary or involuntary, may also be the basis for disciplinary action. A student who prefers to take a voluntary leave of absence for medical reasons rather than to be placed on an involuntary leave of absence for medical reasons is ordinarily allowed to do so. Transcripts do not distinguish between voluntary and involuntary leaves of absence.

An involuntary leave of absence may be required for the following reasons:

1. **Medical circumstances:**
 - a) (i) The student's behavior poses a direct threat to the health or safety of any person or has seriously disrupted others in the student's residential community or academic environment; and (ii) either the student's threatening, self-destructive, or disruptive behavior is determined to be the result of a medical condition or the student has refused to cooperate with efforts by Harvard University Health Services or other clinicians to determine the cause of the behavior.

- b) The student is not cleared to return to enrollment and/or residence at HLS following either: (i) a hospitalization or emergency room visit that raises serious concerns about the student's health or well-being; or (ii) other circumstances that raise serious concerns about the student's health or well-being and reasonably call into question their ability to function as a student in the HLS environment. For more about the process of clearance to return to enrollment and/or residence after a hospitalization or emergency room visit, see **Section X**.

The decision to place a student on an involuntary leave of absence for health related reasons is made in consultation with Harvard University Health Services (which may consider information from the student's current and/or former health care providers, if made available by the student), after an individualized assessment of all of the pertinent factors, such as: the nature of the student's conduct; the nature, duration and severity of the risk; the likelihood of potential injury; and whether reasonable modifications of policies, practices or procedures will mitigate the risk. However, reasonable modifications do not include changes that would fundamentally alter the academic program or unduly burden the School's resources or staffing capabilities or, with respect to the required level of care or monitoring, that would exceed the standard of care that a university health service can be expected to provide.

2. **Failure to adhere to the terms of an agreement to engage in treatment:** The student's continued enrollment and/or residence is conditioned on the student's agreement to meet the expectations set forth in an agreement to engage in treatment, such as following the recommendations of the student's treatment team, and the student has failed to adhere to the terms of that agreement.
3. **Alleged criminal behavior:** The student has been arrested on allegations of serious criminal behavior or has been charged with such behavior by law enforcement authorities.
4. **Risk to the community:** The student has allegedly violated a disciplinary rule of the School, and their presence on campus poses a significant risk to safety or to the educational environment of the community.
5. **Persistent and seriously disruptive conduct:** The student has, on multiple occasions, engaged in behavior that has seriously disrupted the educational or residential environment, and
 - a) the student has been clearly informed in writing that the behavior is unacceptable and must change; and
 - b) the student has not discontinued disruptive behavior and/or has not responded adequately or appropriately to the School's efforts to address the behavior.

6. **Indebtedness:** The student's term bill is unpaid and the student has not made arrangements acceptable to the School to address the issue.
7. **Immunizations:** Failure to provide medical documentation of required immunizations.
8. **Unfulfilled School requirements:** The student has not met an academic or other School requirement, including without limitation, attending class or participating in required activities, and has not taken steps acceptable to the School to meet the requirement.
9. **Failure to register:** The student has not registered as required at the beginning of each term.

The decision to place a student on involuntary leave is made by the Dean for Student Services, [Dean of Students](#), and/or such other person as the Dean designates in consultation with the Chair of the Administrative Board and/or other officers of the University, as appropriate. As noted above, in the case of an involuntary leave of absence for medical reasons, the School also will consult with an appropriate person at Harvard University Health Services.

Students are notified in writing that they have been placed on involuntary leave. The student may appeal the involuntary leave decision to the HLS Administrative Board, within five calendar days.

D. While on a Leave of Absence

1. **Student conduct:** Students going on leave are reminded that all degree candidates, whether currently registered or not, are expected to maintain a satisfactory standard of conduct.
2. **Tuition and Financial Aid:** Any student who goes on leave of absence during the academic year is charged tuition and any applicable fees, including rent, to the end of the period in which they are on leave as set forth in **Section XI(G)**. Students who take a medical leave of absence will be refunded tuition for the semester. Students receiving scholarship or other financial aid should consult Student Financial Services concerning the financial implications of going on leave. International students should consult the Harvard International Office concerning their status.
3. **Student Health Insurance:** The date a student goes on leave will affect the student's health insurance through Harvard. For details, review the Leave of Absence policy on the HUHSP website, or contact the Student Health Insurance Office, Member Services, at 617-495-2008 or mservices@huhs.harvard.edu.
4. **Attendance at another school:** While on leave, students may not receive Law School credits for classes taken at another school, whether at Harvard or elsewhere.

Some exceptions may be made with the approval of the [Associate Dean for Academic Programs](#) for joint and coordinated degree students.

5. **Access to Facilities and Other Resources:** Libraries and other facilities and Harvard services normally may be used only by students who are currently registered. Students on leave may not participate in extracurricular activities or other University programs including on-campus employment opportunities for pay or for credit. Exceptions to this rule must be specifically approved in advance by the [Dean of Students](#). If so instructed by the [Dean of Students](#), a student on leave must remain away from the University campus. Unless otherwise specified, while on leave, joint and coordinated degree students, and those concurrent degree students pursuing their second degree through another Harvard school, will have access to their Law School email accounts, housing, library services including Westlaw and Lexis and other University services, and their Harvard IDs will remain active. Concurrent degree students doing their second degree at a non-Harvard school will have access to their Law School email accounts and limited library services, but will not have access to Harvard housing and other University services.
6. **Medical treatment plans:** Following an individualized assessment, the School may require students who are on leave for medical reasons to comply with a treatment plan during their time away.

E. Returning to School

Students in Good Standing

The general conditions for return from voluntary leave are good standing, visa clearance from the Harvard International Office, financial clearance from Student Financial Services, and receipt by the Registrar's Office of written confirmation of return.

Students on a voluntary leave are expected to return to full-time registered status on or about the date indicated on their leave of absence request form. Please contact the [Dean of Students](#) or the [Registrar's Office](#) for information about exceptions to this policy. Before returning to school, a student must notify or, if a petition is required, submit a complete petition to the appropriate body as described below by October 15 for a winter term or spring semester return, or by June 15 for a fall semester return.

A student in good standing on a voluntary non-medical leave of absence ordinarily may return by notifying the Registrar consistent with the schedule described above, although it remains the student's responsibility to ensure that they have adequate time to complete the degree within the time limits established by the School (see **Sections I(A)(3), II(A)(4)(d)(iv), and III(B)**) and to petition the Administrative Board for any leaves beyond two years, either sequential or intermittent, as set forth in **Section XI(F)**.

Students Not in Good Standing, on an Involuntary Leave, or with Pending Disciplinary Action

Students who were not in good standing at the time a voluntary leave of absence was granted, students who were placed on an involuntary leave of absence, and/or students subject to pending disciplinary action must petition the HLS Administrative Board for permission to return to the School. Such a petition must demonstrate that the circumstances that led to their leave have been satisfactorily addressed and that they are ready to resume their studies. An important indicator of readiness to return is evidence of engagement in productive activity. A student on such a leave who is not granted permission to return by the HLS Administrative Board within two years of the start of their leave, or who has been on such a leave for a cumulative period of two academic years, will be withdrawn from the Law School and may not resume their studies other than in a case of extraordinary circumstances as approved by the HLS Administrative Board. In all other circumstances, the student must reapply for admission to the Law School as a first-year student through the Admissions Office.

Students on Medical Leave of Absence or Students Whose Health or Well-Being is of Concern

If the leave, whether voluntary or involuntary, was for medical reasons, then the student must submit a petition to the [Dean of Students Office](#) for permission to return to the School and must demonstrate that the circumstances that led to their leave have been satisfactorily addressed and that they are ready to resume their studies. In addition, so that the School may conduct an individualized assessment of their circumstances, students on medical leave ordinarily will be required to consult with Harvard University Health Services (and to grant permission to Harvard University Health Services to obtain their treatment records and communicate with their treatment providers) so that a professional assessment about the student's productivity during their time away and readiness to return can be shared with the School.

In addition, if the School learns of serious concerns about the health or well-being of a student who either has been hospitalized or visited the emergency room or whose behavior reasonably calls into question their ability to function as a student in the Harvard Law School environment, then the School similarly may require the student to consult with Harvard University Health Services (and to grant permission to Harvard University Health Services to obtain their relevant treatment records and communicate with their treatment providers). (For more about the process of clearance to return to enrollment and/or residence after a hospitalization or emergency room visit, see **Section X(B)**.) The purpose of such consultation is so that a professional assessment can be shared with the School about the student's readiness to return and function in the student environment, with or without reasonable accommodation. Note that while the input of a student's treatment provider is an important consideration in the petition process, Harvard University Health Services clinicians may have special knowledge of the University context to which students will be returning.

In all such cases, the decision whether to allow a student to return is made by a three-member panel of the Administrative Board (including the Chair, with other members selected by the Chair) in consultation with the Dean for Student Services, [Dean of Students](#), and/or other such persons as the Dean designates and/or other officers of the University, as appropriate. Any student whose petition to return from a medical leave of absence is denied will receive a written explanation of the decision and may submit a written appeal of the decision to the Administrative Board. The chair will select and convene at least two different members of the Board to review and decide the appeal, with the Chair participating without a vote. The appeal must be submitted within five (5) calendar days, and is limited to the following grounds: (a) new materially relevant information has become available; and/or (b) there is reasonable evidence of a procedural error in the decision-making process.

Certain conditions as set by the [Dean of Students Office](#) or the Administrative Board may be required for approval to return. Students will be allowed to participate in course preference selection while waiting on approval to return. If students are not given permission to return, then the courses will be dropped from their schedules. If the petition to return is approved, then the student may start to make arrangements for their return.

Any disciplinary matter must be resolved before a student on leave of absence will be allowed to return and, if the student has been required to withdraw while on leave of absence, then any conditions for return after a required withdrawal also must be satisfied.

Students returning from a leave who wish to apply for financial aid must notify Student Financial Services and file the necessary application forms by mid-April for the following fall term, and by October 1 for the following spring term. Late applicants cannot be assured that their aid will be available in time for registration payment deadlines.

Students who have been granted a leave and who have borrowed money through Harvard must submit an annual loan deferment form to the Student Loan Office upon their return to Harvard. Deferment forms may be obtained through either the Student Loan Office or the Financial Aid Office and must be completed and certified by the Registrar immediately following Registration. Failure to file a deferment form upon return will cause payments to be due on loans and could affect future borrowing eligibility.

A student will not be allowed to register in the Law School or University again until all previous term-bill charges have been paid and no loan is in default.

Agreements to Engage in Treatment

The School may condition a student's enrollment and/or residence on certain terms or conditions as set forth in a written agreement between the School and the student, when the student's conduct or circumstances have caused heightened concerns about the student's safety and/or well-being and: (a) the appropriateness of the student's continued enrollment and/or residence; or (b) the student's readiness to return to the Harvard community. The agreement to engage in treatment may include, among other things,

compliance with a medical treatment plan, regular consultations with health care professionals, communication with administrators, and limited disclosure of relevant medical information, on a need-to-know basis, such as compliance with treatment and restrictions on certain activities. The decision to require such an agreement is arrived at in consultation with Harvard University Health Services after an individualized assessment of the nature of the student's conduct and circumstances and any other pertinent factors.

F. Extending Leaves of Absence

Extending Voluntary Leaves of Absence

If a student does not intend to return from a leave, they should notify the [Registrar's Office](#) as soon as possible.

1. Students requesting to extend a voluntary (personal or medical) leave up to an aggregate period of no more than two years must [submit a leave extension request](#) by October 15 if seeking an extension starting winter term or spring semester, or by June 15 if seeking an extension starting fall semester.
2. All requests for leave beyond two years—either sequential or intermittent—must be submitted to the Administrative Board and should contain the following information: a brief summary of the student's activities during the leave of absence, why additional leave is required, how completion of their law degree still fits the student's academic and professional goals, and the student's commitment to return by the applicable semester to complete the degree without additional voluntary leave time. Please note that students who do not petition the Administrative Board for an extension of leave beyond two years will be considered to have withdrawn from the Law School. Students with withdrawn status for four years or fewer may petition the Administrative Board for readmission. Students with withdrawn status for more than four years must reapply for admission to the Law School as a first-year student through the admissions office.

Failure to Successfully Petition to Return from a Leave of Absence

Students who were not in good standing at the time a voluntary leave of absence was granted, students who were placed on an involuntary leave of absence, and students on a medical leave, whether voluntary or involuntary, must petition to return as set forth in **Section [XI\(E\)](#)** above.

If such students fail to petition to return, or are not granted permission to return, and the period of their leave has been two years, either sequential or intermittent, then they will be withdrawn from the Law School. Students with withdrawn status for four years or fewer may petition the Administrative Board for readmission. Students with withdrawn status for more than four years must reapply for admission to the Law School as a first-year student through the admissions office.

G. Financial Implications of a Leave or Withdrawal

1. While on leave, students are not considered to be working toward their degree and thus are not eligible to receive financial assistance, except as noted in **Section [XI\(G\)\(3\)](#)** below.
2. Students who take a leave, withdraw, or are withdrawn (including in cases involving discipline or rescission of an offer of admission) during the academic year are charged tuition for the period of enrollment for the term in which the leave or withdrawal occurs, plus insurance and health fees pro-rated in accordance with the [Harvard University Student Health Program Leave of Absence/Withdrawal Policy](#).
 - For example: a student taking a leave in November will be charged tuition through the end of November, plus pro-rated Harvard University Health Services and Harvard University Student Health Insurance Plan (if enrolled) fees for the fall term, and the living expense budget will be adjusted to 3/9ths of the full budget based on a nine-month academic year beginning in September.

Tuition is charged until the Registrar receives the [Leave of Absence Request form](#) or written notice of a withdrawal. When written notice of a leave or withdrawal is received by the dates listed below, tuition will be charged as follows:

Table 8: Prorated Tuition Charges Related to Leaves and Withdrawals

Date	Tuition
September 30	1/9 total annual charges
October 31	2/9 total annual charges
November 30	3/9 total annual charges
December 31	4/9 total annual charges
January 31	5/9 total annual charges
February 28	6/9 total annual charges
March 31	7/9 total annual charges
April 30	8/9 total annual charges
after April 30	Full Tuition

3. Once the student's account has been adjusted, Student Financial Services will prorate any aid package based on enrollment, adjusted tuition, and fee information

received from the Registrar's Office, in accordance with both federal and institutional regulations. Students who take a leave during the academic year may be required to repay a portion of the financial aid award since cash advances/refunds are disbursed at the beginning of each term in anticipation that students will be enrolled for the entire term. Students receive written notice of any outstanding balance that results from a leave of absence and are responsible for payment in full prior to re-enrolling at HLS.

4. Any student who leaves the University with an amount due on their student bill that is unpaid for 60 days or more may be subject to collection activities. The costs associated with collecting an unpaid account will be added to the student's outstanding debt and must be paid in full.

XII. Administrative Board

By vote of the faculty, the Administrative Board has responsibility for matters involving student discipline and various powers relating to dispensations from and interpretations of the academic rules and practices of the School. The Board's membership consists of three members of the faculty, three students, two administrators, and a non-voting Secretary of the Board. The [Dean of Students](#) is an additional ex officio member (non-voting). The Secretary of the Board acts as the liaison between students and the Board. Students wishing to petition the Board should consult the Secretary of the Board.

A. Disciplinary Actions

The Administrative Board at Harvard Law School has four categories of discipline that may be imposed for student infractions of Law School rules: reprimand, suspension, dismissal, or expulsion. These sanctions are imposed only after the Board has voted to institute formal disciplinary charges against a student. Students have the right to a full disciplinary hearing conducted by the Administrative Board and a right to be represented by counsel. Reprimand, suspension, dismissal, or expulsion becomes part of the student's Law School file and will be placed on the student's transcript and reported, on appropriate inquiry, to state Board of Bar Examiners. Suspension may be for a term, a year, or any other length of time the Board deems appropriate, with conditions on the student's return as the Board deems appropriate. Dismissal and expulsion are forms of permanent separation from the Law School and must be approved by the faculty.

In cases in which an infraction by a student is not sufficiently serious to warrant the imposition of formal discipline, the Administrative Board may issue a warning. Such a warning is placed in the student's file but is not reported outside of the Law School as long as the student engages in no additional violations of University or Law School rules. If a student who has previously received a warning again violates University or Law School rules, the Law School may disclose the initial warning outside the Law School and/or may

impose more serious discipline for the subsequent violation than might otherwise have been imposed.

In past years, there have been occasions when students “sat in” or obstructed access to administrative offices, faculty offices, and other school facilities as a form of protest. The Administrative Board imposed the sanction of a “reprimand” for such conduct in the spring of 2001. Students are on notice that such conduct may result in a significant disciplinary sanction.

Students are expected to comply with all disciplinary rules from matriculation until the conferring of the degree. A degree will not be granted to a student who is not in good standing or against whom a disciplinary charge is pending.

B. Procedures for Disciplinary Cases*

Except for cases covered under the [Harvard Non-Discrimination and Anti-Bullying Policies and Procedures](#), [Harvard University Title IX and Other Sexual Misconduct Policies and Procedures](#), and for cases covered under the [University Committee on Rights and Responsibilities Fact-Finding Procedures](#). See **Section XIII(A), **Section XIII(B)**, and the [University Committee on Rights and Responsibilities: Fact-finding Procedures](#), respectively.*

The Administrative Board is the Law School committee responsible for the administration of discipline. Cases requiring discipline typically involve cheating, false statements on financial aid applications, and similar departures from generally accepted standards of integrity. In such cases the Board may impose sanctions including reprimand and suspension. In the most severe cases, the Board may recommend to the faculty sanctions of expulsion or dismissal, imposition of which requires the vote of two-thirds of the faculty.

The Board does not consider itself to be an adversarial or prosecutorial body. Its disposition is to handle matters that come before it as favorably to students as possible consistent with the maintenance of the high academic and ethical standards of Harvard Law School. In many instances matters that come to the Board’s attention can be dealt with informally, without ever initiating disciplinary process. To this end, the Chairperson or Secretary or such other person as the Chairperson designates may investigate a matter for purposes of determining whether it should be treated as disciplinary. In those cases in which disciplinary proceedings are required, the Board will proceed in accordance with the following rules:

1. The Board shall initiate formal proceedings by a written charge that explains the nature of the disciplinary infraction. Such charge shall issue only if the Board believes it is reasonably likely that the charged infraction can be established by clear and convincing evidence.
2. In any formal disciplinary matter, the student has a right to a hearing before the Board. Disciplinary hearings will normally be private, but at the student’s option

and subject to the Board's approval, the hearing shall be public and shall be held in a room sufficiently large, in the judgment of the Board's Chairperson, to accommodate an audience of reasonable size.

3. Disciplinary cases are normally heard by the full Administrative Board. The student may ask any individual member of the Board to recuse themselves for cause. To the extent feasible, a faculty or administrative member who recuses or is otherwise unable to serve shall be replaced by an alternate member.
4. All students against whom formal disciplinary proceedings have been initiated may appear with legal counsel or lay advisor. The Board will attempt to assist a student who needs and desires but cannot afford counsel.
5. A record of the hearing shall be kept, either by stenographic transcript or recording, and shall be made available without charge to the student or their representative on request.
6. At the hearing the evidence against the student will be presented and the student shall have the right to call their own witnesses and to examine all witnesses.
7. It shall be the duty of the Secretary of the Board to assist the student in preparing for the hearing by making available to the student any public announcements or reports of the Board or faculty relating to past disciplinary cases. The Secretary shall also assist the student in obtaining witnesses. This assistance may include a letter to the witness requesting their cooperation with the Administrative Board or such other efforts to secure the participation as may be appropriate to the circumstances.
8. The Administrative Board may consider any evidence that it deems to be relevant and trustworthy, and may exclude any evidence that it deems to be otherwise. Formal rules of evidence do not apply.
9. The Board does not recognize a privilege of noncooperation and may, therefore, draw such reasonable inferences from noncooperation as it deems appropriate. Statements made to members of the Board and others are admissible at the hearing regardless of when made.
10. Information obtained in confidence by the Health Service, whether medical or psychiatric, shall not be sought by the Administrative Board nor disclosed to the Board without the student's consent. No weight is to be given to a student's refusal to consult the Health Service or to the student's refusal to authorize disclosure of information obtained by the Health Service. The absence of such information may, however, properly preclude the Board from considering a medical excuse, explanation, or justification in a particular case.
11. Disciplinary sanctions shall not be imposed unless conduct warranting sanction is established by clear and convincing evidence. Decisions of the Administrative Board shall be by majority vote of the sitting members. In case of a tie vote of all the

members of the Board present and voting, the vote of the majority of faculty members and administrative officers shall determine the outcome.

12. All decisions of the Board to impose sanctions shall be supported by specific findings of fact and conclusions, including, wherever appropriate, a statement of the reasons for the specific sanction imposed and the principles or policies on which the Board relies.
13. In all cases in which the sanction voted by the Board is other than dismissal or expulsion, the decision of the Board shall normally be final. If any such matter is presented to the faculty for consideration, the faculty shall first vote on whether the Board's decision raises such important and novel issues of policy or is made under such other extraordinary circumstances that the faculty must consider the matter.
14. In all cases in which the sanction voted by the Administrative Board is dismissal or expulsion, the student shall be afforded the right to a supplementary hearing on the facts before a hearing officer appointed from the faculty by the Dean. The student shall submit to the hearing officer in writing a statement indicating which of the factual findings of the Board the student disputes, and why. At the hearing, the student may call and examine witnesses and be represented in the same manner as before the Board. The position of the Administrative Board shall be presented to the hearing officer by the Chairperson of the Administrative Board or a person chosen by the Chairperson in consultation with the Dean. The hearing officer shall make a written statement of findings of fact which shall be returned to the Administrative Board. The Board may modify its findings of fact in light of the findings of the hearing officer, and may modify the sanction previously voted.
15. In all cases in which the sanction voted by the Administrative Board is dismissal or expulsion, the faculty shall review the findings and conclusions of the Board. Dismissal and expulsion require a vote of the full faculty. In the case of dismissal, the action taken by the Administrative Board is a vote of requirement to withdraw with a recommendation to the full faculty that the student be dismissed. Dismissal does not necessarily preclude a student's return, but readmission if recommended by the Administrative Board is granted rarely and only by vote of the full faculty. A dismissed student is not in good standing until readmitted. In the case of expulsion, the action taken by the Administrative Board is a vote of requirement to withdraw with a recommendation to the full faculty that the student be expelled. A student who is expelled can never be readmitted and restored to good standing. No student shall be expelled or dismissed except by the vote of at least two-thirds of the members of the faculty present and voting at the faculty meeting at which the recommendation of the Administrative Board is considered.
16. Where the faculty reviews action of the Administrative Board it may substitute its judgment for the Board's on matters of policy including the severity and nature of the sanction imposed. The sanction may be increased in severity as well as decreased. The Board's findings of fact shall not be modified unless, on the basis of

the whole record, including the findings, if any, of the hearing officer, the Board's findings are not supported by substantial evidence.

17. Should situations arise that are not covered by these rules or in which the application of these rules is in the judgment of the Administrative Board, inappropriate, the Administrative Board may formulate and follow an appropriate ad hoc procedure. In any event, departures from the rules of procedure shall not, ipso facto, constitute a defense to the imposition of a disciplinary sanction.
18. Copies of these procedures shall be published and made generally available. The procedures shall also be given to any student involved in an Administrative Board matter as soon as it appears that the matter may be treated as disciplinary.

(The Administrative Board has adopted the following supplementary provisions for disciplinary proceedings.)

1. The Board ordinarily discloses evidence in its possession that will be presented for or against a student a reasonable time before the hearing. The subject of the proceeding or their counsel ordinarily is expected to disclose evidence to be presented in his or her behalf to the Board a reasonable time before the proceeding. In exceptional circumstances, the Chairperson of the Board may qualify the obligation of disclosure, in which case the evidence not disclosed is summarized or described so far as practicable without compromising the justification for nondisclosure.
2. At the outset of a hearing, the Chairperson states the charge against the student, who is then given an opportunity personally to make a statement to the Board. After the student has completed their statement, members of the Board may question the student. When the Board has no further questions, counsel for the student may ask questions for the purpose of expanding or clarifying answers previously given, but not simply to repeat or restate answers previously given. Members of the Board may interrupt questioning by counsel at any time to ask additional questions.
3. After the questioning of the student is completed, other witnesses are asked to give evidence in an order to be determined by the Board.
4. The Board does not ordinarily entertain objections to a question on grounds of irrelevance or immateriality. The Board may ask a witness or counsel to restrict testimony to matters that it deems relevant and material. The Board may entertain objections to a question or line of testimony on the grounds that it is offensive, may unreasonably invade the privacy of the person questioned, or may unreasonably embarrass or shame the person questioned or another person.
5. In compelling circumstances, the Board may require the student to listen to and watch the testimony of another student by video conference. The person so required

will be given an opportunity to consult with their counsel before counsel questions the witness.

6. After all evidence has been received, the subject of the proceeding may make a closing statement of not more than ten minutes. After the subject of the proceeding has spoken, counsel for the subject of the proceeding may make closing statements of not more than ten minutes.
7. The Board may modify the preceding provisions as circumstances require.

XIII. Other Rules and Important Information

A. Notice of Non-Discrimination and Harvard Non-Discrimination and Anti-Bullying Policies

Harvard University and Harvard Law School have adopted policies and procedures to address discrimination and bullying. These policies apply to all students, faculty, staff, researchers and other members of the Harvard community across all Schools and units. Employers using the facilities and services of the career services offices must comply with Harvard policies. The University's non-discrimination and anti-bullying policies can be found here: <https://csndr.harvard.edu/university-NDAB-policies>.

Whenever a formal complaint of discrimination or bullying is investigated in accordance with the University's non-discrimination and anti-bullying policies and procedures, and those procedures result in a finding that a policy violation has occurred, then sanctions or remedial measures will be determined by HLS's Appropriate Official or designee(s), as set forth in those procedures. The HLS Appropriate Official or designee(s) must accept the finding of a policy violation as final and non-reviewable. The only opportunity to appeal the determination of a policy violation is provided within the University's non-discrimination and anti-bullying policies and procedures. Decisions about sanctions and remedial measures are final and cannot be appealed.

The following individuals serve as resources for receiving reports and complaints, directing community members to resources, and providing information on supportive measures:

- Sasha Tulgan, Assistant Dean for Equal Opportunity
- Catherine Claypoole, Dean for Academic and Faculty Affairs
- Jeremy Weinberg, Program Officer for Professional Conduct, Equity, and Access

At HLS, the following individuals have been designated as Appropriate Officials, who serve as the final authority to issue any sanctions under the University's non-discrimination and anti-bullying policies:

- For situations involving students, the Appropriate Official is the HLS faculty members serving on the Law School's Administrative Board or their designee.
- For situations involving faculty, the Appropriate Official is a Law School Deputy Dean or their designee.
- For situations involving staff members, the Appropriate Official is the Dean for Administration or their designee.

B. Title IX Policies and Information

The Law School is committed to maintaining a safe and healthy educational and work environment in which no member of the University community is, on the basis of sex, including pregnancy, and gender identity, gender expression, or sexual orientation, excluded from participation in, denied the benefits of, or subjected to discrimination in any University program or activity. Students are expected to review the [Harvard University Interim Policies on Title IX Sexual Harassment and Other Sexual Misconduct and Procedures](#) and the Law School's related procedures available on the [Title IX Information](#) page. More information and links to resources and training are available at the [Harvard Office for Community Support, Non-Discrimination, Rights and Responsibilities webpage](#). The Law School's [Office of Equal Opportunity](#) can answer questions and provide additional information and guidance about options and resources.

C. Harvard Law School FERPA Policy

1. Family Educational Rights and Privacy Act ("FERPA")

The Family Educational Rights and Privacy Act of 1974, as amended ("FERPA") is a federal law that gives students certain rights with respect to their education records.

2. Education Records

Harvard Law School routinely maintains records for its students that describe and document their work and progress. These education records generally include records such as permanent and local addresses, admissions records, enrollment status, course grades, reports and evaluations, completion of requirements and progress toward the degree, records of disciplinary actions, and letters of recommendation.

3. Access

To be useful, students' records must be accurate and complete. The officials who maintain them are those in charge of the functions reflected in the records and the offices where the records are kept. These ordinarily include the Registrar of Harvard Law School, as well as other institutional officials. All students have access to their own education records and may contribute to them if they feel there is need for clarification.

Students wishing access to their education records should contact the Harvard Law School Registrar's Office, WCC Suite 4007. Ordinarily, students are asked to submit a written request that identifies the specific record or records they wish to inspect. Access will be given within 45 days from the receipt of the request. When a record contains information about more than one student, the student requesting access may inspect and review only the portion of the record relating to themselves. Students also are not permitted to view letters and statements of recommendation to which they waived their right of access, or that were placed in their file before January 1, 1975.

Students should direct any questions they have about the accuracy of records to the person in charge of the office where the records are kept. If questions still remain, the matter may be referred to the Registrar in the Harvard Law School Registrar's Office. Should it be necessary, a hearing may be held to resolve challenges concerning the accuracy of records in those cases where informal discussions have not satisfactorily settled the questions raised.

4. Directory Information

Harvard Law School regards the following information as "directory information," that is, information that, under FERPA, can be made available to the general public: full name, reported date of birth, dates of attendance, concentration, class year, digitized image (please note that while Harvard classifies photos and images as directory information, these are rarely released to parties outside the University without the student's permission), local or campus residence address and telephone number, university email address, prior degree information, original class at time of matriculation, degree candidate status, date of graduation (actual or expected), degree(s) received with field of concentration and level of honors granted (if any), prizes, fellowships, and similar honors awarded. Please note that Harvard University's definition of "[directory information](#)," may include elements in addition to those used by Harvard Law School, and that requests for directory information received at the University level thus may result in disclosure of such additional elements.

Students may direct Harvard Law School not to disclose their directory information, usually known as putting in place a "FERPA Block." To do so, a student must inform the Harvard Law School Registrar's Office in writing, of that decision. Students should be aware of the possible consequences of putting in place a FERPA Block, such as missed mailings, messages, and announcements, non-verification of enrollment or degree status, and non-inclusion in the Harvard Commencement booklet. Students who have previously chosen to put in place a FERPA Block may decide to reverse this decision, also by informing Harvard Law School Registrar's Office in writing.

5. Other Disclosures Permitted under FERPA

In addition to permitting the disclosure of directory information, as set forth above, FERPA permits disclosure of educational records without a student's knowledge or consent under

certain circumstances. For example, disclosure is permitted to Harvard officials with a legitimate educational interest in the records, meaning that the person needs the information in order to fulfill their professional responsibilities, including instructional, supervisory, advisory, administrative, academic or research, staff support or other duties. “Harvard officials” include: faculty; administrators; clerical employees; professional employees; Harvard University Health Services staff members; Harvard University Police Department officers; agents of the University, such as independent contractors performing functions on behalf of Harvard Law School or the University; members of Harvard’s governing boards; and students serving on an official Harvard Law School or University committee, or assisting another Harvard official in performing their tasks.

A student’s education record also may be shared with parties outside the University under certain conditions, including, for example, in situations involving a health and safety emergency. In addition, Harvard Law School will forward a student’s education records to other agencies or institutions that have requested the records and in which the student seeks or intends to enroll or is already enrolled so long as the disclosure is for purposes related to the student’s enrollment or transfer.

If the Harvard Law School finds that a student has committed a disciplinary violation involving a crime of violence or a non-forcible sex offense, then it also may, if legally permitted and in Harvard Law School’s judgment appropriate, disclose certain information about the disciplinary case. The disclosure may include the student’s name, the violation committed, and the sanction imposed.

6. Student Rights under FERPA

As set forth above, under both Harvard policy and FERPA, students and former students may inspect and review certain of their education records that are maintained by Harvard. They also have the right to: exercise limited control over other people’s access to their education records; seek to correct their education records if they believe them to be inaccurate, misleading or otherwise in violation of their FERPA rights; file a complaint with the U.S. Department of Education if they believe Harvard has not complied with the requirements of FERPA; and be fully informed of their rights under FERPA. Complaints regarding alleged violation of rights of students under FERPA may be submitted in writing within 180 days to the Student Privacy Policy Office, U.S. Department of Education, 400 Maryland Avenue, S.W., Washington, DC 20202-8520 or by visiting <https://studentprivacy.ed.gov/>.

D. Protest and Dissent Guidelines

The following rules supplement applicable University policies that may affect protest and dissent, including but not limited to the [University-Wide Statement on Rights and Responsibilities](#).

The right to dissent is the complement of the right to speak, but these rights need not occupy the same forum at the same time. The speaker is entitled to communicate their message to the audience during their allotted time, and the audience is entitled to hear the message and see the speaker during that time. A dissenter must not substantially interfere with a speaker's ability to communicate or an audience's ability to see and hear the speaker.¹

When a meeting is closed, dissent by non-attendees is limited to activity outside the meeting that does not impede access to the meeting or substantially interfere with the communication inside.²

When a meeting is open, the acceptable form of dissent will depend on whether the dissenter is inside or outside the meeting and on whether the dissenter is acting before, after or during the meeting:

1. Picketing and Distributing Literature

Picketing in an orderly way or distributing literature outside the meeting is acceptable unless it impedes access to the meeting. Distributing literature inside an open meeting is acceptable before the meeting is called to order and after the meeting is adjourned.

2. Silent or Symbolic Protest

- a) Displaying a sign, wearing significant/symbolic clothing, gesturing, standing, or otherwise protesting noiselessly is acceptable unless the protest interferes with the audience's view or prevents the audience from paying attention to the speaker.
- b) Any use of signs, prolonged standing or other activity likely to block the view of anyone in the audience should be confined to the back of the room.

¹ A substantial interference is any interference that is nontrivial in either duration or extent. An interference can be substantial, even if minimal in duration, if the interference is sufficiently disruptive or would be expected to disrupt.

² "Closed" meetings include events requiring an invitation or registration, as well as events not advertised on the Law School's public calendar. For closed meetings, the sharing, swapping, stealing, or other misuse of registration information, Zoom details, name tags, and the like is a violation of these guidelines.

Please note, moreover, that the rule against non-attendees protesting inside a closed meeting supplements the general rule that "[a] dissenter must not substantially interfere with a speaker's ability to communicate or an audience's ability to see and hear the speaker." The acceptable form of dissent for invited and registered attendees inside a closed meeting is the same as for dissenters in an open meeting.

Finally, with respect to classrooms, any form of protest that disrupts the conduct of an HLS class would violate the University-Wide Statement of Rights and Responsibilities' prohibition against interference with "the performance of the [] normal duties and activities" of the University. This includes occupying or protesting near classroom ingresses and egresses, including hallways, of Law School academic buildings while classes may be in session.

3. Noise

Responding vocally to the speaker, spontaneously and temporarily, is generally acceptable, especially if reaction against the speaker is similar in kind and degree to reaction in their favor. Chanting or making other sustained or repeated noise in a manner which substantially interferes with the speaker's communication is not permitted, whether inside or outside the meeting.

4. Force or Violence

Using or threatening force or violence, such as defacing a sign or assaulting a speaker or a member of the audience, is never permitted. Any interference with freedom of movement or with freedom from personal force or violence is a serious violation of personal rights.

5. Audience Responsibility

The audience, like the host and the speaker, must respect the right to dissent. A member of the audience or the host organization who substantially interferes with acceptable dissent is violating these guidelines in the same way as a dissenter who violates the rights of the speaker or audience.

6. Moderator/Facilitator

Senior HLS officials may determine that the protection of free speech at an open meeting requires the use of a moderator or facilitator. If so, the meeting must be held with a moderator/facilitator in attendance who will be selected by the sponsoring organization(s) at the time the event is scheduled, and who is subject to approval by the Office of Community Engagement, Equity, and Belonging.³ The person selected must be perceived as neutral and non-partisan. They will generally be a member of the HLS or University faculty or administration. At the meeting, the moderator/facilitator must stress that their presence reflects no position for or against the views of the speaker or sponsoring organization. Final decisions regarding balancing the rights of the speaker with the rights of those who disagree will be made by the moderator/facilitator. This person will have final authority over all decisions, including, but not limited to:

- a) whether to eject a disrupter from the room;
- b) whether to move an event because of disruption or for security reasons;
- c) whether to declare an event closed; and

³ For events organized by administrative departments or research programs at the Law School, the moderator or facilitator need not be approved by the Office of Community Engagement, Equity and Belonging.

- d) whether to cancel an event because of security concerns.

E. Student Complaints Implicating Compliance with ABA Standards for Legal Education

Harvard Law School invites students to share concerns about the Law School's program of legal education, particularly any issues that directly implicate the School's compliance with the ABA's Standards for Legal Education. Students having such a concern should submit the concern, in writing, to the [Dean of Students](#), who shall work with the appropriate administrators to address the issue. The [Dean of Students](#) shall keep a record of all submissions and their resolutions.

F. Class Recordings

Harvard Law School provides audio recordings of classes upon request only for the following reasons. Classes may be recorded with or without further notice. Students may not record, stream, reproduce, publish, or further distribute outside the course any course content, including assessments, problems, answers, video clips, screenshots, and slides presented during class. Please consult the separate [Class Recording Information page](#) for timing and process for requests.

Students interested in applying for class recordings as an accommodation should contact Harvard Law School's [Accessibility Services team](#).

1. Reasons for Student Class Recording Requests

Students may request audio recordings of class lectures for the following reasons. Requests typically require at least one business day of lead time. Clinic-related requests require three business days' notice.

- a) *Religious Holidays*: Classes taking place on religious holidays are not automatically recorded. Faculty and/or students may request that a class be audio-recorded on a religious holiday. The Law School will not record for travel days surrounding religious holidays. If the religion's holiday begins at sundown, HLS will record classes upon request on the day the holiday begins and ending at noon the day after the holiday ends.
- b) *Make-up classes*: The Law School's make-up class period is 3:45-5:45 p.m. on Friday afternoons, which students are expected to keep available. All faculty members are encouraged to use this period for make-up classes. Make-up classes scheduled during this time will only be recorded if a student has a scheduling conflict with another make-up class. Make-up classes at times outside this class period may be recorded at the instructor's or a student's request.

- c) *Birth of a child (for both parents); death of an immediate family member or other person with whom the student has a similarly close relationship; or significant personal or medical emergency:* Students may request that a class be audio-recorded due to the foregoing reasons for a period of two weeks or fewer in duration.

Recording for these reasons will be considered only in cases in which classes will be missed for a period of two weeks or fewer. In most cases, a student's absence from their classes for more than two weeks will be cause for a leave of absence (see **Section I(O)** and **Section II(A)(3)**).

- d) *Military service:* Students may request that a class be audio-recorded to fulfill an unavoidable military service or training obligation lasting for a period of two weeks or fewer in duration.

Recording for these reasons will be considered only in cases in which classes will be missed for a period of two weeks or fewer. In most cases, a student's absence from their classes for more than two weeks will be cause for a leave of absence (see **Section I(O)** and **Section II(A)(3)**).

- e) *Professional Examinations:* Students may request that a class be audio-recorded due to an unavoidable conflict with a Professional Examination (such as the Bar Exam, or the Multi-State Professional Responsibility Exam – MPRE).
- f) *Clinical Hearings:* Students may request that a class be audio-recorded for the following reasons: unavoidable conflicts with court hearings, administrative proceedings, or other court-ordered appearances connected to academic credit offerings in the Clinical Programs, where the student is a primary actor in the proceeding. The student must exhaust all means of avoiding the conflict by attempting to reschedule the appearance or attempting to arrange coverage of the hearing by another qualified student or attorney. Additionally, a student may request a recording where a make-up class is scheduled during ordinarily scheduled clinical hours required for academic credit. These scheduled hours with the clinical placement must be confirmed by a clinic director or from filings with the Office of Clinical and Pro Bono offices for externship placements. If a student does not submit their clinic-related recording request via Service Hub at least three business days before the conflicting opportunity, their request may be denied on the grounds that it is not timely.
- g) *Elections:* The Registrar's Office may initiate audio-recording of all classes due to the foregoing reason only when it is a state or federal general election day in the Commonwealth of Massachusetts.

2. Automated Recordings

Start and stop times for HLS class recordings are automated according to the class meeting times and, due to system constraints, cannot be altered. Therefore, if a class extends beyond the scheduled start and end times, the resulting recording will not include any instruction or discussion that took place prior to the scheduled start time or in the time following the scheduled end time. In addition, Information Technology Services does not edit the start and end of class recordings so conversation occurring before and/or after the formal instructional time will be included in the recording.

3. Publication of Recordings

- a) Class recordings may in some cases be made available to the entire class via the Canvas course site. Please note that faculty members and administrators of the sites reserve the right to remove any links from course websites at any time.
- b) No person is permitted to post, distribute, or otherwise make available any class- or clinic-related recordings produced by the Harvard Law School without written permission of the [Dean for Academic and Faculty Affairs](#).
- c) For information on how to access posted class recordings and related policies, please refer to the [Class Recordings webpage](#).
- d) Although Harvard Law School makes every effort to ensure the security of recordings, any recording made by Information Technology Services could potentially be downloaded, copied, manipulated and/or redistributed.

G. Student International Travel

- 1) Any student traveling internationally under Harvard auspices must take the following steps prior to departure:
 - a) Register the trip in the University's International SOS [MyTrips platform](#). Registering is required for all students traveling under Harvard auspices (that is, trips funded or arranged by the Law School or other parts of the University or resulting in academic credit) and strongly recommended for everyone. Registering enables the University to locate people quickly and provide assistance in the event of an emergency. Students must create a profile in MyTrips initially using their Harvard email address; students can then add an additional preferred email address to their profile. After creating their MyTrips profile, students can enter their trip details manually or forward their confirmed bookings to harvardtravel@itinerary.internationalsos.com. Entries should include the complete period of time abroad, including travel before, during, and after the primary program / project under Harvard auspices, and students should make sure the information stays up-to-date throughout travel.

- b) Review, sign and return the appropriate [Assumption of Risk form](#) to the sponsoring program at the Law School.
- c) Examine Harvard's Global Support Services' [travel risk ratings](#) and seek necessary reviews as specified below. Students who are considering travel to an area that is categorized as high-risk, and that would occur during the period of the program / project under Harvard auspices, must both:
 - i) Complete and submit the [Questionnaire for Graduate Student Travel](#) and forward a copy to the [Graduate Program and International Legal Studies](#) office at least 30 days in advance of the expected travel date. (*Access to the document requires a HarvardKey log-in.*) In the event that circumstances beyond a student's control do not allow for at least 30 days' advance notice, the student should contact the [Assistant Dean for the Graduate Program and International Legal Studies](#) and provide a detailed explanation.
 - ii) Consult with a member of the Global Support Services safety and security team if requested to do so by GSS or Harvard Law School's Graduate Program and International Legal Studies office.

This is necessary in order to obtain clearance for travel in conjunction with courses or clinics as well as independent travel and applies for the duration of the placement or project abroad. Please be aware that HLS may advise against — and may even withhold support for — travel that is deemed to pose excessive risk.

HLS students should also review [Harvard's Graduate and Professional Student International Travel Policy](#).

- 2) Students traveling over the winter term or summer, for HLS academic credit and/or with Harvard funding must attend an international travel information session and complete the [Global Support Services online orientation](#) as specified on the [HLS international travel procedures webpage](#).

Students must complete all of these requirements, and any others stipulated on the School's [international travel procedures webpage](#) or by the student's HLS sponsoring program, in advance of travel abroad in order to maintain eligibility for HLS funding and academic credit. The international travel webpage will contain the most current information and it is critical that students review it carefully.

HLS students traveling abroad for academic or professional reasons are covered by Harvard University's [International SOS](#) membership. International SOS provides 24-hour worldwide emergency medical and security assistance and evacuation services. Please note that this program is a supplement to, not a substitute for, health insurance.

Students should be sure to review the [Health and Safety](#) and [Planning and Precautions](#) pages for the information they will need before and during travels. The

[Passports and Visas](#) page also contains helpful information. Students with questions about international travel should contact the [Assistant Dean for the Graduate Program and International Legal Studies](#).

H. Student Employment

The faculty recommends that first-year students not commit themselves to employment during the academic year until they know what demands Law School will make on their time and energy. Students are advised to work no more than ten to 15 hours per week during the school year; pursuant to Harvard Law School Policy, no student may be employed for more than 20 hours of work per week during the academic year while classes are in session (see **Section I(A)(4)**).

I. Use of University Libraries

The University's libraries are for the use of students, faculty, staff, and other authorized members of the University and scholarly community. Library staff are authorized to take appropriate action to ensure the safety and security of spaces, resources, and patrons.

Except when specifically authorized, the systematic exploitation of library resources, including its databases, e-journals, and other licensed content, is prohibited. This includes activities such as sharing login credentials or proxy access with others, mass downloading, automated scraping, or using content to train artificial intelligence or machine learning models without authorization. Users are responsible for understanding how any software, scripts, or artificial intelligence tools they employ operate, and for configuring and using those tools to prevent unauthorized or excessive access, scraping, downloading, or other prohibited activity. Questions about the use of specific digital resources should be directed to the [Library](#).

It is inappropriate for users of Library resources to sell data, or to act as agents for those who do, or otherwise to use their library privileges other than for personal academic use. This includes use of many library resources during the course of some internships and some types of employment.

Use of some Library resources is subject to individual user agreements from the database provider. Violations of these policies or of those individual user agreements may result in suspension of access to those resources; discipline under applicable University or Law School policies; administrative sanctions, including suspension or discontinuation of library or alumni privileges; reporting of the conduct to professional licensing bodies; and/or exposure to civil or criminal penalties.

Library users must:

- Safeguard the integrity of library resources.

- Respect the restrictions placed on access to and the use of those resources including as stated in the [Harvard University Campus Use Rules](#).

J. Information Technology Services

1. Harvard Law School Computer and Network Resources Usage Agreement

In support of Harvard Law School's learning, teaching, and research goals, Information Technology Services (ITS) provides current members of the Law School community with access to the school's computer and network resources. To ensure that these resources remain available to all members of the community and to protect the substantial investment Harvard Law School has made in its computer and network systems, student access is conditioned upon agreement to and compliance with the terms of this Harvard Law School Computer and Network Resources Usage Agreement. Harvard Law School Computer and Network Resources include but are not limited to: Harvard Law School campus and office space; wired, wireless, and VPN network equipment; back-office systems (e.g. email, Student Information System); printers, desktop and laptop equipment provided to students, faculty, or staff and any other computing equipment owned and/or operated by the Law School's ITS department.

2. Use of Computer and Network Resources

No one may use a computer and/or the network in a way that would damage or inappropriately degrade these resources, or disrupt the work of others. Students are prohibited from attempting to:

- a) Interfere with the work of others
- b) Gain unauthorized access to computer or network resources
- c) Circumvent or violate local network, electronic accounts, or Web security systems
- d) Use other people's Harvard Law School electronic accounts
- e) Damage or inappropriately degrade performance of computer and network resources
- f) Willfully misrepresent the identifying attributes of any electronic communications (e.g., date and time of creation or transmission, message identification number, IP address, etc.)
- g) Unlawfully use, duplicate, or distribute software and files
- h) Use computer or network resources for commercial purposes without authorization

- i) Use computer or network resources in violation of any applicable law or Harvard Law School policy

In addition to possible disciplinary action and/or termination of network privileges, the violation of any of these restrictions may result in legal penalties.

Students are responsible for the use of their electronic accounts (e.g., email, network, course websites, and printing) and are not permitted to grant others access to these accounts. Nor should a student disclose their password to anyone, including friends or family. ITS staff will not ask students for their passwords when ITS assistance is requested.

3. Compliance with the Digital Millennium Copyright Act of 1998

The University prohibits the use of the Harvard network for illegal activities. Federal law prohibits the reproduction, distribution, public display or public performance of copyrighted materials over the Internet without permission of the copyright holder, except in accordance with fair use or other specifically applicable statutory exceptions. Harvard may terminate the network access of users who are found to have repeatedly infringed the copyrights of others. In addition, unauthorized distribution of copyrighted material, including unauthorized peer-to-peer file sharing, may subject a student to civil and criminal liabilities. Harvard complies fully with the federal Digital Millennium Copyright Act of 1998 ("DMCA") and has in place the mandated process for receiving and tracking alleged incidents of copyright infringement.

Harvard network users should be aware of recent changes in the pre-subpoena notification approach employed by the Recording Industry Association of America (RIAA). These changes include notices requesting the preservation of records in advance of a subpoena, and notices providing an option for users to settle in advance of potential lawsuits. University policy remains unchanged. We will continue to comply with the Digital Millennium Copyright Act and federal law pertaining to DMCA subpoenas, and will continue to update the community of significant changes to process or law.

The University is committed to maintaining the integrity and availability of the Harvard network for vital educational and research purposes for which it was designed. We recommend that all students become familiar with the laws pertaining to the use of digital material and to comply with federal law and University policy regarding use of copyrighted materials. More information may be found at <https://dmca.harvard.edu/copyright-policy> and <http://dmca.harvard.edu/faq>.

BitTorrent, Torrent, Ares, and other file-sharing programs can transmit files on a student's computer to others in violation of copyright laws, with or without the student's knowledge. If these programs are on a student's computer, the student will be held responsible for any copyright violations that may result.

4. Policy on Access to Electronic Information

Harvard University's [Policy on Access to Electronic Information](#) sets out guidelines and processes for University access to user electronic information stored in or transmitted through any University system.

5. Security and Privacy

Electronic communications, communicative attributes of electronic communications (e.g., date and time of transmission, subject, identification number, parties with whom a student communicates, how often, etc.), and files stored on Harvard Law School servers will be kept confidential in accordance with privacy and information policies set by Harvard Law School, Harvard University, and by law. All students must review and abide by the [Harvard Information Security Policy](#), which includes requirements for use and distribution of confidential information as well as protection of data, data systems and devices, and security incident reporting.

Students should understand that no network is perfectly secure, and that there are substantial risks that communications can be intercepted, or that any message intended for one person can be easily forwarded to another by the recipient. Students should take care that particularly sensitive documents not remain on computer or network systems that are publicly accessible or that others may easily access. Likewise, students are responsible prior to forwarding a message to ensure that doing so is consistent with the originator's reasonable expectations.

Network-based system activity, such as network connection and email message transmission, is automatically logged on a continuous basis. These logs include a record of user processes, message subjects, and other user-related data that may be examined by ITS system administrators to maintain system performance and/or prevent damage or degradation, or to ensure compliance with Harvard Law School guidelines. ITS also maintains regular backups of network servers, including email messages and files. The purpose of these backups is to restore the system in case of data loss due to a system crash. These backups are subject to the same privacy protections as any network data, but also, obviously, present additional risk.

System administrators, following University guidelines, will produce any available log records, messages, and files at the request of the Dean for Administration, [Dean of Students](#), or the Administrative Board.

When a student requests assistance from ITS, the student implicitly gives the staff permission to view the data in the student's account or on the student's computer to the extent necessary to investigate, diagnose, or correct the problem the student is having, and ITS staff will make reasonable efforts to alert the student to the anticipated and actual scope of any such viewing.

6. Anonymous and Pseudonymous Communications

Three general rules govern all electronic communications:

- 1) Electronic communication systems, whether email or discussion groups, produce records that facilitate the ability to trace such communications. These records may not in all cases reveal the identity of the sender, but they do facilitate the identification of a particular communication's origin. A student is prohibited from modifying this data in a manner that will interfere with the ability to trace a communication.
- 2) Members of the Harvard Law School community are given accounts based on their legal name; a student may not take steps to hide their identity in electronic communication when using Harvard Law School accounts, computers, networks, or servers.
- 3) In no context may a student fraudulently misrepresent their identity.

Whether electronic communications may be anonymous or pseudonymous is determined by the particular context within which the communication occurs, and inappropriate use of electronic communications may result in disciplinary action.

7. Misuse of Resources

All uses of Harvard's name and insignia are subject to [Harvard Trademark Program policies](#).

Harvard's name, titles, shield/insignia, and email system may not be used by students or alumni to promote or profit from outside ventures. When creating an external business or working for or representing any third party, students and alumni must use their role with that entity (e.g., "Jane Doe, Founder, [Company]") and not use the Harvard name or a Harvard title as an identifier in websites, marketing, solicitations, press releases or appearances, or similar materials. Any reference to a Harvard affiliation must be factual biographical information and may not use Harvard shields or logos. Harvard email addresses may not be used as contact information for outside businesses or other non-Harvard activities.

Because the electronic communications originating from the Harvard Law School community automatically carry the Harvard Law School domain name ("law.harvard.edu" and "hls.harvard.edu"), a student should be particularly careful not to inaccurately identify themselves as representing or speaking for the institution. More generally, in the use of email or other electronic communication, the same standards of conduct governing the use of telephones and oral and written communication apply. A student may not use email to broadcast messages or "spam" the Harvard Law School community.

As with any Harvard Law School resource, “misuse” includes the theft or deliberate damage of any Harvard Law School equipment or resource. With regard to Harvard Law School computer and network resources, it also includes other activities that interfere with the efficient and reliable provisioning of computer and network services. Such other activities include, but are not limited to, the following specific prohibitions:

- 1) A student may not relocate or disassemble any Harvard Law School network, computer, or peripheral equipment.
- 2) A student may not attempt to intercept, analyze, record, or tamper with network data packets.
- 3) A student may not connect non-ITS network equipment to the Harvard Law School network. This includes, but is not limited to, routers and wireless access points.

8. Emergency Situations and Compliance with Account Quotas

In any situation that threatens system security, stability, integrity, or performance, ITS system administrators will take necessary action to defend computer and network resources. These defense measures may include terminating or suspending processes or user accounts without prior notice. ITS will notify the affected user(s) as soon as feasible. Emergency situations may or may not involve deliberate misconduct.

All users are expected to adhere to the specific usage quotas that govern Harvard Law School accounts. Repeated failure to act upon ITS requests regarding such quotas may result in files or messages being deleted from over-quota accounts.

9. Copyright and Software Licenses

All Harvard users must respect the copyrights in works that are accessible through computers connected to the Harvard network. Federal copyright law prohibits the reproduction, distribution, public display, or public performance of copyrighted materials without permission of the copyright owner, unless fair use or another exemption under copyright law applies. In appropriate circumstances, Harvard will terminate the network access of users who are found to have repeatedly and knowingly infringed the copyrights of others, and may also take disciplinary action.

Users may not install software on Harvard-owned computers without express approval of Harvard Law School Information Technology Services, as well as evidence of a valid software license or other right or privilege to install such software.

10. Cases of Misconduct

Whenever a case of misconduct is suspected by or reported to ITS, ITS will immediately notify the person or persons accused of such misconduct and the appropriate supervisory

authority, such as the [Dean of Students](#) or the Dean for Administration. As the situation warrants, the supervisory authority will determine the course of any investigation or disciplinary action. After such notification and while any inquiry is pending, ITS has the right to deny access to Harvard Law School equipment and network services to any person or persons believed to be violating the guidelines set forth here.

In addition to possible disciplinary action on the part of the Harvard Law School and/or termination of network privileges, misuse of electronic communications, use of computers for unlawful purposes, and violations of copyright laws carry civil and criminal penalties under Massachusetts and federal law. All users are expected to learn and abide by these laws. Harvard's policy is to cooperate with law enforcement officials in the detection, investigation, and prosecution of unlawful activity. Unless lawfully prohibited by the authorities, a student will be notified if information specific to their account or communications is turned over to non-Harvard authorities.

11. Leaving Harvard Law School

Before a student leaves Harvard Law School, they should review the [information regarding access to HLS student service technology applications](#) after graduation and be aware of timelines for access.

K. Multimedia Studio

The [Multimedia Studio](#) at Harvard Law School (opened in the basement of WCC in fall 2021) is run by the Office of Learning Experience and Innovation (LXI), in close collaboration with ITS and Communications, and is available for use by members of the HLS community according to the guidelines and schedule set forth on the [Office of Learning Experience and Innovation \(LXI\) website](#).

L. Video Security Policies

The Law School has installed a video management infrastructure to enhance the safety and security of the community, reduce institutional risk, and aid in the prevention and investigation of crime or other misconduct at the School or against members of the HLS community. The privacy of the community members is a fundamental principle in the design and implementation of the video management system across campus, and access to video camera data is managed in accordance with the University's [Policy on Installation and Use of Video Cameras](#). Students are invited to review the Law School's [Video Security Policies](#).

M. Harvard University I.D. Cards

Harvard University I.D. (HUID) cards are the property of Harvard University and are intended for University purposes only. HUID cards are required for admission to most

Harvard activities and facilities including libraries, museums, dining halls, athletic buildings, and student residences.

Every student is responsible for their HUID card and the consequences of its misuse. HUID cards are not transferable; a student may not allow any other person to use their HUID card for any purpose.

A student who alters or falsifies their HUID card or produces or distributes false identification cards of any kind is subject to disciplinary action. Lost cards should be reported immediately to [Harvard University Identification and Data Services](#). Students must hand over their HUID card or otherwise identify themselves upon request to any properly identified officer of the University. Surrendered HUID cards will be transmitted immediately to I.D. Card Services. More information about HUID cards for new Law School students is available from the Office of the Registrar and at the [Campus Service Center](#).

N. Payment of Bills

Each student is personally responsible for payment of their student account. All students at Harvard University are required to sign a Financial Responsibility Agreement (FRA). The FRA provides important information about the financial policies associated with enrollment at Harvard. More information can be found here: <https://sfs.harvard.edu/financial-responsibility-agreement-fra>.

For J.D. students, a monthly payment plan is available as an alternative to full payment on a specified date, the terms of which are available by calling the Student Accounts Office at 617-495-2739 or at the [Student Accounts website](#). The monthly payment plan is not available to LL.M. or S.J.D. students.

Students who are not current in their student account payments will not be allowed to register for courses in the spring or to enroll in the Law School at the start of the academic year and may be placed on involuntary leave (see **Section XI(C)(5)**). All services of the Registrar will be withheld for students who have outstanding financial obligations to the University.

Students who become delinquent in their student account payments after registration are assessed a \$250 late fee and will be reported to the Law School's Administrative Board. Absent a finding of extraordinary circumstances, such as a serious medical or personal emergency or other special circumstances supported by appropriate administrative officials, the Administrative Board, as a general matter, will cancel the registration of delinquent students. A student whose registration has been canceled is not eligible to take exams and will not earn credits for the term.

University policy dictates that degree candidates who have failed to pay all student account charges by the date specially established for graduating students will not be voted a degree by the governing boards of the University.

Students who leave the University for any reason must pay all charges immediately upon notice from the University Student Accounts Office. A student who leaves the University without paying outstanding charges is not eligible to be considered for readmission until all financial obligations to the University have been fully satisfied. Any student who leaves the University with an amount due on their student account that is unpaid for sixty days or more may be subject to collection activities. The costs associated with collecting an unpaid account will be added to the student's outstanding account balance and must be paid in full.

Questions regarding payment of student account notices should be directed to [Student Financial Services](#) in WCC 5027 for J.D. candidates and to the [Graduate Program Financial Aid Office](#) in WCC 5005 for those in the LL.M. and S.J.D. programs.

O. Harvard Law School Drug and Alcohol Policy

1. Policy

Harvard Law School's policy on drugs and alcohol-adapted from and in accordance with, other similar policies at Harvard University-reflects our concern for the health and well-being of our students, faculty, and staff. Harvard Law School promotes the health and well-being of its students and employees through its Health Services and other agencies. The unlawful possession, sale, use, or distribution of illicit drugs and alcohol by students or employees on Harvard property or as a part of any Harvard activities is a violation of Harvard Law School rules, as well as the law. Possession, use, or distribution of certain nonprescription drugs, including marijuana, amphetamines, heroin, cocaine, and nonprescription synthetics; procurement or distribution of alcohol if one is under 21 years of age; and provision of alcohol to anyone under 21 years of age are violations of law and of Harvard Law School Policy. Although Massachusetts law now permits adults aged 21 or older to possess and consume marijuana under certain circumstances, federal law prohibits the possession, use, or distribution of marijuana, including for medical purposes, on Harvard property or as part of a Harvard activity. Thus, even if possession or use of marijuana would be permitted under Massachusetts law, it remains prohibited on campus.

The use of illicit drugs and the misuse of alcohol are potentially harmful to health. In particular, synthetically produced drugs, which are readily available in the Boston metropolitan area, often have unpredictable emotional and physical side effects, which constitute an extreme health hazard. In addition, students are encouraged to weigh the seriousness of potential loss of function that may come from ingesting illicit drugs or too much alcohol. Because of the considerable health hazards involved in drug and alcohol use, administrative, medical, and psychiatric help for students having drug problems or difficulties controlling their use of alcohol are available on a confidential basis from the Harvard Law School Health Services and at the University Health Services at the Smith Campus Center, and any member of the University may make use of the Health Services on an emergency basis, day or night.

Attention is directed to the fact that Harvard Law School is not, and cannot be considered as, a protector or sanctuary from the existing laws of the city, state, or federal government. Students are reminded that there are heavy penalties, including imprisonment, for possession or distribution of illicit drugs and for selling or delivering alcohol to, or procuring alcohol for, someone under the age of 21. There are also serious penalties for anyone under the age of 21 who purchases, attempts to purchase, or arranges to procure alcoholic beverages or to misrepresent their age or falsify their identification with the intent of purchasing alcohol; anyone, regardless of age, caught falsifying a driver's license, or selling or distributing false I.D.s; and anyone, regardless of age, who operates a motor vehicle under the influence of alcohol or drugs, or with an open container of alcohol. In addition, the city of Cambridge prohibits consumption of alcohol on public property or on property open to the public. All students should become familiar with the pamphlet on drug and alcohol law prepared by the General Counsel to the University, distributed at registration each year, and available in the [Dean of Students and Community Engagement, Equity, and Belonging Office](#).

The Law School will take appropriate action when cases of this type come to its attention. Incidents to which Harvard Law School may respond include:

- The use of illicit drugs;
- Underage possession or consumption of alcohol;
- Serving alcohol to underage individuals;
- Possession in quantity or the sale or distribution of drugs; or
- Drug or alcohol use which risks danger to the Harvard community.

Sanctions may include a warning by administrative officers and referral to health or counseling services or action by the Administrative Board, including warning, reprimand, suspension, or expulsion (the last three sanctions are reported to bar authorities), and referral for prosecution.

Additional information about alcohol and other drug policies can be found in Harvard's Annual Security Report issued by the Harvard University Policy Department, and incorporated here by reference.

2. Provisions Regarding Alcohol Service and Use at Harvard Law School

The only alcoholic beverages that may be served to or consumed by HLS students or their guests at Law School events and in the HLS Pub are beer and wine, whether the events are University/HLS sponsored or private. All alcohol for Law School events must be purchased through [Harvard University Dining Services \(HUDS\)](#). Personally purchased alcohol may be consumed only in private living spaces. It may not be brought into, served, or consumed in any public areas on campus, including residence hall common rooms, main lounges, and

other shared spaces. Harvard University Dining Services also purchases, serves, and sells beer and wine for the HLS Pub, under a separate liquor license obtained by HUDS.

3. Drinking Age

The minimum drinking age in Massachusetts is 21. To be served or provided an alcoholic beverage, an individual must show proof of minimum drinking age by presenting a government-issued, photo identification.

4. Bartenders

[Harvard University Dining Services \(HUDS\)](#) holds and manages the main liquor license for the Harvard Law School campus. Under the terms of this license, all alcoholic beverages for all on-campus events must be provided by HUDS, and HUDS bartenders must be present to serve the alcohol.

5. Police Presence

A Harvard University Police (HUPD) detail (officer) must be present for student-sponsored events whenever alcohol is served and the number in attendance exceeds 100, or for any event where HUPD presence is determined to be necessary by the [Dean of Students and Community Engagement, Equity, and Belonging Office](#). A police detail can be arranged by visiting the HUPD website. The appropriate number of police officers will be determined by the HUPD and the [Dean of Students and Community Engagement, Equity, and Belonging Office](#).

6. Food and Non-Alcoholic Beverages

A proportional amount of food and nonalcoholic beverages must be available at any event where alcohol is served. Please contact [Harvard University Dining Services \(HUDS\)](#) or the [Dean of Students and Community Engagement, Equity, and Belonging Office](#) to determine the appropriate amount.

7. Off-campus Events – Private Residence

Harvard Law School funds cannot be used to purchase or serve alcohol at a private residence.

8. Off-campus Events – Bars, Restaurants, and Off-Site Function Facilities

If a bar, restaurant, or function facility serves alcohol under its own license, the on-campus guidelines relating to alcohol service and use do not apply (since liability is covered by the establishment; nevertheless, the Harvard Law School Drug and Alcohol Policy applies to all members of the Harvard Law School community). Students may receive a maximum of two drink tickets each for such events, which can be used to purchase only beer, wine, or

nonalcoholic beverages. The [Dean of Students and Community Engagement, Equity, and Belonging Office](#) will arrange payment for such drink tickets in advance of the event. A student point of contact must be identified and must meet with the [Dean of Students and Community Engagement, Equity, and Belonging Office](#) prior to such events; and that student must coordinate the distribution of the appropriate amount of drink tickets with the manager on duty at the establishment.

9. Liquor Licenses

A special one-day liquor license must be obtained from the Cambridge License Commission (at Cambridge City Hall) for all events where alcohol is sold, except as noted below only. Procedures for obtaining the license are available from the [Office of Event Scheduling & Support](#). A special one-day liquor license is not necessary in some instances, because the HUDS liquor license covers the sale of beer and wine. Student organizations must check with the [Dean of Students and Community Engagement, Equity, and Belonging Office](#) before selling any alcoholic beverages. **Violations of the Harvard Law School Drug and Alcohol Policy will be referred to the Administrative Board for possible disciplinary action.** Please contact the [Dean of Students and Community Engagement, Equity, and Belonging Office](#) with questions regarding Alcohol Service and Use at Harvard Law School, 617-495-1880 or dosceeb@law.harvard.edu.

P. Cambridge No Smoking Ordinance and Harvard No Smoking Policy

1. City of Cambridge No Smoking Ordinance

Effective June 9, 2003, Cambridge Municipal Code Section 9.28.060 provides that, “smoking is prohibited in all workplaces.” Also effective June 9, 2003, Section 9.28.090 of the Code provides that, with some exceptions, “No person shall smoke nor shall any person be permitted to smoke in any public place or municipal facility.” All members of the Law School community are urged to exercise courtesy and thoughtfulness in implementing this policy.

2. Harvard No Smoking Policy

On March 1, 2015, Harvard’s North Yard, which includes the Law School, became completely tobacco free. This initiative stems from decades of research on the negative impacts of smoking, second-hand smoke, and tobacco use, and is part of an ongoing effort to enhance the health and wellness of all members of the Harvard community.

All forms of tobacco use including cigarettes, cigars, e-cigarettes, and smokeless tobacco are prohibited inside all Harvard buildings, offices, in Harvard Yard, and outside all HLS buildings.

Q. Harvard Law School Missing Persons Policy

As required under federal law, Harvard Law School will immediately refer to the Harvard University Police Department (HUPD) any missing persons report involving a student who lives in on-campus housing. If any member of the Harvard community has reason to believe that a student who resides in on-campus housing is missing, they should immediately notify HUPD at 617-495-1212.

If HUPD determines that the student has been missing for more than 24 hours, then, within the 24 hours following this determination, the School or HUPD will:

- 1) notify an appropriate external law enforcement agency, unless the local law enforcement agency was the entity that made the determination that the student is missing;
- 2) contact anyone the student has identified as a missing person contact under the procedures described below; and
- 3) notify others at the University, as appropriate, about the student's disappearance.

In addition to identifying a general emergency contact person, students residing in on-campus housing have the option to identify confidentially a separate person to be contacted by Harvard in the event that the student is determined to be missing for more than 24 hours. Students are not required to designate a separate individual for this purpose and if they choose not to do so then Harvard will assume that they have chosen to treat their general emergency contact as their missing person contact. Students who wish to identify a confidential missing person contact should notify the Registrar. A student's confidential missing person contact information will be accessible only by authorized campus officials and by law enforcement in the course of an investigation. In addition, if it has been determined that a student who is under 18 years of age and not emancipated has been missing for more than 24 hours, then the Harvard Law School or HUPD will contact that student's custodial parent or guardian. Students are reminded that they must provide the Registrar with emergency contact information and/or confidential missing person contact information if they have not already done so.

R. Nonresident Student Driver Statements and Decals

State law requires Harvard to post the following notice to all students who are not Massachusetts residents:

**IT IS UNLAWFUL FOR A NONRESIDENT STUDENT TO FAIL TO FILE A
NONRESIDENT DRIVER STATEMENT WITH THE POLICE DEPARTMENT
LOCATED IN THE SAME CITY OR TOWN AS THE SCHOOL OR COLLEGE
ATTENDED, IN ACCORDANCE WITH SECTION 3 OF CHAPTER 90 OF THE**

MASSACHUSETTS GENERAL LAWS. FAILURE TO FILE SUCH STATEMENT IS PUNISHABLE BY A FINE NOT TO EXCEED \$200.

Instructions:

- 1) Complete the Nonresident Driver Statement:
<https://www.mass.gov/doc/nonresident-student-vehicle-information-form/download>
- 2) Mail completed Nonresident Driver Statement to:
Harvard Parking Services
Richard A. and Susan F. Smith Campus Center
8th Floor
1350 Massachusetts Avenue
Cambridge, MA, 02138
- 3) Upon receipt and processing, student will receive a nonresident student driver decal from the University Parking Office.

S. Voter Registration

Effective January 1, 1995, Massachusetts Law as set forth in Chapter 151C, Section 2B (Section 17 of Chapter 471 of the Acts of 1993), requires educational institutions to make available affidavits of voter registration forms at registration. Students will be able to register to vote at registration and mail-in affidavits will be available in the [Dean of Students and Community Engagement, Equity, and Belonging](#) Office throughout the year.

For students from other states who desire to vote in a state other than Massachusetts, the federal mail-in affidavit of voter registration or a mail-in form supplied by that state may be used. The student must contact the appropriate state election official to receive the state form or call or write the Massachusetts Elections Division, Room 1705, McCormack Building, One Ashburton Place, Boston, MA 02108, for a Federal form.

T. Anti-Hazing Policies

Hazing Prohibited. Hazing is incompatible with the values of our community and our educational mission and is strictly prohibited at Harvard Law School, as a matter of policy and in accordance with applicable law.

Compliance with Law. Harvard Law School's anti-hazing policy is intended to comply with the requirements of all applicable federal and state anti-hazing laws, and thus incorporates the definitions included in those laws, as set forth below. However, the examples of the types of hazing activities provided in this policy are non-exhaustive. A determination as to whether activities reported as hazing violate this policy will be based on the relevant facts of the situation, including but not limited to the circumstances giving rise to the reported

activities and the risks of injury and harm created by the reported activities. Activities may violate Harvard Law School's anti-hazing policy (or other conduct policies), even if they would not necessarily violate the federal or state anti-hazing laws.

Reporting; Investigation Process; Disciplinary Action. Harvard Law School will consider all reports of hazing in the normal course of its oversight and investigation processes and will take disciplinary action in appropriate situations. Reports of incidents of hazing can be made to [Harvard Law School's Administrative Board] and/or to the Harvard University Police Department. Harvard will inform appropriate law enforcement officials and regulatory agencies of hazing incidents and will disclose hazing incidents in community notifications as required by applicable law.

Hazing Prevention and Awareness Programs. Harvard has developed research-informed campus prevention and awareness programs related to hazing. For more information on these programs, see www.hazing.harvard.edu.

Federal Law: The Stop Campus Hazing Act

Under the federal law known as the Stop Campus Hazing Act (the "SCHA"), hazing means: any intentional, knowing, or reckless act committed by a person (whether individually or in concert with other persons) against another person or persons regardless of the willingness of such other person or persons to participate, that (a) is committed in the course of an initiation into, an affiliation with, or the maintenance of membership in, a student organization; and (b) causes or creates a risk, above the reasonable risk encountered in the course of participation in the institution of higher education or the organization (such as the physical preparation necessary for participation in an athletic team), of physical or psychological injury including —

1. whipping, beating, striking, electronic shocking, placing of a harmful substance on someone's body, or similar activity;
2. causing, coercing, or otherwise inducing sleep deprivation, exposure to the elements, confinement in a small space, extreme calisthenics, or other similar activity;
3. causing, coercing, or otherwise inducing another person to consume food, liquid, alcohol, drugs, or other substances;
4. causing, coercing, or otherwise inducing another person to perform sexual acts;
5. any activity that places another person in reasonable fear of bodily harm through the use of threatening words or conduct;
6. any activity against another person that includes a criminal violation of local, State, Tribal, or Federal law; and
7. any activity that induces, causes, or requires another person to perform a duty or task that involves a criminal violation of local, State, Tribal, or Federal law.

Under the SCHA, the term "student organizations" means an organization at an institution of higher education (such as a club, society, association, varsity or junior varsity athletic team, club sports team, fraternity, sorority, band, or student government) in which two or

more of the members are students enrolled at the institution of higher education, whether or not the organization is established or recognized by the institution.

Massachusetts Anti-Hazing Law

Massachusetts General Laws, Chapter 269, sections 16, 17 and 18 state as follows:

Section 17. Hazing; organizing or participating; hazing defined. Whoever is a principal organizer or participant in the crime of hazing, as defined herein, shall be punished by a fine of not more than three thousand dollars or by imprisonment in a house of correction for not more than one year, or both such fine and imprisonment.

The term “hazing” as used in this section and in sections eighteen and nineteen (reproduced below), shall mean any conduct or method of initiation into any student organization, whether on public or private property, which willfully or recklessly endangers the physical or mental health of any student or other person. Such conduct shall include whipping, beating, branding, forced calisthenics, exposure to the weather, forced consumption of any food, liquor, beverage, drug or other substance, or any other brutal treatment or forced physical activity which is likely to adversely affect the physical health or safety of any such student or other person, or which subjects such student or other person to extreme mental stress, including extended deprivation of sleep or rest or extended isolation.

Notwithstanding any other provisions of this section to the contrary, consent shall not be available as a defense to any prosecution under this action.

Section 18. Failure to report hazing. Whoever knows that another person is the victim of hazing as defined in section seventeen (above) and is at the scene of such crime shall, to the extent that such person can do so without danger or peril to himself or others, report such crime to an appropriate law enforcement official as soon as reasonably practicable. Whoever fails to report such crime shall be punished by a fine of not more than one thousand dollars.

Section 19. Copy of Secs. 17 to 19; issuance to students and student groups, teams and organizations; report Each institution of secondary education and each public and private institution of post-secondary education shall issue to every student group, student team, or student organization which is part of such institution or is recognized by the institution or permitted by the institution to use its name or facilities or is known by the institution to exist as an unaffiliated student group, student team or student organization, a copy of this section and sections seventeen and eighteen (above); provided, however, that an institution’s compliance with this section’s requirements that an institution issue copies of this section and sections seventeen and eighteen to unaffiliated student groups, teams or organizations shall not constitute evidence of the institution’s recognition or endorsement of said unaffiliated student groups, teams or organizations.

Each such group, team or organization shall distribute a copy of this section and sections seventeen and eighteen to each of its members, plebes, pledges or applicants for membership. It shall be the duty of each such group, team or organization, acting through its designated officer, to deliver annually to the institution an attested acknowledgment stating that such group, team, or organization has received a copy of this section and said sections seventeen and eighteen, that each of its members, plebes, pledges, or applicants has received a copy of sections seventeen and eighteen, and that such group, team, or organization understands and agrees to comply with the provision of this section and sections seventeen and eighteen.

Each institution of secondary education and each public or private institution of post-secondary education shall, at least annually, before or at the start of enrollment, deliver to each person who enrolls as a full-time student in such institution a copy of this section and sections seventeen and eighteen.

Each institution of secondary education and each public or private institution of post-secondary education shall file, at least annually, a report with the board of higher education and in the case of secondary institutions, the board of education, certifying that such institution has complied with its responsibility to inform student groups, teams or organizations and to notify each full-time student enrolled by it of the provisions of this section and sections seventeen and eighteen, and also certifying that said institution has adopted a disciplinary policy with regard to the organizers and participants of hazing, and that such policy has been set forth with appropriate emphasis in the student handbook or similar means of communicating the institution's policies to its students. The board of higher education and, in the case of secondary institutions, the board of education, shall promulgate regulations governing the content and frequency of such reports, and shall forthwith report to the attorney general any such institution which fails to make such report.

U. Firearms

Threats Involving Deadly Weapons, Explosives, Bombs, Chemical or Biological Agents, or Other Deadly Devices or Substance

The following provision of Massachusetts law concerning certain kinds of threats underscores why such behavior must be treated by HLS as an actionable offense:

Whoever willfully communicates or causes to be communicated, either directly or indirectly, orally, in writing, by mail, by use of a telephone or telecommunication device including, but not limited to, electronic mail, Internet communications and facsimile communications, through an electronic communication device or by any other means, a threat: (1) that a firearm, rifle, shotgun, machine gun or assault weapon, as defined in section 121 of chapter 140, an explosive or incendiary device, a dangerous chemical or biological agent, a poison, a harmful radioactive substance or any other device, substance or item capable of causing death, serious bodily injury or substantial property damage, will

be used at a place or location, or is present or will be present at a place or location, whether or not the same is in fact used or present; or (2) to hijack an aircraft, ship, or common carrier thereby causing anxiety, unrest, fear, or personal discomfort to any person or group of persons shall be punished by imprisonment in the state prison for not more than 20 years or imprisonment in the house of correction for not more than 2 1/2 years, or by fine of not more than \$10,000, or by both such fine and imprisonment.

Whoever willfully communicates or causes to be communicated such a threat thereby causing either the evacuation or serious disruption of a school, school related event, school transportation, or a dwelling, building, place of assembly, facility or public transport, or an aircraft, ship or common carrier, or willfully communicates or causes serious public inconvenience or alarm, shall be punished by imprisonment in the state prison for not less than 3 years nor more than 20 years or imprisonment in the house of correction for not less than 6 months nor more than 2 1/2 years, or by fine of not less than \$1,000 nor more than \$50,000, or by both such fine and imprisonment. Massachusetts General Laws, c.269§ 14(b)(c).

Firearms, Explosives, Combustible Fuels, Firecrackers, and Dangerous Weapons

Possession and/or use on University property of firearms or other dangerous weapons (as defined below) or ammunition, explosives, combustible fuels, firecrackers, and potential ingredients thereof is forbidden by University policy. The applicable Massachusetts law is as follows:

For the purpose of this paragraph “firearm” shall mean any pistol, revolver, rifle or smoothbore arm from which a shot, bullet or pellet can be discharged.

Whoever, not being a law enforcement officer, and notwithstanding any license obtained by the person pursuant to chapter 140, carries on the person a firearm, loaded or unloaded, or other dangerous weapon in any building or on the grounds of any elementary or secondary school, college or university without the written authorization of the board or officer in charge of such elementary or secondary school, college or university shall be punished by a fine of not more than \$1,000 or by imprisonment for not more than 2 years or both. A law enforcement officer may arrest without a warrant and detain a person found carrying a firearm in violation of this paragraph.

Any officer in charge of an elementary or secondary school, college or university, or any faculty member or administrative officer of an elementary or secondary school, college or university that fails to report violations of this paragraph shall be guilty of a misdemeanor and punished by a fine of not more than \$500. Massachusetts General Laws, c.269§ 10(j).

Under Massachusetts law, the definition of dangerous weapons includes many items designed to do bodily injury:

...any stiletto, dagger or a device or case which enables a knife with a locking blade to be drawn at a locked position, any ballistic knife, or any knife with a detachable blade capable

of being propelled by any mechanism, dirk knife, any knife having a double-edged blade, or a switch knife, or any knife having an automatic spring release device by which the blade is released from the handle, having a blade of over one and one-half inches, or a slung shot, blowgun, blackjack, metallic knuckles or knuckles of any substance which could be put to the same use with the same or similar effect as metallic knuckles, nunchaku, zoobow, also known as klackers or kung fu sticks, or any similar weapon consisting of two sticks of wood, plastic or metal connected at one end by a length of rope, chain, wire or leather, a shuriken or any similar pointed starlike object intended to injure a person when thrown, or any armband, made with leather which has metallic spikes, points or studs or any similar device made from any other substance or a cestus or similar material weighted with metal or other substance and worn on the hand, or a ManrikiGusari or similar length of chain having weighted ends Massachusetts General Laws, c. 269 § 10(b).

In addition, students should recognize that even when they are away from the University, Massachusetts law requires a permit or firearms identification card or compliance with other specialized rules (depending upon the type of weapon) for possession of any firearms. Carrying any firearm (even if unloaded) in violation of the law is punishable by imprisonment with a mandatory minimum sentence of eighteen months, which cannot be suspended or reduced. Massachusetts General Laws, c. 269 § 10(a).

Students should consult the local police department in the city or town in which they reside if they intend to possess firearms on non-University property, in order to assure strict compliance with the applicable statutes.

V. Harvard University Rules for Campus Use

Harvard University has established rules for campus use across Harvard. These rules are available at <https://evp.harvard.edu/campus-use-rules>.

W. Admissions Fraud

Occasionally, candidates for admission will make inaccurate or incomplete statements or submit false material in connection with their application. In most cases, these misrepresentations or omissions are discovered during the admission process and the application is rejected. If a misrepresentation or omission is discovered after a student is admitted, the offer of admission ordinarily will be withdrawn. If a misrepresentation or omission is discovered after a student has registered, or registered and completed courses, the offer of admission ordinarily will be rescinded, the course credit and grades will be revoked, and the student will be required to leave the Law School. If the discovery occurs after a degree has been awarded, the offer of admission ordinarily will be rescinded, and the course credit, grades, and degree will be revoked. The determination that an application is inaccurate, incomplete, or contains misrepresentations or omissions rests with the admissions office in consultation with a committee as designated by the Dean, which has the authority to resolve the matter outside the student disciplinary process. The admissions office, in consultation with an Ad Hoc committee as designated by the

Dean, also may rescind an offer of admission in other circumstances, including without limitation if: there is a discrepancy between the transcripts originally provided as part of the application and the official versions (or translations) submitted after acceptance; the admitted candidate did not satisfactorily complete any courses and degree programs in progress at the time of application; or the admitted candidate has engaged in dishonest or other conduct prior to matriculation that would violate HLS's [Community Principles](#) or [Harvard's University-Wide-Statement on Rights and Responsibilities](#). Cases involving current students that do not result in the rescission of an admission offer ordinarily will be referred to the Administrative Board. Should subsequent Administrative Board proceedings identify new evidence relevant to the issue of rescission, it may refer the matter back to the relevant Admissions Office and the Ad Hoc Committee.

X. Required Meetings

To promote students' academic success, wellbeing, and full engagement in the life of the institution, students are required to meet with faculty or administrators upon request to discuss academic progress, advising, support services, or other matters related to their enrollment. Failure, upon reasonable notice, to respond or to attend such meetings may be subject to disciplinary referral.

Y. International Academic and Research Compliance, including Export Controls

International Academic and Research Compliance

All U.S.-based individuals and entities, including Harvard faculty, staff, students and student groups, are responsible for complying with U.S. export control and sanctions laws. These laws broadly apply whenever items, services, technology, funds, or data are sent outside the United States, or when certain information or know-how is shared with foreign nationals (including those in the U.S.), and may restrict, delay, or prohibit some activities. Activities that may trigger review include, for example, international research collaborations, sharing unpublished data with collaborators abroad or with non-Harvard-affiliated foreign nationals, academic appointment requests for foreign nationals, financial or in-kind support involving international partners, hosting or paying international visitors or speakers, and hosting or attending educational programs and conferences (in person or online) involving participants or institutions outside the U.S. or in sanctioned countries. Students must seek guidance in advance if their planned activities may involve foreign persons, entities, or countries subject to U.S. sanctions or export controls. For more information, reference the University's [Educational Program Screening resources](#), including the [Bulletin on Educational Programs and Screening](#), the [FAQs](#), and [Infographic](#) on Screening for Educational Programs. Students with questions about compliance with U.S. sanctions and export control laws, or who require assistance with screening, should contact hlsorac@law.harvard.edu.

XIV. Reservation of Rights

Harvard Law School reserves the right to make changes to the Student Handbook at any time without advance notice. These changes may affect such matters as tuition and other fees, courses, degrees, and programs offered (including the modification or possible elimination of degrees and programs), degree and other academic requirements, academic policies, rules pertaining to student conduct and discipline, fields or areas of concentration, and other rules and regulations applicable to students.

In addition, Harvard Law School retains the discretion to act as it deems necessary in extraordinary circumstances to protect the health and safety of the Harvard community, secure educational opportunities for Harvard students, and otherwise protect Harvard's dual mission of teaching and research against significant disruption. For these purposes "extraordinary circumstances" include, but are not limited to, public health emergencies, government action, extreme weather events, and other conditions posing broad threats to the community health and safety or significantly disrupting campus life or learning.

Discretionary measures available to the Harvard Law School may include, but are not limited to, making recourse to remote or, hybrid, or other alternative or off-campus instruction; suspending or limiting access to University-provided residential housing; limiting its provision of or access to certain activities and services; introducing or modifying vaccination, mask, and physical distancing mandates; and implementing compulsory testing and tracing programs as required conditions for accessing the Harvard campus or Harvard facilities.

Appendix A: Harvard Law School: The Well, Harvard University Health Services, Counseling and Mental Health Services, and Center for Wellness and Health Promotion

Harvard Law School: The Well

For more information, please visit: <https://hls.harvard.edu/student-life/the-well-health-and-wellness-at-hls/>

Harvard University Health Services (HUHS)

For more information, please visit: <https://huhs.harvard.edu/>

Counseling and Mental Health Services (CAMHS)

For more information, please visit: <https://camhs.huhs.harvard.edu/>

Center for Wellness and Health Promotion

For more information, please visit: <https://wellness.huhs.harvard.edu/>

Appendix B: Emergency and Safety Information

Emergency Information

See [Emergency Information](#).

Building emergencies should be reported to the [Facilities Management Office](#) at 5-5521 during weekday work hours or to 5-5560 during evenings, weekends, and holidays.

Harvard University MessageME

[MessageMe](#) is Harvard University's emergency messaging system. For more information, please visit: <https://messageme.harvard.edu/>.

In the event of an emergency or significant disruption in operations, the University will use [MessageMe](#) to quickly distribute critical information to all active Harvard faculty, staff, students, and other community members who are likely to be on campus.

Harvard University Campus Escort Program (HUCEP)

For more information, please visit: <https://www.hupd.harvard.edu/campus-escort-program>.

Evening Van Service (617-495-0400) (fully accessible)

For more information, please visit: <https://www.transportation.harvard.edu/shuttle-van-services/demand-van-service>.